3 Development in Centres and Corridors

3.1 Application of this Section

To deliver a high standard of acoustic measures for residents within the Burwood Town Centre, High and Medium Density Areas, and Active Precincts to enable the delivery of housing in mixed-use areas that include entertainment and other noise-generating activities.

This section applies to Burwood's centres and corridors, namely:

Centre or Corridor	**Zoning Under BLEP 2012**
Burwood Town Centre and Burwood Road North	B4 Mixed Use
Strathfield Town Centre	B4 Mixed Use
Enfield Local Centre	B2 Local Centre
Croydon Park Local Centre	B2 Local Centre
Croydon Neighbourhood Centre and other small areas	B1 Neighbourhood Centre
Parramatta Road Corridor	B6 Enterprise Corridor

Where a type of development covered by this DCP section is permitted in another zone, Council may apply the relevant provisions from this DCP section at its discretion.

The aims of this section are:

To reinforce and support the different identities, functions and character of the centres and corridor.

To ensure development achieves the stated desired future character of each of the centres and corridor.

To minimise the potential negative impacts of development on neighbouring low density residential properties.

To encourage a safe and human scale environment at street level within centres and corridor.

3.2 General Building Design Controls in Centres and Corridors

3.2.1 Building Design

Objectives

O1 To ensure that new buildings:

- Represent architectural and urban design excellence.
- Provide cohesive and visually interesting building appearance.
- Respond to surrounding notable buildings and enhances the streetscape.
- Integrate roof design with the building character and enhances the skyline.
- Encourage rooftop gardens and planting on structures that enhance the quality and amenity of open space.

General Guidelines

Provisions

P1 Architectural design excellence is to be achieved in the following ways:

- The form and external appearance of any development should significantly improve the quality and amenity of the public domain.
- Cohesive design and visual interest should be provided by articulation, modulation and fenestration as well as textures, materials and colours.
- The development should respond positively to its context, environment and function.

P2 New facades should complement the predominant scale, proportion and rhythm of the existing streetscape.



Example of streetscape showing the new high-density development integrated with the existing fine grain façade of the town centre/corridor (Source: City of Auckland).

P3 Façade elements including roof form, materials, colours and awnings are to make a cohesive and visually interesting building appearance.

P4 New facades are to respond to the proportion, texture and material of surrounding notable buildings including heritage or locally valued buildings within the immediate surrounding context. Mimicking of heritage features is to be avoided.



The building modulation and fenestration responds to the adjacent valued context. (Source: Google)

P5 Extensions and additions involving heritage elements must be designed to complement the style, form and proportions as well as materials and colours of heritage elements.

P6 Any blank walls are to be designed to have details and visual interest and be cohesive with the rest of the elevation through the use of materials, textures and colours.

P7 In infill developments, façade modulation/ articulation should reflect the key datum lines of the adjacent contributory developments.

P8 New developments on corner sites should orient to both street frontages. Also they should accentuate the corner's unique location with architectural features that actively engage the public realm and create a visual presence at the corner, such as:

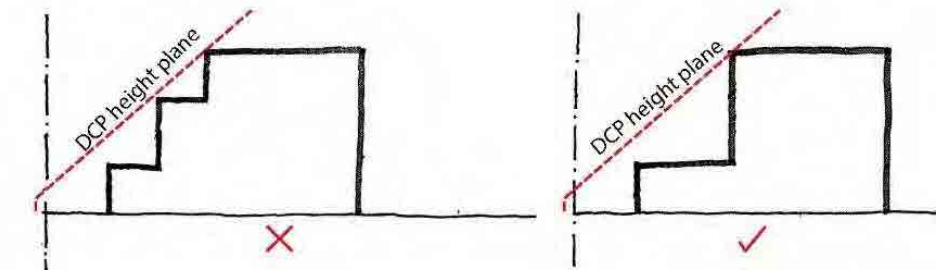
- Chamfered or rounded corners
- Different material and colours
- Recessed balconies or windows



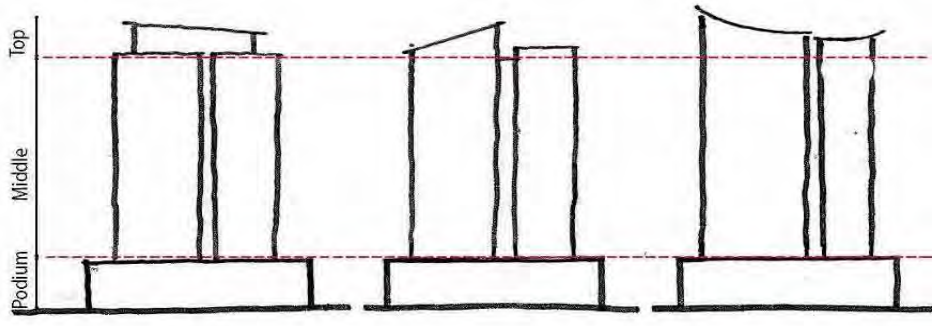
The corner element is to be treated differently to enhance the visual character of the public domain. (Source: Google)

P9 Building service elements, such as drainage pipes, grilles, screens, ventilation louvres and car park entry doors should be integrated into the overall facade design.

P10 A simplified response to the required DCP height plane is encouraged.



P11 The primary façade proportion should distinguish the podium, middle and top elements.



Base/Podium Levels

P12 Ground level façades are to have modulation every 5-6m to reflect the existing 'fine grain' storefront scale.

P13 Podium façade articulation above the ground level should contribute to the modulation and rhythm of the ground level and reflect a human scale development.

P14 Infill developments adjacent to small-scale heritage items and/or local valued building should respond to the adjacent façade expressions/rhythm and datums in their podium façade design.

P15 A minimum of 90% of the front façades on the ground level are to be activated with storefronts and openings.

P16 A minimum of 30% - 50% of side façades within podia are to be activated with windows and openings. This applies where a side façade is next to a heritage item, a pedestrian link or a laneway.

P17 A minimum of 60% - 70% of the rear façade within podia is to include windows and openings. This applies where the rear façade is not built to the rear boundary, or where it is built to the rear boundary but has frontage to a laneway or a pedestrian link.

P18 Main entrances are to be clearly visible from the public domain. Different materials or visually interesting modulations/rhythms are encouraged.

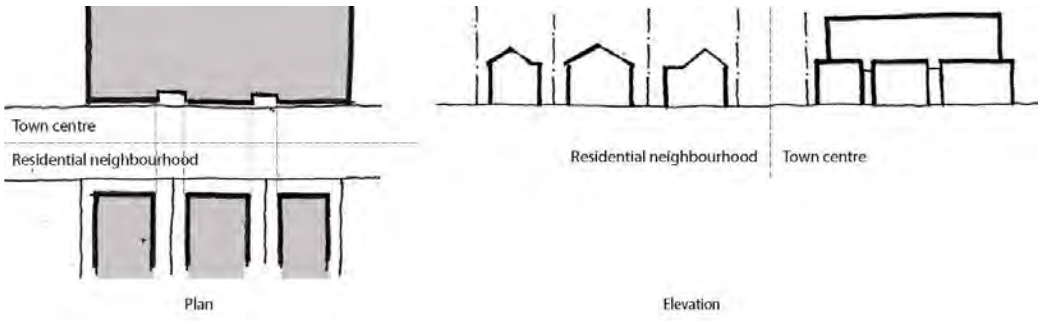


A different modulation to highlight the main pedestrian entrance is encouraged. (Source: Auckland Design Manual)

P19 Service/parking entrances are to have a minimum width, be integrated with the overall façade of the podium element and show quality materials around the mouth of the entrance up to 3m inwards or after the security gate.

P20 Podium façades in corner sites should activate both streets.

P21 In transitional areas (town centres to residential precincts), podium elements should reflect the smaller modulation of the residential buildings in their façade design.



Middle

P22 Where the building length above the podium levels is less than 45 m but the building is attached to the adjacent building, a break every 40-45m is to be provided to avoid continuous walls of development.

P23 Front and rear façades to include 60% - 70% windows and balconies to habitable rooms.

P24 Side façades - if not attached to the adjacent development - are to include windows and openings within at least 30% - 50% of the façade visible from the public domain and the surrounding habitable areas. Where separation distances are less than the guidelines in the ADG, redirection of views from the widows and openings is encouraged to avoid adverse privacy impacts.

P25 Blank facades attached to the side boundaries, in the interim, should present visually interesting elements through materials and colours. Plain/blank walls are prohibited.



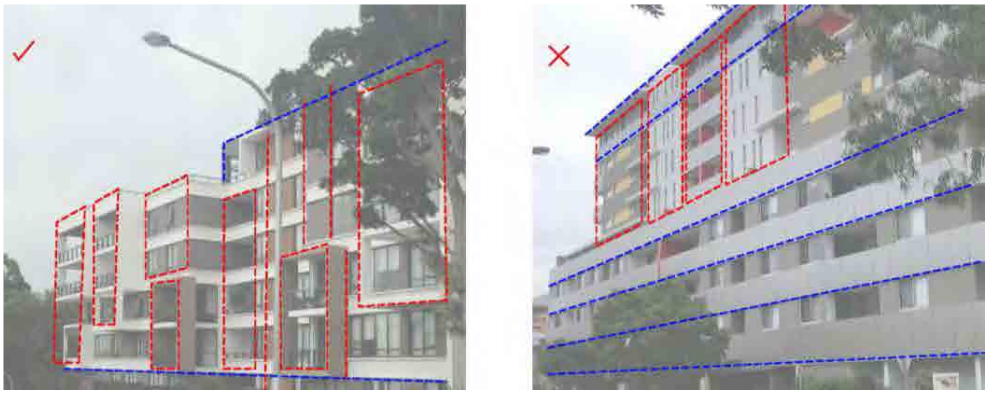
Modulation and articulation of blank walls to enhance the visual character of the building (Source: ADG, 4M).

P26 New development should avoid having blank walls on the northern façade. A minimum of 70% of the northern façade is to include habitable windows and balconies.

P27 Horizontal shading on the northern façades and vertical shading for eastern/western facades are encouraged to control heat gain to the internal areas.

P28 Façade proportions should reflect the internal use of each building.

P29 Variety of architectural modulation and rhythm is encouraged to enhance the visual interest of the façade. Vertical articulation is preferred to break the façade into smaller elements.



P30 Openings are to be recessed at a minimum of 100mm to add depth to the façade.



Recessed openings add depth to the overall façade. (Source: GMU Library)

P31 Recessed balconies are preferable to provide privacy, protection and depth to the façade.

P32 Sliding louvered panels as balcony screening are encouraged to add visual privacy and control glare and heat gain.

Building Top and Roof Gardens

P33 Roof designs are to be integrated into the overall architectural character of the building and enhance the skyline of the centre or corridor.

P34 Buildings are to have recognisable roof termination or capping distinguishable from the public domain.

P35 The use of different façade expression including articulation, material, parapet, colour and texture to differentiate the top level or roof is encouraged.

P36 Roofs must respond to the orientation of the site. For example, the use of eaves and skillion roofs to facilitate to solar access.

P37 The visual impact of service elements must be minimised by integrating them into the roof design and concealing them from view. These elements include lift over-runs, service plant rooms, vent stacks, telecommunication infrastructures, gutters and downpipes.

P38 Development must be designed with regard to how it is observed from the street and from adjacent development. Opportunities for sculptural expression to create a varied skyline must be considered.

P39 Residents shall have access to rooftop and podium gardens wherever possible. At least 50% of the roof area shall be vegetated with grasses, shrubs and trees.

P40 Planter boxes must be located at the perimeter of rooftop gardens to minimise overlooking of neighbouring dwellings.

P41 Planting containers must allow sufficient depth and volume, growing medium and irrigation to support the mature size of plants.

P42 All planting areas on structures must be designed by a suitably qualified engineer.



Rooftops should be accessible to residents and be extensively landscaped.

Source: www.greenroofsaustralasia.com.au



The term 'green roof' is used to describe a rooftop that achieves environmentally sustainable outcomes.

Source: www.dedece.com

3.2.2 Materials and Finishes

Objectives

O1 To ensure that the use of superior quality external materials and finishes:

- Contributes to architectural and urban design excellence.
- Provides cohesive and visually interesting building appearance.
- Responds to surrounding notable buildings and enhances the streetscape.
- Provides longevity in external materials and finishes that are of superior quality.

Provisions

P1 The existing material, texture or colours of the surrounding developments are to be considered in the façade design of the new developments.

P2 The new façade is to consider the texture and materials of their adjacent heritage buildings or contributory items.

P3 Different treatment is to be considered for the base, middle and top in the overall facade composition.



Façade material and finishes clearly differentiate the base, middle and top of new buildings. (Source: Google)

P4 Extensive expanses or overreliance on painted render is not permitted. Prominence is to be given to pre-coated or through-colour textured finishes in panels or similar formats.

P5 Blank walls/inactive elevations must use changes in materials, patterns, colours or other design elements to provide variation and architectural interest. This includes blank walls/ inactive elevations that may be exposed to view pending future development on adjoining land.



Blank walls must be treated to provide variation and architectural interest.

P6 Monotonous/bland façade expressions are to be avoided. Building materials and colours should be used to unify and provide visual interest to building exteriors. However, the number of materials and colours should be limited to maintain a visual simplicity and harmony.



A combination of different materials and finishes provides a harmonious composition (Source: Google)

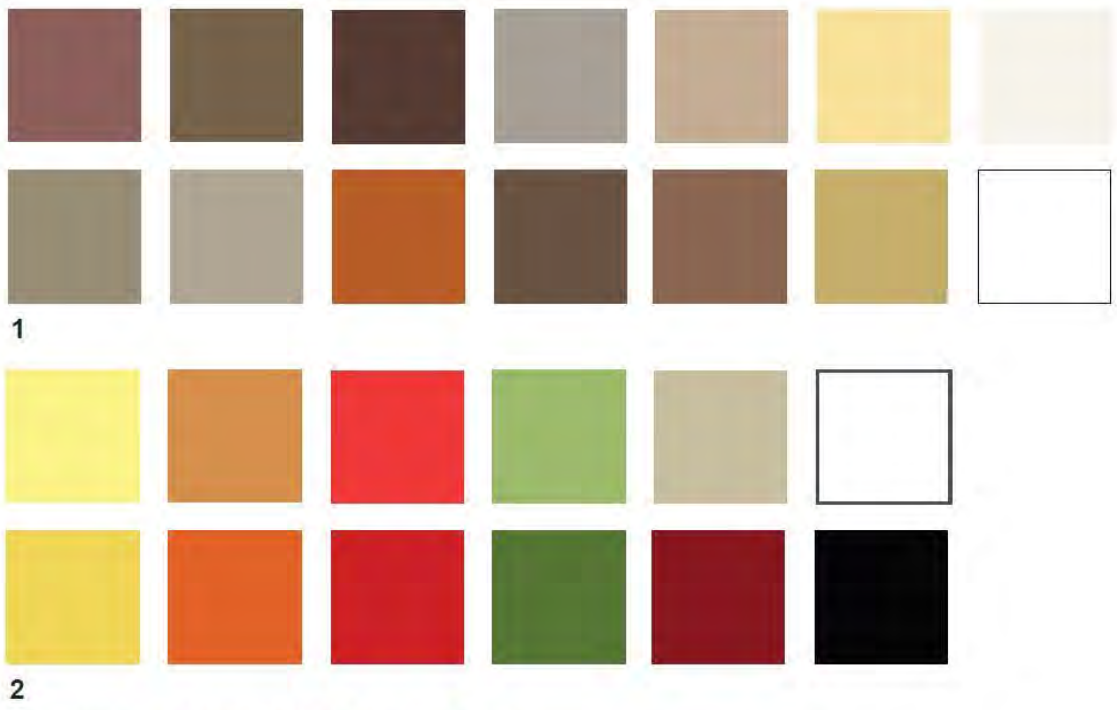
P7 Changes in façade material or colour should be associated with a change in façade plane or separated by a pilaster, recess or change in scale.



Primary materials are associated with the majority of the elevations of the building. (Source: Auckland Design Manual)

P8 Opening frames are generally to be recessive colours to mitigate any visual clutter of the overall façade.

P9 An appropriate palette of colours should be used. Stronger primary colours can be used as the main building colour when used in combination with lighter colours to highlight building accents and create contrast. See sample colour boards below.



1. Primary colour palette **2.** Feature colour palette

P10 The use of white shall only be permitted on trimming with bright colours to highlight items. Generally neutral tones should predominate and colours selected should fall into the spectrum of the preferred community colour palette.

P11 Buildings are to avoid high reflectivity glass. No clear glass balustrades will be permitted. Use of translucent or opaque materials for balustrades is encouraged.

P12 Materials in high rise building forms particularly those terminating views and vistas should help elevate the building's iconic status.



P5 Low maintenance and graffiti resistant materials must be used wherever possible on surfaces susceptible to graffiti.

3.2.3 Lighting and Signage

Objectives

O1 To ensure that that building lighting and signage:

- Contribute to architectural and urban design excellence.
- Provide cohesive and visually interesting building appearance.

Provisions

P1 The size of the street address sign on the main facade is to be legible for pedestrians walking in the public domain.

P2 Building names and street addresses are to have contrasting colours and/or material to enhance their legibility.

P3 External lighting to enhance the details of facade and character of the surrounding context is to be incorporated. Use of indirect lighting is encouraged.

P4 In town centres and corridors, the external lighting is to illuminate the specific character of the building including the entrances, corner element or roof features.

P5 Night-lighting of retail display windows in mixed-use buildings in town centres and corridors is encouraged.



P6 In residential neighbourhoods, the main entrance and the pedestrian high traffic areas are to be illuminated to enhance wayfinding and safety.

P7 In both centres and corridors, and residential neighbourhoods, external lighting must be integrated to the overall streetscape character.

P8 Side elevations without window or openings must have a lighting scheme to mitigate the effects of dark inactive elevations being visible from the public domain or streetscape especially after working/trading hours.

P9 Compliance is required also with the other provisions of the BDCP concerning awnings and signage.

3.2.4 Street-Front Activities and Building Access

Objectives

O1 To encourage pedestrian safety, visual interest and activity at street level.

O2 To promote street front activities, especially along streets of high pedestrian use.

O3 To create building entrances that are safe and contribute positively to the streetscape and building façade design.

O4 To further strengthen activity along classified roads in centres such as Burwood Road, Liverpool Road, Georges River Road and Parramatta Road.

Provisions

P1 Where, as a result of the nature of the development, there are specific security requirements, security measures must form an integral part of the building design. Roller shutters are not permitted but retractable open security grilles may be considered.

P2 Ground floor level development must:

- Promote quality non-residential activities in accordance with the zone.
- Minimise the number of service doors.

- Encourage visual interest on service doors with displays etc.
- Provide access points to and from the public domain at not more than 20 metre intervals.
- Provide at-grade access at entry points.
- Incorporate visually interesting streetscape frontages at ground level with attractive entries, clear glazed windows and window displays, artworks, articulated architecture and facade modulation.

P3 Separate and clearly identifiable entrances must be provided from the street for pedestrians and cars, and different uses (residential and non-residential).

P4 Building entrances must have a direct physical and visual connection with the street.

P5 Residential component of any development must have a clear street address and a separate entry.

P6 Outdoor dining is generally encouraged on the footpath of commercially active street frontages, subject to compliance with Council's Outdoor Eating Area Policy.

P7 All commercial components must have a clear street address.

P8 CCTV cameras shall be installed over any entrance points (including car parking entrance) for residential flat buildings and major developments. The CCTV system shall provide a quality image that can assist with the detection of crime and be used by the NSW Police in any investigation (preferably a quality digital system). CCTV system footage shall be retained for a period of no less than fourteen days and be available upon request by the NSW Police when required.

Mailbox and Postal Facilities

P9 All mail box and postal facilities shall be incorporated into the building in accordance with the requirements of Australia Post. Mail boxes shall be sited and designed for attractive visual appearance and function, as well as to complement the architecture and environs.

P10 A locking device shall be installed to all mailboxes.

P11 Mailboxes must be integrated into the front wall such that residents collect mail from a secured internal foyer. Please refer to **Figure 1** and **Figure 2**. External mail boxes accessible only from the footpath outside a development are not permitted.



Figure 1. Examples of Mailboxes Integrated into the Front Wall of a Residential Flat Building



Figure 2. Example of Mailboxes Accessible from a Secure Internal Foyer

Fire Safety and Power Supply Utilities

P12 Development Application documentation must show all required mechanical/functional installations for utilities such as fire hydrant boosters and electrical substations. These must have coverings or shielding to screen their setting so as to minimise their visual impacts.

P13 Fire safety utilities such as fire hydrant boosters must be screened, accessible at all times and integrated within the overall architectural design of the building.

P14 Large power supply utilities such as electrical substations must be shielded from public view or encapsulated within the building envelope.



Figure 3. Examples of enclosed fire safety utilities



Figure 4. Example of a screened large power supply utility / substation

Mechanical and Ventilation Equipment

P15 Mechanical ventilation and plant equipment must not be visible from the public domain, or be attached to the external façades or elevations. It must be located within a central plant area and screened from public view.

P16 Mechanical ventilation and plant equipment must not adversely affect the architectural quality and presentation of façades, elevations or roof features.

P17 If mechanical ventilation and plant equipment must be visible from the public domain it must be incorporated within the building design and not detract from the architectural quality of the elevations or roof features.

P18 Specifications, designs and technical information of mechanical and ventilation equipment must be provided to Council at the development application stage.

3.2.5 Subdivision and Car Parking Spaces

Objectives

O1 To promote the orderly and transparent development of land.

O2 To ensure subdivided car parking spaces are not separated from the uses for which they were provided.

Provisions

P1 An application for Strata Title or Community Title subdivision of land may include a car parking space only where the parking space is part of another lot.

P2 Consent must not be granted to Strata Title or Community Title subdivision which results in the subdivision of car parking alone.

3.2.6 Site Isolation

Overview

Isolated sites in centres and corridors are those sites whose size and locations could potentially significantly limit development as a result of not being included in an adjoining development proposal. Sites may not be defined as isolated if they have the future potential to amalgamate with an alternate adjoining property.

Objectives

O1 To encourage site consolidation of allotments for development in order to promote the efficient use of land and to avoid the creation of isolated sites.

O2 To encourage the development of existing isolated sites in a manner that responds to the site's context and characteristics and that maintains a satisfactory level of amenity.

Provisions

P1 The creation of isolated sites is discouraged.

P2 Where a development may result in the creation of an isolated site or sites, the applicant is required to demonstrate that negotiations between the owners of the properties commenced at an early stage that was prior to the lodgement of the Development Application. Where no satisfactory result is achieved, the Development Application must include evidence of negotiations with the owners of the properties. These details must include offers to such owners. Such offers are to be reasonable and are to be based on at least one recent independent valuation and include other reasonable expenses likely to be incurred in the sale of the process.

P3 Where a development may result in the creation of an isolated site the applicant must demonstrate that orderly and economic use and development of the separate sites can be achieved that is consistent with the planning controls. Such demonstration is achieved by the applicant providing an envelope for that site, indicating height, setbacks, resultant site coverage and/or built area (building and basement), sufficient to understand the relationship between the development and that site, the likely impacts the development will have on each other, such as solar access, visual and acoustic privacy, impacts for residential development and traffic impacts if that site is on a main road.

P4 The development of an isolated site is not to detract from the character of the streetscape and is to achieve a satisfactory level of amenity, including solar access, visual and acoustic privacy.

3.2.7 Residential Flat Buildings and Shop Top Housing

Objectives

O1 To clarify the application of DCP provisions to these forms of development.

Provisions

P1 In the B4 Mixed Use zone, both residential flat buildings and shop top housing are permitted with consent. For the purposes of implementation of the BLEP 2012 in this zone, where the residential component of a mixed development comprises three of more dwellings, it will be regarded as a residential flat building, not shop top housing. In these cases there will be no restriction on ground floor uses.

Where the residential component of a mixed development comprises one or two dwellings, it will be regarded as shop top housing. In this case the use of the ground floor is restricted to retail or business premises.

In the B4 Mixed Use zone development comprising residential flat buildings or shop top housing will be subject to the same provisions of Part 3 of this DCP, together with SEPP 65 and the Apartment Design Guide (ADG).

For any shop top housing, there is no numerical relationship between the number of dwellings and the ground floor retail or business premises.

P2 In the B1 Neighbourhood Centre, B2 Local Centre and B6 enterprise Corridor zones, only shop top housing is permitted. In these zones, the residential component of a mixed development comprising one or more dwellings is regarded as shop top housing, and the use of the ground floor is restricted to retail or business premises. There is no numerical relationship between the number of dwellings and the ground floor retail or business premises.

In the B2 Local Centre zone, the provisions of Part 3 of this DCP applying to residential flat buildings will also apply to shop top housing, together with SEPP 65 and the ADG.

In the B1 Neighbourhood Centre zone, development of shop top housing is likely to be minor because of the development standards and heritage restrictions applying. In this zone shop top housing development will be assessed on its merits having regard to the requirements of the BLEP 2012 and existing development in the neighbourhood centre.

In the B6 Enterprise Corridor zone, the residential component of development is restricted to about 10% of potentially available floor space of a building. In this zone the residential development will be assessed on its merits having regard to SEPP 65 and the ADG.

3.2.8 Apartment Mix and Minimum Dwelling Sizes

Objectives

O1 To provide housing choice to meet the socio-economic needs of the population.

Provisions

P1 Residential development in excess of 20 dwellings must provide a mix of dwellings containing one, two or more bedrooms.

P2 All residential developments must provide the following minimum apartment sizes:

- Studio apartments - 40 square metres.
- One bedroom apartments - 50 square metres.
- Two bedroom apartments - 70 square metres.
- Three or more bedroom apartments - 95 square metres.

P3 Calculation of the apartment size must be the net area and is exclusive of the apartment's perimeter walls, balconies and excessive internal circulation of the dwellings. The storage areas required to be provided within each dwelling by Section 3.2.16 of this DCP section may be included in the calculation of the net area.

Advisory Note:
These provisions also apply to serviced apartments.

3.2.9 Minimum Site Area

Objectives

O1 To ensure sites are capable of accommodating development.

Provisions

P1 Any development with a height over 10m is generally required to have a minimum site area of 500sqm.

P2 Council will only consider a development with a minimum site area below 500 sqm where the Council is satisfied that:

- The development demonstrates design excellence.
- The development provides a good response to the streetscape and surrounding development (in terms of both existing and future development).
- The development provides full compliance with parking requirements without the use of automated or mechanical car parking systems.

3.2.10 Building Depth

Objectives

O1 To provide adequate amenity in terms of access to natural light and ventilation.

Provisions

P1 For development including multi dwelling housing refer to the building amenity provisions of the ADG which supplements SEPP 65 – Design Quality of Residential Apartment Development.

3.2.11 Ceiling Height

Objectives

O1 To provide adequate amenity.

O2 To allow for future mix of uses and contribute to flexibility of use.

Provisions

P1 Development must provide the following minimum ceiling heights. Dimensions are expressed from finished floor levels to finished ceiling levels:

- Ground level of all development (commercial and residential): 3.3 metres.
- Non-residential floors above ground level: 3.0 metres.
- Residential floors above ground level: 2.7 metres for habitable rooms and 2.4 metres for non-habitable rooms.

P2 In developments where 50% or more units on a level do not receive a minimum of 2 hours of direct sunlight to habitable spaces in midwinter (balconies excluded) the floor to ceiling height must be a minimum of 3 metres for the entire floor (approx. 3.3 metres floor to floor).

P3 Floor to ceiling heights that have been approved as per Provision P2 above cannot be reduced on subsequent approvals or modifications.

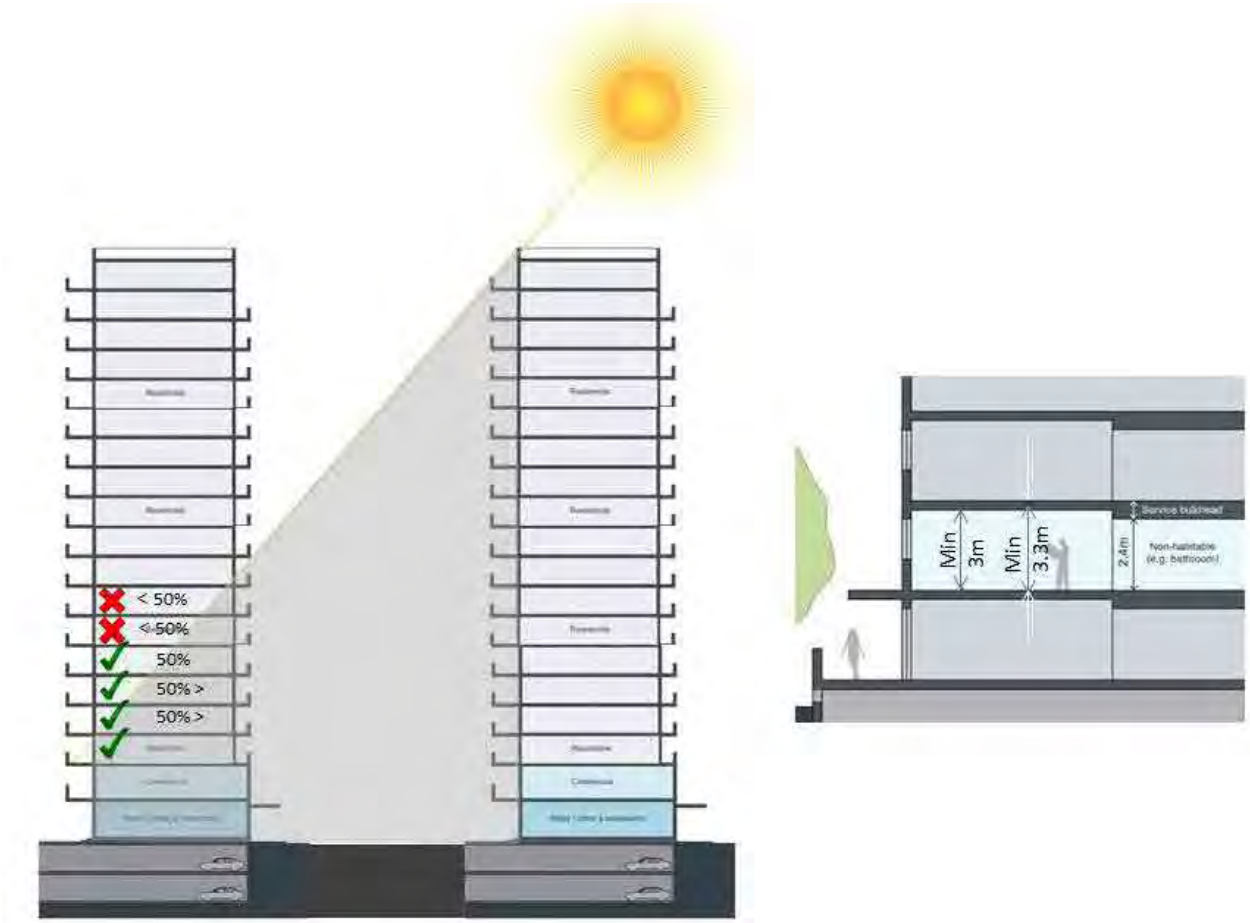


Figure 5. Increased floor to ceiling heights (Adapted from ADG 2015)

3.2.12 Natural Ventilation

Objectives

O1 To provide adequate amenity.

O2 To minimise the energy consumption of development through reduced reliance on mechanical ventilation.

Provisions

P1 For development including multi dwelling housing refer to the building amenity provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Apartment Development.

3.2.13 Daylight Access

Objectives

O1 To orient development to optimise solar access.

O2 To minimise the energy consumption of air-conditioning of development.

Provisions

P1 For development including multi dwelling housing refer to the building amenity provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Apartment Development.

3.2.14 Visual and Acoustic Privacy

Objectives

O1 To provide adequate amenity.

O2 To deliver a high standard of acoustic measures for residents within the Burwood Town Centre, High and Medium Density Areas, and Active Precincts – Zones R1. R3. E1 and MU1.

O3 To enable the delivery of housing in mixed use areas that include entertainment and other noise generating activities

Provisions

P1 Development must be located and orientated to maximise visual privacy between development on the site and adjacent development by:

- Providing adequate rear and side setbacks.
- Utilising the site layout to increase building separation. For example, orientation of buildings on narrow sites to the front and rear of the lot, thereby utilising the street width and rear garden depth to increase the apparent building separation distance.

P2 Detailed site and building design elements may be incorporated to increase privacy without compromising access to light and air. Design detailing may include:

- Solid or semi-solid balustrades to balconies.
- Offset windows of dwellings.
- Recessed balconies and/or vertical fins.
- Louvres or screen panels to windows and/or balconies.
- Fencing.
- Vegetation as a screen between spaces.
- Pergolas or shading devices to limit overlooking.

P3. Application of this Clause

This clause also applies to all new development, and substantial alterations or additions to existing development, on land in Zone R1 General Residential, Zone R3 Medium Density Residential, Zone E1 Local Centre, Zone MU1 Mixed Use and Any zone containing a Special Entertainment Precinct for any of the following purposes:

- Residential accommodation
- Tourist and visitor accommodation
- A place of public worship
- A hospital
- A medical centre
- Respite day care centres
- An educational establishment or centre-based child care facility

P4 Assessment Requirements

Before determining a development application to which this clause applies, the consent authority must consider any relevant guidelines or policies relating to noise and vibration impacts.

P5 Acoustic Performance Criteria

The consent authority must not grant development consent unless it is satisfied that appropriate measures will be implemented to ensure that the following internal noise levels as a result of noise ingress from entertainment or licensed premises are not exceeded:

Bedrooms of residential accommodation or tourist and visitor accommodation

- LAeq35dB(A)$_{Leq(1hr)}$ at any time between 7.00am and midnight
- LAeq 30dB(A)$_{Leq(1hr)}$ at any time between midnight and 7.00am

Other habitable rooms of residential accommodation or tourist and visitor accommodation (excluding garages, kitchens, bathrooms and hallways):

- LAeq 35dB(A)$_{Leq(1hr)}$ at any tome between 7.00am and midnight
- LAeq30dB(A)$_{Leq(1hr)}$ at any time between midnight and 7.00am

Any area of a place of public worship, hospital, medical centre, respite day care centre, educational establishment or centre-based child care facility (excluding garages, kitchens, bathrooms and hallways):

- LAeq35dB(A)$_{Leq(1hr)}$ at any time

The noise levels referred to in this section are to be achieved with the windows closed and air condition equipment turned off.

P6 Noise Impact Assessment

A noise impact assessment prepared by a suitably qualified acoustic consultant must be submitted with a development application to which this policy applies. The assessment must demonstrate how the proposed development will achieve compliance with the specified noise attenuation criteria.

P7 Noise Emission Standards

Any new building, or existing building subject to substantial alterations or additions for the purpose of changing its use to a child care facility, must be designed as not to emit noise exceeding the requirements of the AAC Child Care Centre Guidelines.

3.2.15 Private Open Space

Objectives

O1 To provide all dwellings in centres and corridors with secure private open space, either in the form of a private courtyard or balcony.

O2 To provide usable private open space areas which relate well to the main internal living areas.

O3 To provide open space with soft landscaping.

Provisions

P1 All dwellings must have direct access to one primary open space from the main living area.

P2 The primary open space must be dimensioned to promote indoor/outdoor living. A dining table and two chairs (small apartment, i.e. 1 bedroom) or four chairs (large apartment, i.e. 2 or more bedrooms) should fit on the primary open space. The following minimum dimensions, clear of balustrades, must be achieved:

- Minimum depth - 2 metres (up to one bedroom).
- Minimum depth - 2.5 metres (two or more bedrooms).
- Minimum area - 8 sq metres (one and two bedrooms).
- Minimum area - 10 sq metres (three bedrooms or larger).

P3 Private open space must respond to site conditions including sun, noise, wind and privacy. Sun screens, pergolas, shutters and openable walls are to be used to increase amenity where appropriate.

P4 Private open space must form an integral part of the development's design.

3.2.16 Lobbies and Internal Circulation – All Development

Objectives

O1 To provide communal spaces which contribute to the overall design, experience and performance of the development.

02 To provide well designed and lit spaces for occupant movement and waiting.

03 To provide inviting communal spaces which include facilities for seating, mail boxes and supervision personnel.

Provisions

P1 Entry lobbies must be designed to provide facilities for seating, mail delivery and collection, and supervising personnel wherever possible.

P2 Lift lobbies must be naturally ventilated. Daylight is to enter all residential lift lobbies.

P3 Common area corridors must be designed to facilitate easy movement of people and furniture. Corridors must incorporate varied surfaces, textured and materials, and clearly identified apartment numbers.

P4 Common area corridors must be a minimum of 2 metres in width. Areas in front of arrival points i.e. lifts and fire stairs should have an additional depth up to 2.5 metres to facilitate improved internal building amenity. Access to facilities such as doors to rooms enclosing garbage chutes or vertical risers, if clustered around lift cores, should also benefit from additional corridor depth.



Figure 6. Corridor widths. (Adapted from ADG 2015)

P5 The name and number of a development must be clearly displayed at the entry outside the development. Suitable illumination for after-hours recognition must be provided.

3.2.17 Storage for Apartments

Objectives

O1 To provide adequate storage for everyday household items within easy access of the apartment.

O2 To provide storage for equipment including those associated with sporting, leisure, fitness and hobby activities.

Provisions

P1 For development including multi dwelling housing refer to the building configuration provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Apartment Development.

P2 At least 50% of the storage area must be provided within the dwelling and 25% accessible from active areas.

P3 Where the remaining 50% of the storage is located in the basement of the development it must be linked to its associated dwelling through its relevant strata title.

3.2.18 Safety and Security

Objectives

O1 To ensure development is safe and secure for occupant's visitors and other users at all times.

Provisions

P1 The routes between a development's entrance and its dwellings must be designed to maximise occupant safety. The routes from car parking areas to the lift lobby are particularly important in this regard. Clear sight lines and well-lit routes must be provided.

P2 Development must comply with Council's Burwood Community Crime Prevention and Safety Plan.

P3 Development must be provided with clearly defined site boundaries to strengthen the distinction between public and private space.

P4 Facades at ground level must be activated by locating after hours uses so they are visible from the publicly accessible areas.

P5 Development access must be controlled by:

- Restricting access from balconies, roofs and windows of neighbouring development.
- Providing separate access from public and common areas.
- Providing separate access for residents in mixed-use developments.
- Providing an audio or video intercom system at the pedestrian or vehicular entrance or in the lobby for visitors to communicate with residents.
- Providing secure keyed or electronic access for residents.

P6 Concealment opportunities must be minimised from development by:

- Eliminating blind or dark alcoves near lifts and stairwells.
- Providing clear sight lines and well lit routes throughout the development.
- Providing appropriate levels of illumination for all common areas.

P7 Residential development must be oriented so that primary windows and private open space address the street and publicly accessible areas.

P8 Where, as a result of the nature of the development, there are specific security requirements, security measures must form an integral part of the building design.

Security Grilles and Shutters

P9 Fully enclosed roller shutters are not permitted to shop fronts or other business premises. Retractable open security grilles may be considered.

P10 Security bars, roller shutters or fixed grilles visible from the public domain on any commercial, retail or business premises are prohibited.



Figure 7. Examples of prohibited security bars, shutters or permanent grilles and air handling systems



Figure 8. Examples of good quality facades without security bars, permanent grilles or air handling systems

3.2.19 Access and Mobility

Objectives

O1 To ensure development is designed to facilitate access by the whole community including those with mobility impairment.

Provisions

All Development

P1 The main entry of development must be designed and identified for use by persons with a mobility impairment.

P2 The main entry must be accessible from the street footpath in accordance with Australian Standard (AS) 1428: Design for Access and Mobility.

P3 Safe and convenient access must be provided in all development, car parks and communal facilities.

P4 Compliance with AS 1428.1 is required with respect to access requirements on new building work.

P5 Tactile indicators must be provided on the ground immediately adjacent to the approach and departure sides of any changes in floor levels in the public domain which incorporate a step, ramp, stepped ramp or the like in accordance with AS 1428.4.

Residential Component of Development

P6 At least 10% of dwellings in a development must be provided as adaptable housing to Adaptable House Class A or B standard to cater for ageing in place and mobility impaired residents, in accordance with AS 4299: Adaptable Housing.

P7 At least one car parking space must be provided and allocated to each dwelling required to be provided as accessible or adaptable housing under this Section and the car parking space must be accessible in accordance with the provisions of AS 1428.2 to facilitate automatic vehicular wheelchair loading and unloading.

P8 For development providing between 20 to 79 dwellings, one accessible visitor car parking space must be provided on site must be accessible in accordance with the provisions of AS 1428.2 to facilitate automatic vehicular wheelchair loading and unloading.

P9 For development providing 80 or more dwellings, additional accessible visitor car parking spaces must be provided on-site which are accessible, as per P8 above, at the rate of one per each 60 dwellings or part thereof.

3.2.20 Awnings and Associated Structures

Overview

Awnings attached to buildings and free standing awning/shade structures including semi-permanent umbrellas provide weather protection for pedestrians and contribute to the creation of a comfortable environment for people to walk, shop and dine in the public domain. Awnings and associated structures should be designed to enhance the character of the streetscape.

Under the BLEP 2012 road reserves are generally zoned the same as the adjoining land. In the Burwood Town Centre and its extension along Burwood Road North and in the Strathfield Town

Centre most roads are zoned B4 Mixed Use. The installation of any structures that are not attached to the building such as outdoor dining area, free standing awning/shade or umbrella constitutes development in the B4 zone that is permitted with development consent.

For new developments, proposed outdoor dining area and/or awnings and free standing awning/shade and shelter structures should be included in the overall Development Application for the development.

Where an outdoor dining area and/or an awning or a free standing shelter structure is proposed as an addition to existing development, a Development Application is required to be submitted.

The following subsections provide location and design guidelines for applicants and also serve as criteria for assessment of Development Applications.

3.2.20.1 Awning Style - Attached to Buildings

Objectives

O1 To provide pedestrian amenity with continuous overhead weather protection.

O2 To provide a consistent streetscape to ensure visual continuity.

Provisions

P1 Awnings must be provided above the public domain (i.e. footpath) for buildings built to the street front boundary, where awnings are part of the streetscape character.

P2 Where development has a set back from the street boundary, and there is formal pedestrian access from that street, provision of an awning over the access to the building is encouraged.

P3 New awnings must be of the traditional steel box design, in a straight form, supported from above, or cantilevered. Glass awnings may be considered where these do not adversely impact the streetscape consistency and visual continuity.

P4 New awnings must be integrated and compatible with the adjacent awnings that are consistent with this DCP.

P5 Change in height of the awning is not permitted unless it steps down or up to follow the terrain/ level of the street.

P6 Awning length must extend across the entire street front and connect with the adjoining awnings, except above vehicle entry points or service entrances.



Awning forms should be compatible with that of the adjacent properties.



Awnings with designs that detract from the continuity of the streetscape are discouraged.



Awnings are to step down to follow the terrain/level of the street.



Drastic changes in height that break the continuity of the awning alignment with the rest of the streetscape are discouraged.

3.2.20.2 Awning Dimensions - Attached to Buildings

Objectives

O1 To provide sufficient clearance and adequate shelter for pedestrians.

O2 To provide a continuous and harmonious streetscape.

O3 To define and mark buildings on street corners.

O4 To afford visibility to shopfronts from the opposite footpath.

Provisions

P1 Awning height measured from the footpath to the underside of the awning must be a minimum of 3.2 metres and a maximum of 3.5 metres. If signs are incorporated under the awning, they must allow a minimum clearance of 2.6 metres above the footpath.

P2 The height of the awning fascia must be between 0.4 metres and 0.6 metres.

P3 Any change in the awning height to accommodate sloping streets must have a maximum step height of 0.6 metres.

P4 For footpaths that are wider than 3 metres, new awnings must be setback from the edge of the kerb by a minimum of 1.2 metres to avoid conflict with parked vehicles and street trees. For footpaths less than 3 metre wide, new awnings must be setback from the edge of the kerb by a minimum of 0.6 metres.

P5 The awnings for corner buildings must be splayed have a consistent length and design and can be slightly higher from the footpath to define the corner. The maximum awning height between the footpath and the underside of the awning is 3.5 metres.

P6 Awnings must continue around buildings located on street corners.

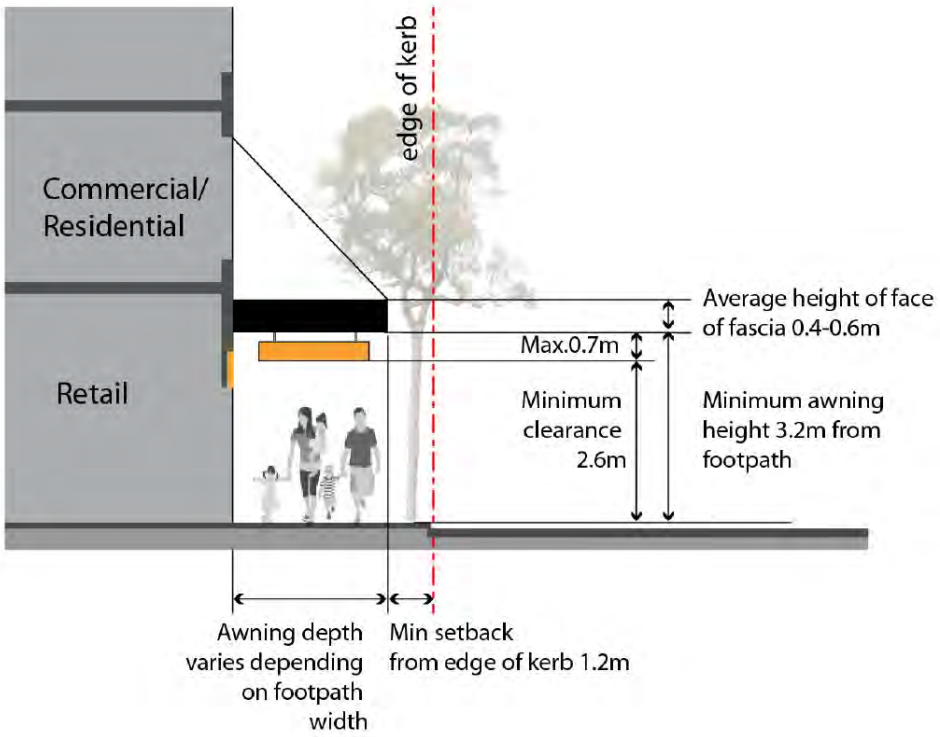


Figure 9. Awning Dimensions



Continuous splayed awning around the corner



Awnings should be continuous.

Mechanical Ventilation Systems

P7 Mechanical ventilation, specifically air handling units and other plant equipment must not be visible from the public domain, be attached to the external façades or elevations, placed above awnings or anywhere on a shopfront elevations. It must be located within a central plant area and screened from public view.

P8 Mechanical ventilation and plant equipment must not adversely affect the architectural quality and presentation of shopfront façades, decorative pediments, and parapet outlines or roof features.

P9 Specifications, designs and technical information of mechanical and ventilation equipment must be provided to Council at the development application stage for new builds, refurbishments and alterations.

3.2.20.3 Materials and Colours of Awnings - Attached to Buildings

Objectives

O1 To define and create a consistent edge of the awning.

O2 To provide a consistent character underneath the awning.

O3 To avoid visual clutter and to enhance the public domain.

O4 To increase personal safety and security through the use of artificial lighting.

Provisions

P1 Awnings, including their underside, must be constructed with high quality and low maintenance materials with simple detailing to reduce visual clutter.

P2 Under awning supporting structures, ducts, cables and wiring must be concealed from view. Lights should be integrated within the awning, e.g. LED down-lights.

P3 Artificial lighting must be installed in awnings at no greater than 6 metre centres and enable face recognition.

P4 Awnings must adopt a coordinated colour scheme that is compatible with the building. Multiple, bright, and rainbow colours are discouraged.

P5 Awnings must be regularly maintained to ensure ongoing structural adequacy and weather protection.



Under awning supporting structures, wiring and lighting should be concealed unless they are consistent with the character of the building.



Exposed lights are not encouraged unless they are fitted and integrated within the fascia or consistent with the character of the building.





Glass awnings should demonstrate streetscape consistency and visual continuity with adjacent awnings.

Exposed under awning supporting structures are not encouraged unless they are consistent with the character of the building.

3.2.20.4 Awning Extensions

Objectives

O1 To provide additional overhead weather protection to outdoor dining areas.

O2 To maintain a harmonious and consistent public domain with minimal visual clutter and high levels of visual connection between both sides of the footpath.

Provisions

P1 There are three types of awning extensions:
- straight drop extensions,
- retractable extensions and
- permanent extensions.

P2 Awning extensions must be positioned a minimum of 1 metre away from the centreline of any tree, parallel to the edge of the kerb.

P3 Full awning extensions that drop to the ground, whether they are made of transparent or opaque materials, e.g. cafe blinds, and side screens or panels at the side edges of the awning extension are not permitted.

P4 An awning extension should at least not detract from and preferably improve the overall streetscape character and appearance.

P5 Awnings must be regularly maintained to ensure ongoing structural adequacy and weather protection.

Straight Drop Extensions

P5 These are awning devices attached to the main awning for the premises that are vertically retractable. They cannot be permanent fixtures.

P6 A straight drop extension is to be used only where the footpath has a width of 4 metres or less.

P7 This type of extension must be attached under the fascia of the main awning and the fixing mechanisms must not be visible from the street. The fascia of the main awning is to remain exposed.

P8 A minimum clearance of 2.6 metres from the underside of the extension to the footpath below must be maintained. The outer surface of the extension (including any structural element) must maintain a 0.6 metres clearance from the kerb line.

P9 The type of extension should not exceed 4 metres in horizontal length for any individual segment.

P10 A straight drop extension may use a narrow structural profile on both sides to provide additional strength for different weather conditions.

P11 The fabric for this type of extension must be made of light weight canvas or a similar material.

P12 A coordinated colour scheme that is compatible with the main awning, with limited contrasting colours should be used for straight drop extensions. A selection from a palette of dark colours (dark green, indigo, black) is encouraged. Multiple, bright, and rainbow colours are discouraged.

P13 Display of any advertising text or signs on the straight drop extension is not supported. Any proposals of this nature are to be included in the development application.



Figure 10. Straight Drop Awning Extensions

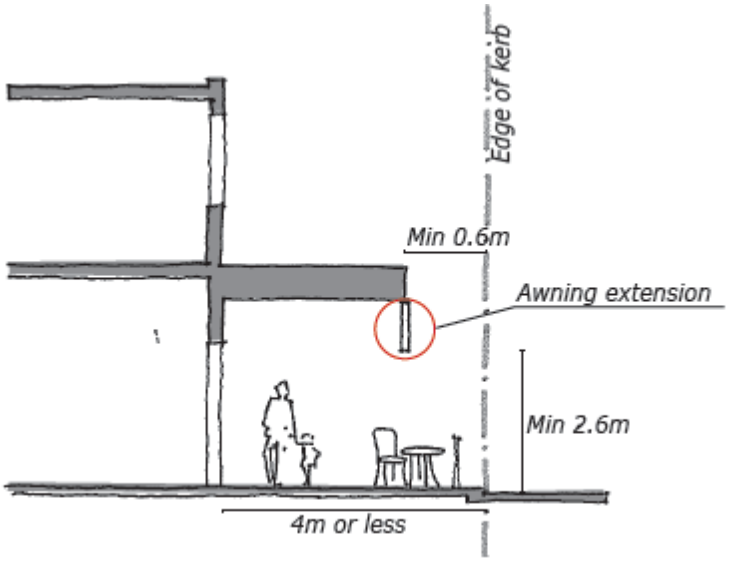


Figure 11. Straight Drop Awning Extensions

Retractable Awning Extensions (Horizontal)

P14 These are awnings attached to the main awning for the premises and are retractable in the horizontal plane to provide flexibility of use and to deal with variable weather conditions. They are not permanent fixture.

P15 A retractable awning extension is to be used only where the footpath has a width of 4 metres or more.

P16 This type of extension must be attached under the fascia of the main awning and the fixing mechanisms must not be visible from the street. The fascia of the main awning is to remain exposed.

P17 A minimum clearance of 2.6m from the underside of the extension to the footpath below must be maintained.

P18 A maximum 200mm plastic/canvas drop at the outer edge of the retractable awning is allowed for extra weather protection.

P19 The outer edge of the retractable awning is to have a minimum of 0.6 metres clearance from the edge of the kerb.

P20 A gutter profile must be installed at the outer edge of the retractable awning to direct rain water to the street.

P21 No vertical elements that attach the awning to the ground are permitted.

P22 The structural elements on the underside of the retractable extension are to be the minimum required to properly support and operate the awning, and are to be comprised of high quality architectural elements.

P23 This type of awning extension should not exceed more than four segments where it is parallel to the kerb.

P24 A coordinated colour scheme that is compatible with the main awning, with limited contrasting colours should be used for the awning extension. A selection from a palette of dark colours (dark green, indigo, black) is encouraged. Multiple, bright, and rainbow colours are discouraged.

P25 Display of any advertising text or signs on the retractable extension is not supported. Any proposals of this nature are to be included in the development application.



Figure 12. Retractable Awning Extensions

Permanent Awning Extensions

P26 These are awnings attached to the main awning for the premises as permanent structures that are not retractable.

P27 A permanent awning extension is to be used only where the footpath has a width of 4 metres or more.

P28 This type of extension must be attached under the fascia of the main awning and the fixing mechanisms must not be visible from the street. The fascia of the main awning is to remain exposed.

P29 A minimum clearance of 2.6 metres from the underside of the extension to the footpath below must be maintained.

P18 A maximum 200mm plastic/canvas drop at the outer edge of the permanent awning is allowed for extra weather protection.

P19 The outer edge of the permanent awning is to have a minimum of 0.6 metres clearance from the edge of the kerb.

P20 A gutter profile must be installed at the outer edge of the permanent awning to direct rain water to the street.

P21 No vertical elements that attach the awning to the ground are permitted.

P22 The structural elements on the underside of the extension are to have a narrow profile and be the minimum required to support the awning. The awning extension is to be comprised of high quality architectural elements.

P23 This type of extension should not exceed 4 metres in horizontal length for any individual segment.

P24 A coordinated colour scheme that is compatible with the main building, with limited contrasting colours should be used for the awning extension. A selection from a palette of dark colours (dark green, indigo, black) is encouraged. Multiple, bright, and rainbow colours are discouraged.

P25 Display of any advertising text or signs on the permanent extension is not supported. Any proposals of this nature are to be included in the development application.







Note: These photos provide examples of awnings that may be used as permanent awning extensions.

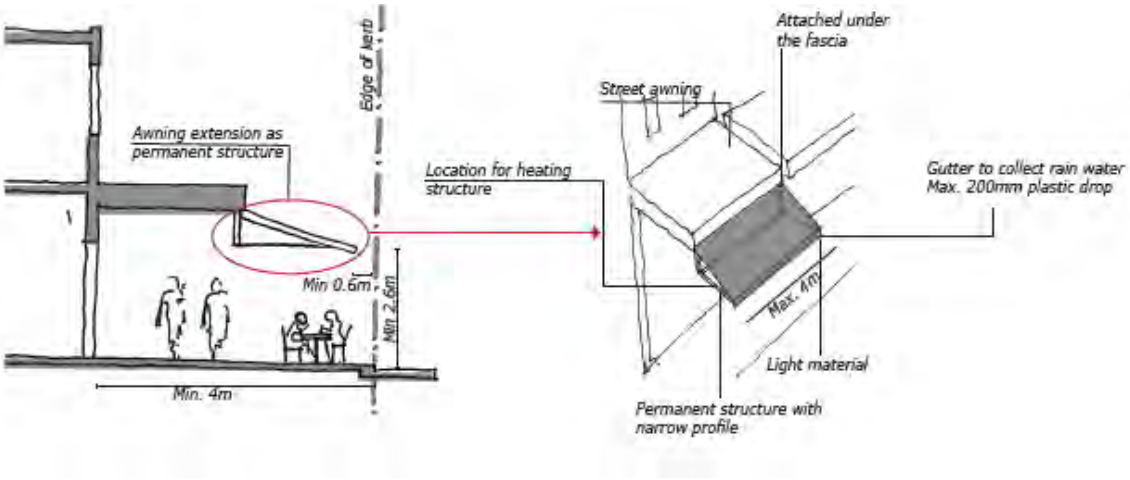


Figure 13. Permanent Awning Extensions



Retractable partial drop down awning extensions that are fixed to the underside of the fascia and in a coordinated colour scheme



Non retractable and/or permanent supporting structures holding the drop down awning extension is not allowed



Canvas materials are permitted as awning extensions and they should be fixed to the underside of the awning.



Awning extensions should not be fixed to the face of the awning fascia.



Retractable awning extensions



Permanent awning extension structures can obstruct visual connections between both sides of the street.





Side screens or panels on the side of the awning extension and café blinds that drop to the ground are not permitted.

3.2.20.5 Permanent Free Standing Awnings/Shade and Shelter Structures

Objectives

O1 To provide additional overhead weather protection to outdoor dining areas.

O2 To provide for variety in style and form of overhead weather protection including free standing shade structures and semi-permanent umbrellas.

O3 To maintain a harmonious and consistent public domain with minimal visual clutter and high levels of visual connection between both sides of the footpath.

Provisions

P1 Free standing awnings/shade structures will be considered only in the sections of the footpath that have a minimum depth of 5 metres.

P2 The structures may use any of the 4 styles indicated in the **Figure 14**.

P3 Styles 1 & 2 should be used in corners or sections of a street without awnings. Styles 3 & 4 should be mixed with street awnings for extra protection.

P4 The design and appearance of the structures are to be based on minimum structural elements with narrow profiles not exceeding 120mm and use of high quality architectural features.

P5 A free standing awning/shade structure must maintain a minimum clearance of 2.6 metres from the underside of the structure to the footpath below.

P6 The free standing awning structure (non-umbrella) must maintain a minimum 0.6 metres setback from the kerb line and a 0.3 metres clearance from any overhead main awning.

P7 A free standing umbrella is to be located behind low metal posts set into the pavement that have a minimum setback from the kerb of 0.6 metres.

P8 Canvas or other cover material used in the structures is to select from a palette of dark colours (dark green, indigo, black).

P9 Display of any advertising text or signs on the structure is not supported. Any proposals of this nature are to be included in the development application.

P10 Side drops of plastic or other material to provide extra weather or shade protection whether retractable or not are not permitted for Styles 1 & 2.

P11 For Styles 3 & 4 a side drop of plastic or other material to provide extra weather or shade protection whether retractable or not may be included provided it has a maximum drop of 200mm.

P12 For Styles 3 & 4 a gutter profile must be installed to direct rain water to the street. Suitable for deeper footpaths and higher awnings above 3.5m.

P13 Heating or lighting fixtures should be attached directly to the structure's frame.

P14 The structure is required to be integrated and aligned with any street fences, bollards, balustrades, posts and safety guards existing or proposed by the applicant where the structure is to be installed.

P15 The vertical posts or other structural elements supporting a free standing awning/shade structure must be coordinated with existing or proposed street posts or balustrades to avoid adding clutter to the streetscape.

P16 The location of a free standing awning/shade structure at a street corner or along a section of streets should at least not detract from and preferably improve the overall streetscape character and appearance.

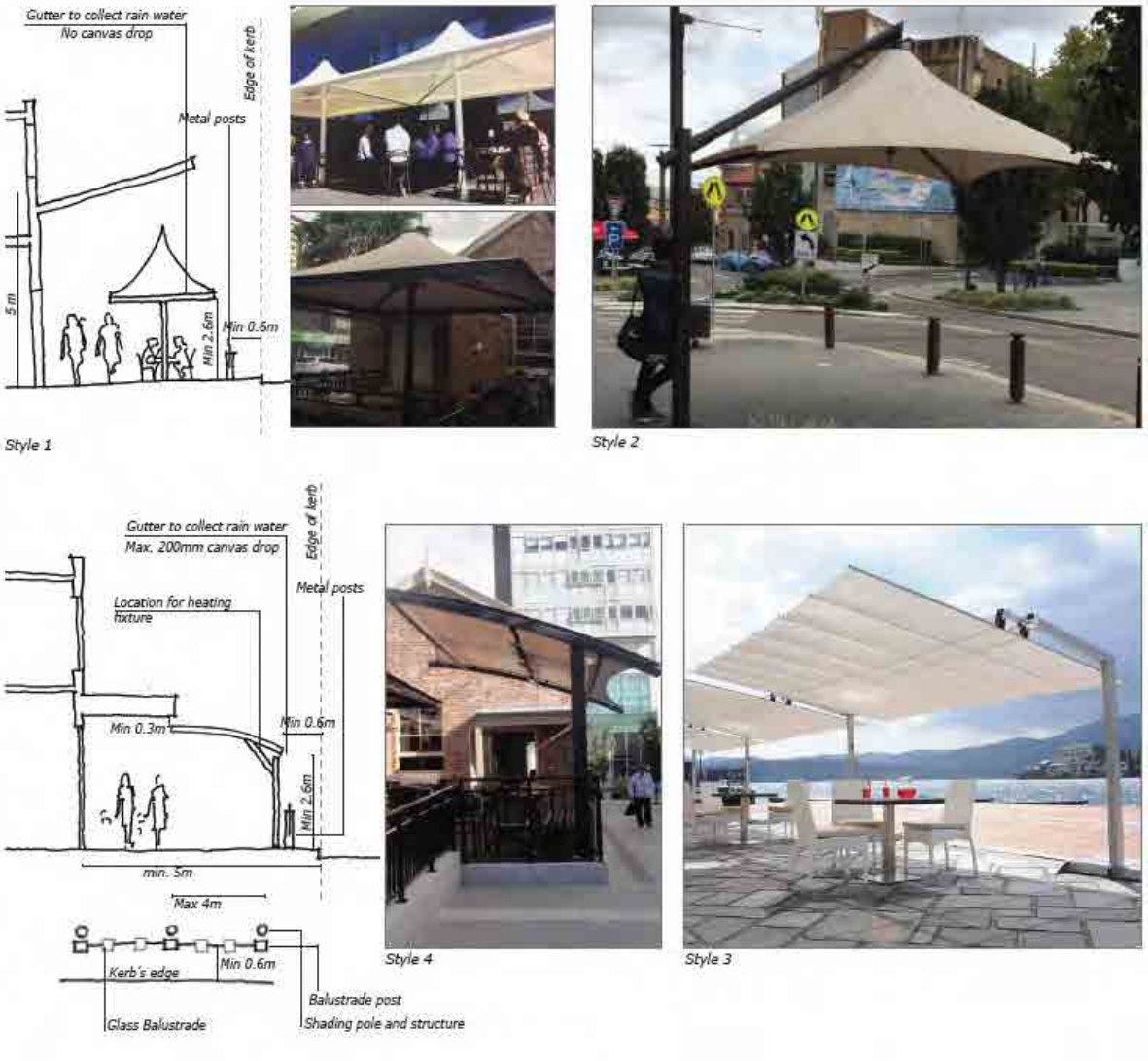


Figure 14. Styles of Permanent Free Standing Awnings/Shade Structures

3.2.20.6 Location of Awnings in Burwood Road

Burwood Road from Parramatta Road to Woodside Avenue provides many potential locations for outdoor dining areas that may include awning extensions or free standing shade and shelter structures that give additional weather protection.

This section of Burwood Road has many intersections with side streets and has different footpath widths and existing awning heights along its length, as well as different existing awning styles and streetscape characters.

Objective

O1 To indicate the preferred locations for the different types of awning extensions or free standing shade structures along Burwood Road.

Provisions

P1 The **Figure 15** provides the map indicating the preferred locations.

P2 Specific intersections are identified as locations for use of retractable awnings to maintain the continuity of the streetscape.

P3 The majority of the street length is identified for more than one possible awning extension type, to enhance the variety of the streetscape.

P4 Straight drop and retractable awning extensions are identified for use in street sections with narrow footpaths (as specified above).

P5 Sections of street with wider footpaths are identified for use with free standing umbrellas or shade structures. The map in **Figure 15** also indicates the preferred locations of free standing shade structures Style 2, umbrellas with a central post (Style 1) or fixed free standing shade structures (Styles 3 and 4).

Burwood Road Burwood,
Parramatta Road to Victoria Street

Burwood Road Burwood,
Victoria Street to Woodside Avenue

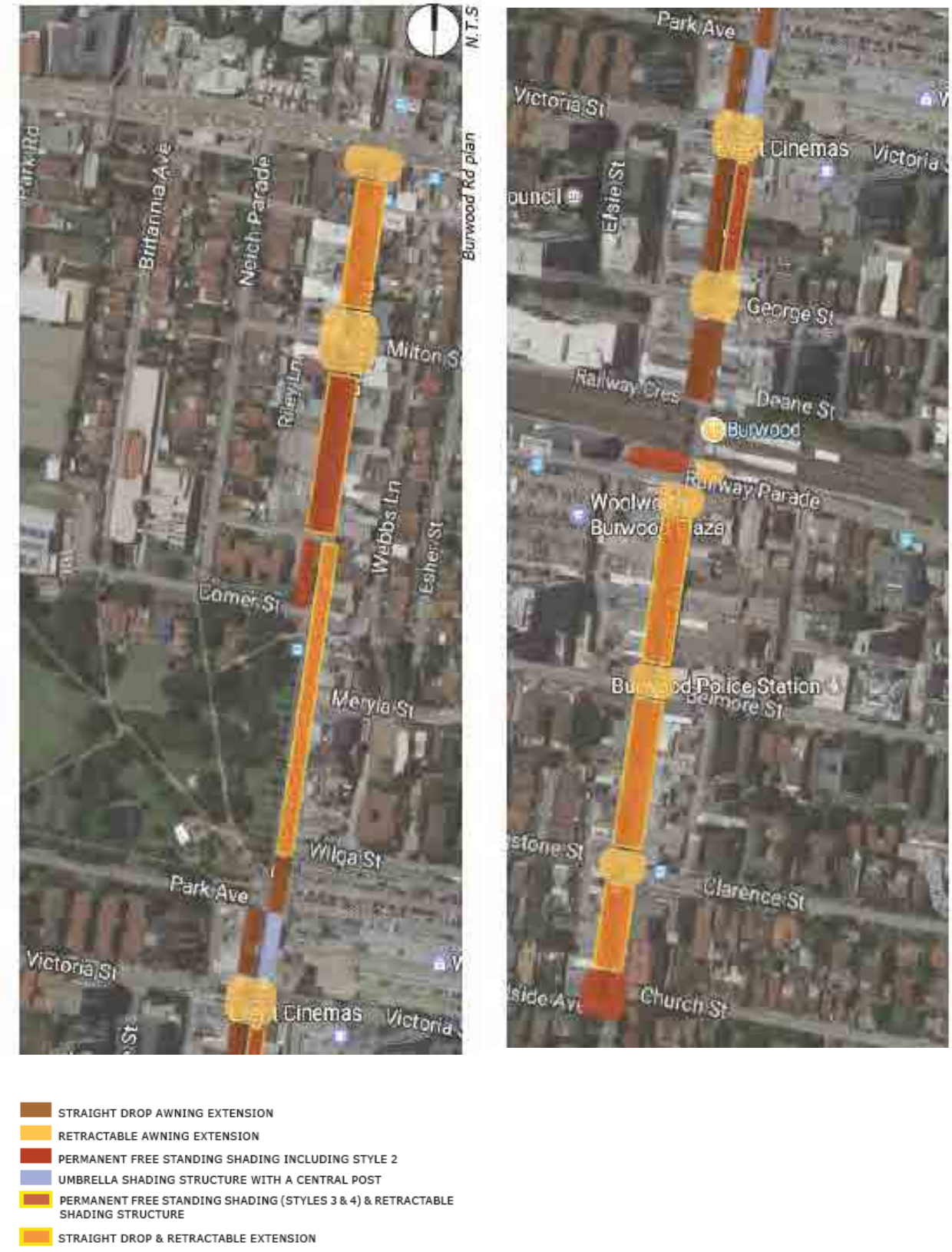


Figure 15. Appropriate Locations for Specific Awning Types

3.3 Area Based Controls – Burwood Town Centre and Burwood Road North



Figure 16. Burwood Town Centre and Burwood Road North Areas

Aims

The aims for the BTC and the contiguous Burwood Road North area are:

- To provide for a vibrant centre with a level of amenity that reflects its Major Centre status.
- To provide for a built form that supports appropriate urban design outcomes
- To ensure a building scale that complements existing heritage items and human-scale streetscape environments.
- To deliver a high standard of acoustic measures for residents within the Burwood Town Centre, High and Medium Density Areas, and Active Precincts – Zones R1. R3. E1 and MU1.
- To enable the delivery of housing in mixed use areas that include entertainment and other noise generating activities

3.3.1 Burwood Town Centre

Building Height Plane

Overview

The BLEP 2012 controls height through the maximum permissible building heights established in the Height of Buildings Map for the whole LGA, and through the application in addition of a Building Height Plane (BHP) in the BTC. This subsection indicates the objectives of the BHP and further explains how the BHP is determined and applied.

Objectives

O1 To maintain the amenity of land outside and adjoining the BTC and provide such land with adequate solar access.

O2 To illustrate how the BHP controls are applied.

Provisions

P1 The height of buildings on land within the BTC is not to project above the BHP as identified in Clause 4.3A and on the map marked - “Building Height Plane Map in the BLEP 2012.

Advisory Note:
The BTC is not orientated true north which explains the difference of solar angles along different parts of the Town Centre boundary as illustrated in **Figure 17**.

P2 For ease of reference the BHP particulars from the BLEP 2012 are set out in the map and table in **Figure 17**.

P3 For the purposes of providing additional guidance, **Figure 17** to **Figure 22** indicate the operation of the BHP in Conder Street and Wynne Avenue, Belmore Street, Clarence Street and Shaftesbury Road.

Advisory Note:
The Building Height Plane established under the Building Height Plane Map in the BLEP 2012 cannot be varied under Clause 4.6 of the BLEP 2012.



Building Height Plane

BHP Line Symbol	BHP Line Height	BHP Projected Angle	BHP General Orientation
	1.0m	54°	East of BHP line
	1.8m	54°	East of BHP line
	1.0m	36°	West of BHP line
	1.0m	33°	North of BHP line
	1.8m	33°	North of BHP line

Figure 17. BTC Building Height Plane Map and Table

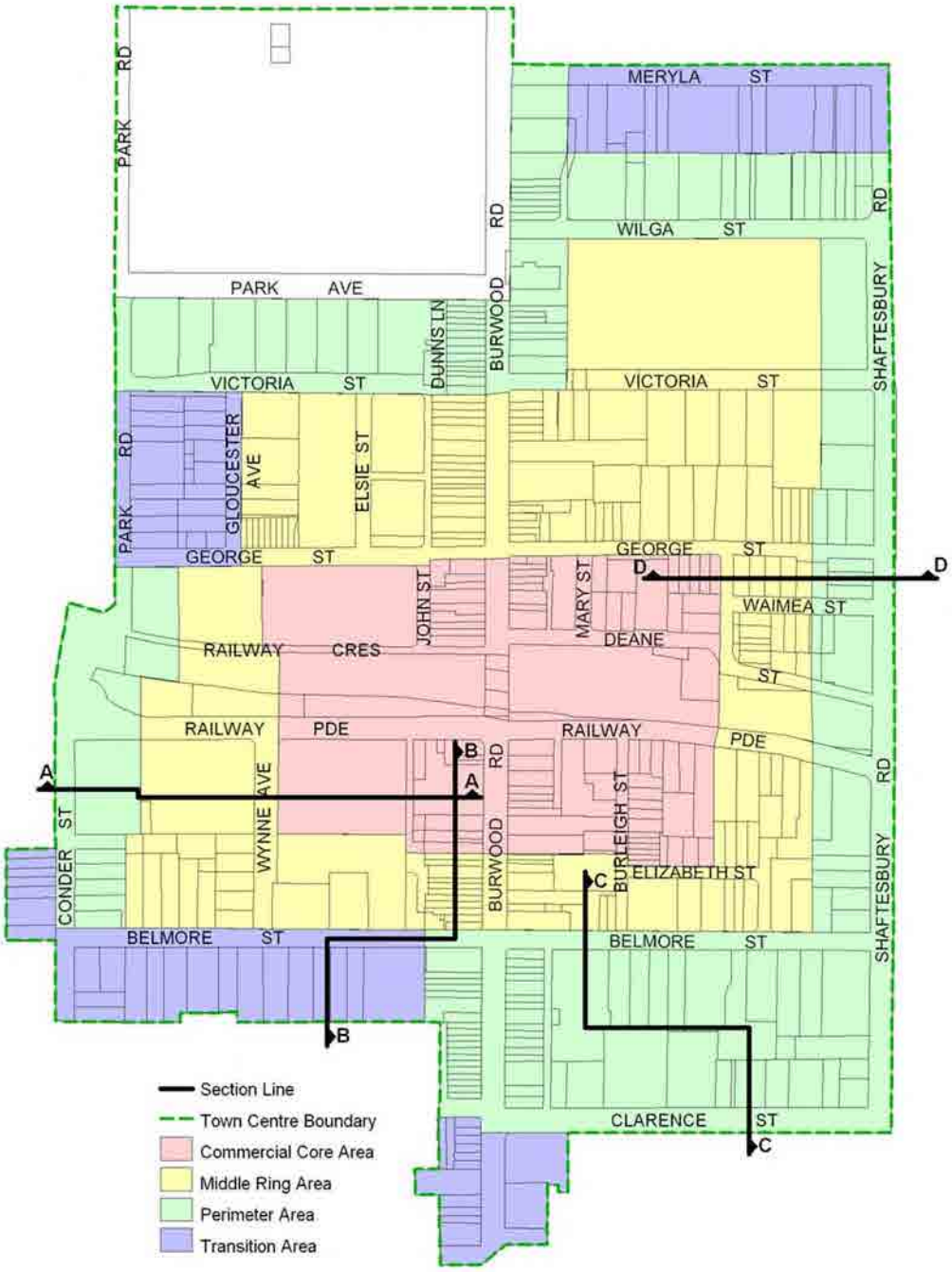


Figure 18. Building Height Plane Diagram Showing the Location of Section Plans

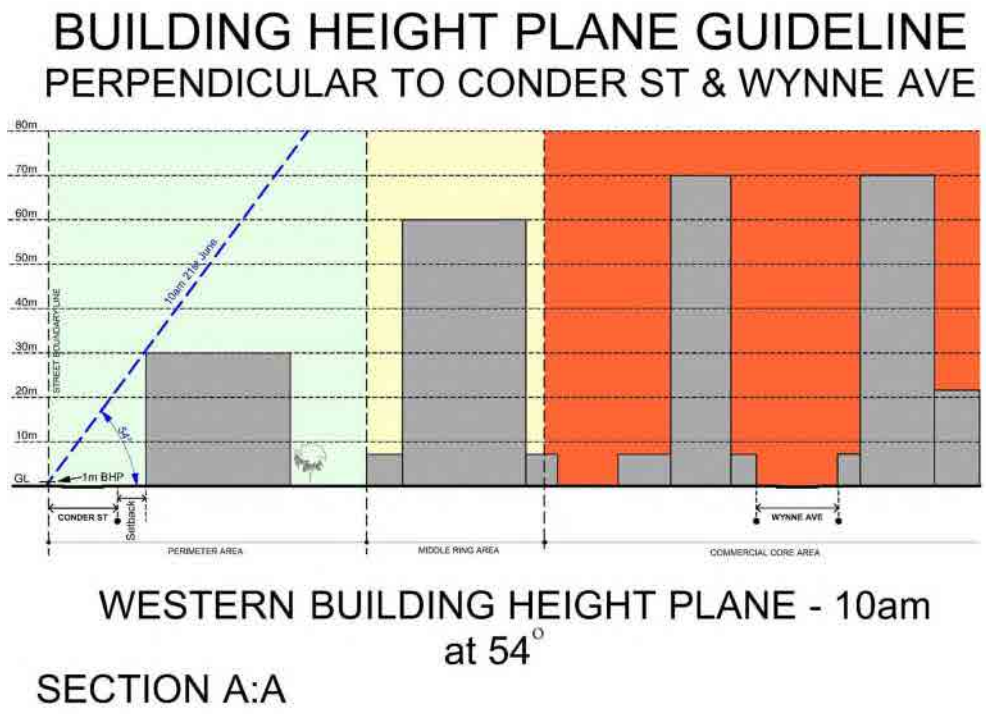


Figure 19. Building Height Plane Section A:A

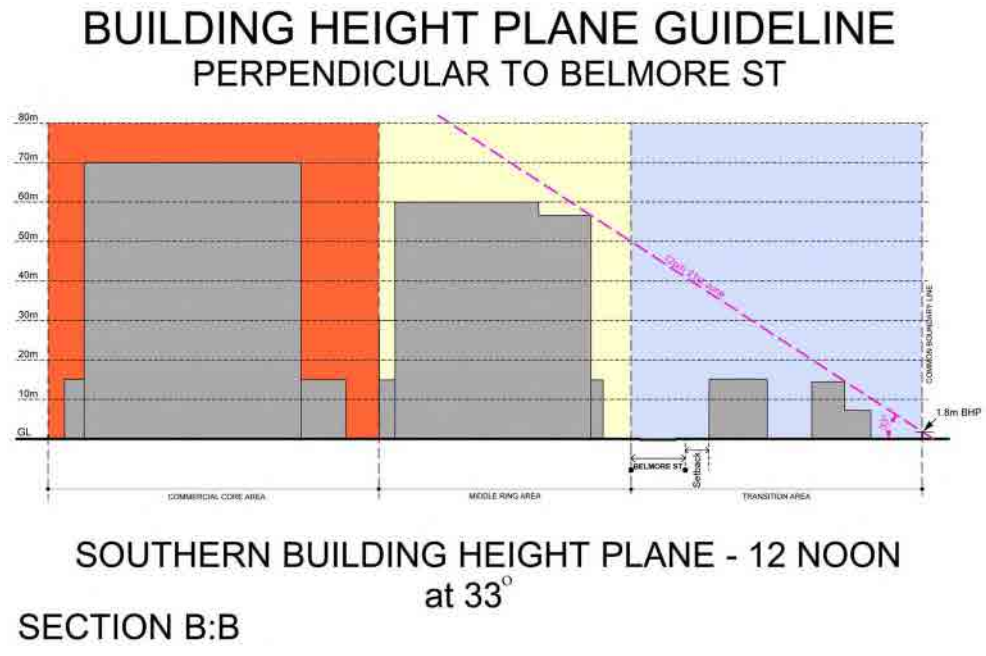


Figure 20. Building Height Plane Section B:B

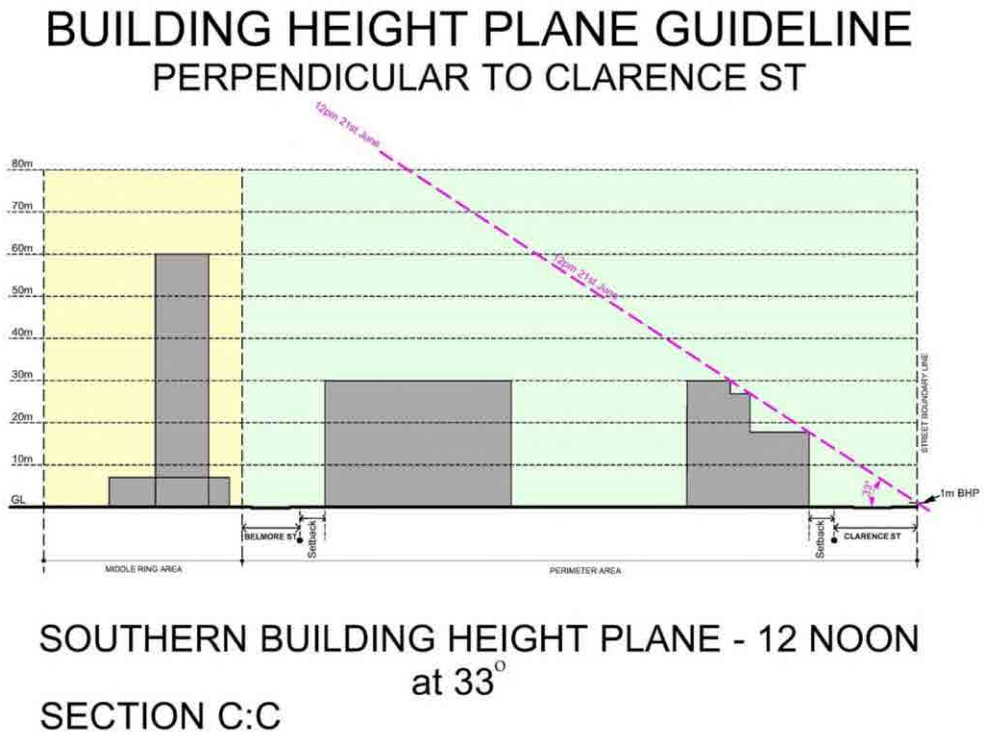


Figure 21. Building Height Plane Section C: C

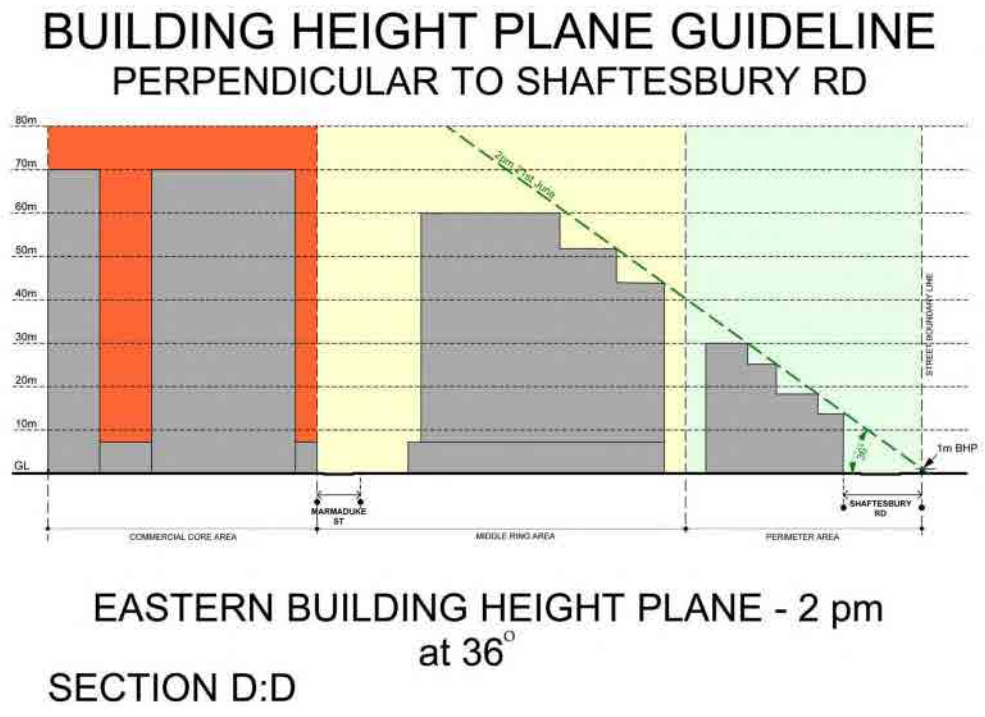


Figure 22. Building Height Plane Section D: D

P4 For the purpose of providing additional guidance, a BHP is to be calculated in accordance with the following formula:

H = V + (D x tan a)

H is the height measured in metres of a point in a BHP.

V is the height, specified in the BHP particulars table in P3 for the relevant BHP and measured in metres above ground level, at the street alignment or property boundary.

D is the horizontal distance, from the point in the BHP to the BHP line, measured in metres and being perpendicular to the BHP line, specified in the BHP particulars table in P3 for the relevant BHP.

a is the vertical angle in degrees specified in the BHP particulars table in P3, corresponding to the distance D for the relevant BHP.

The following diagrams illustrate how the formula applies:

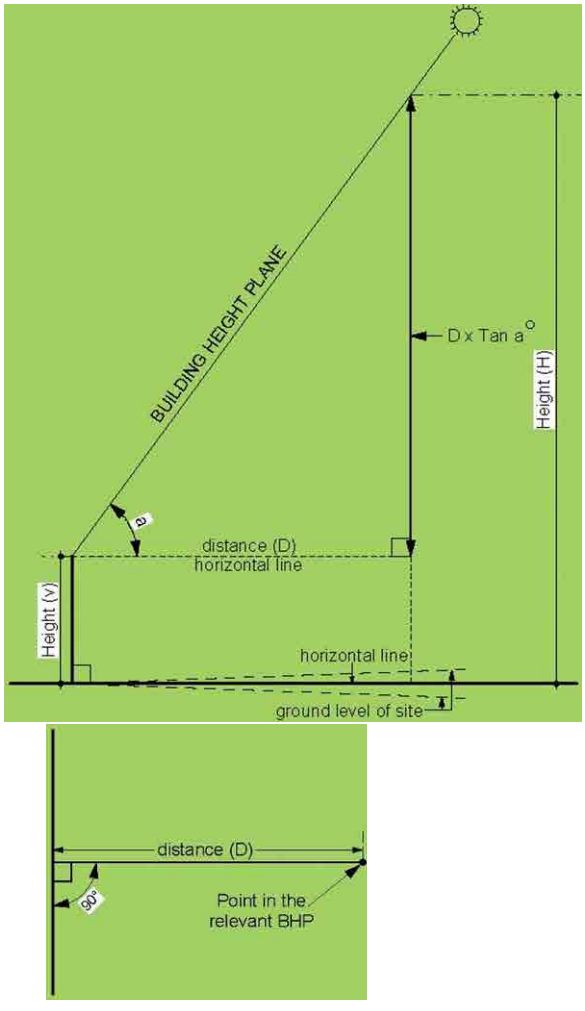


Figure 23. Building Height Plane Diagrams

Advisory Note:
The BHP formula calculates the height to a point on the BHP from a point horizontal with ground level at the street alignment. For sites with ground levels different to the street alignment ground level, the difference should be taken into account by the user to determine the height of a point in the BHP vertically above the ground.

3.3.2 Burwood Town Centre Areas

Overview

The BTC is divided into Areas known as the Commercial Core, Middle Ring, Perimeter and Transition Areas. These are shown in **Figure 24** - Burwood Town Centre Areas map.

For each of the four Areas, this section provides more detailed controls that aim to achieve the desired urban form in each area consistent with the development standards in the BLEP 2012.

Burwood Road is the main street in the BTC. It has a distinct role and current and future built form, and is subject to specific building controls.

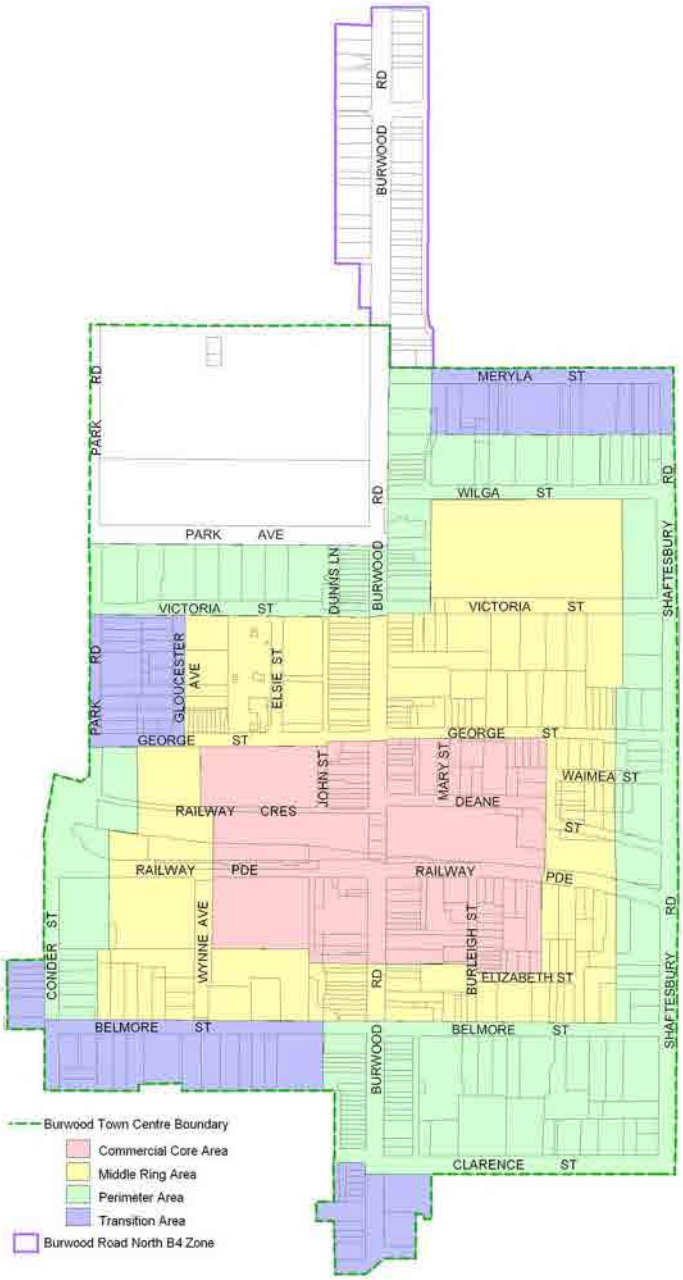


Figure 24. BTC Area Map Together with the Burwood Road North Area

Commercial Core and Middle Ring Areas

Overview

The Commercial Core and Middle Ring Areas are the inner parts of the BTC. It is envisaged that much of the commercial and retail development will be concentrated in these Areas. Residential development is also anticipated to the extent permitted under Clause 4.4A which imposes a maximum residential floor space ratio.

Podium Height

Objectives

O1 To develop human-scale street environments.

O2 To facilitate higher density development while maintaining the existing character of street development fronting Burwood Road.

Provisions

P1 Development in the Commercial Core and Middle Ring Areas built to the street front must not have a podium height greater than 15 metres.

Burwood Road

P2 Development along Burwood Road built to the street front must not be greater than 13 metres in height.

P3 Street front development along Burwood Road must enhance the existing streetscape and be of a similar scale, form, bulk, placement and character to adjoining and nearby street front development.

Street Front Setbacks

Objectives

O1 To develop and create a strong definition of streets and public spaces.

O2 To ensure that the built form assists in forming the character of the public urban space.

O3 To provide wider footpaths and improved pedestrian access at identified streets.

Provisions

P1 Development must be built to the street front boundary except where a minimum of 3 metre, 6 metre or 8 metre setback is required as indicated in **Figure 25**. These measurements are taken from the street boundary after any land acquisition required by BLEP 2012 has been completed.

P2 Setback areas must be free of any projections or encroachments, except for approved awnings (provided in accordance with Section 3.2.19 of this DCP) and at- grade landscaping.

P3 All ground level setbacks are to be finished at-grade with Council's footpath and finished with materials to match Council's current public domain requirements.

Burwood Road

P4 Development on Burwood Road must be built to the street front boundary.

P5 All development on Burwood Road that is located on a corner site must be built to the street front boundary as set out in **Figure 25**.



Figure 25. Commercial Core and Middle Ring Areas: Street front setbacks

P6 Notwithstanding P4 and P5 above, for the construction of a new building, substantial redevelopment, or substantial refurbishment of an existing building on sites 121-125 Burwood Road and 168 Burwood Road, Burwood, a unique urban design response must be prepared to achieve the following outcomes:

- Enhance the heritage view of the former Burwood Post Office.
- Facilitate and establish a public plaza along the Burwood Road frontage.
- Improve pedestrian safety, access, and movement to and around the site.

To achieve these outcomes:

(i) For the construction of a new building, a minimum street frontage setback of 8 metres to Burwood Road and 3 metres to Railway Parade must be provided.
(ii) For the substantial redevelopment of existing buildings, a minimum street frontage setback of 8 metres to Burwood Road must be provided.
(iii) For the substantial refurbishment of existing buildings, the façade must be opened and unimpeded pedestrian circulation at ground level along Burwood Road is to be provided.
(iv) For subclauses (ii) and (iii) above, Council may consider an alternate creative design solution which in the opinion of Council provides an equivalent or better design whilst meeting the intended design outcomes of the clause.

Definitions:

Substantial redevelopment refers to any building modification that results in any one or a combination of the following:

- Modifies the floor layout of the building's existing gross floor area by 51% or more.
- Increases the building's gross floor area by 51% or more.
- Intensifies patronage at the site by 51% or more.

Substantial refurbishment refers to any building modification that results in any one or a combination of the following:

- Modifies the floor layout of the building's existing gross floor area by 15% to 50%.
- Increases the building's existing gross floor area by 15% to 50%.
- Intensifies patronage at the site by 15% to 50%.

Secondary Setbacks

Objectives

O1 To establish the spatial proportions and enhance the urban qualities of the street.

Provisions

P1 Where development in the Commercial Core and Middle Ring Areas exceed 15 metres in height, the part of the development above 15 metres must be set back a minimum of 6 metres from the street front boundary, unless otherwise specified in P3 and **Figure 28**. Refer to **Figure 26** and **Figure 27**.

P2 Setback areas must be free of any projections or encroachments.

Burwood Road

P3 Where development along Burwood Road exceeds 13 metres in height, the part of the development above 13 metres must be set back a minimum of 8 metres from the street front boundary. Refer to Figure 5(a).

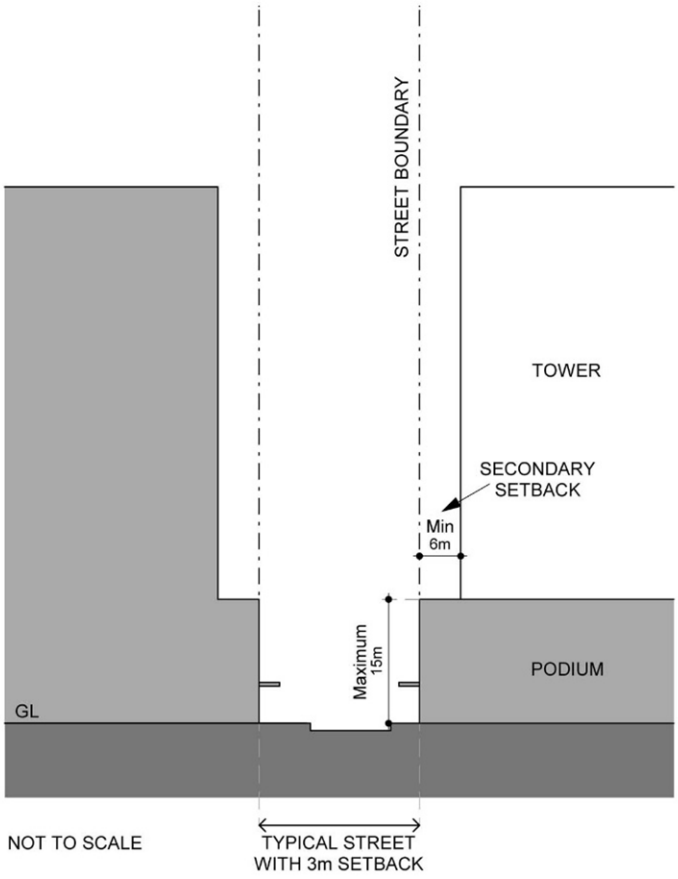


Figure 26. Commercial Core and Middle Ring Areas: Typical Secondary Setbacks

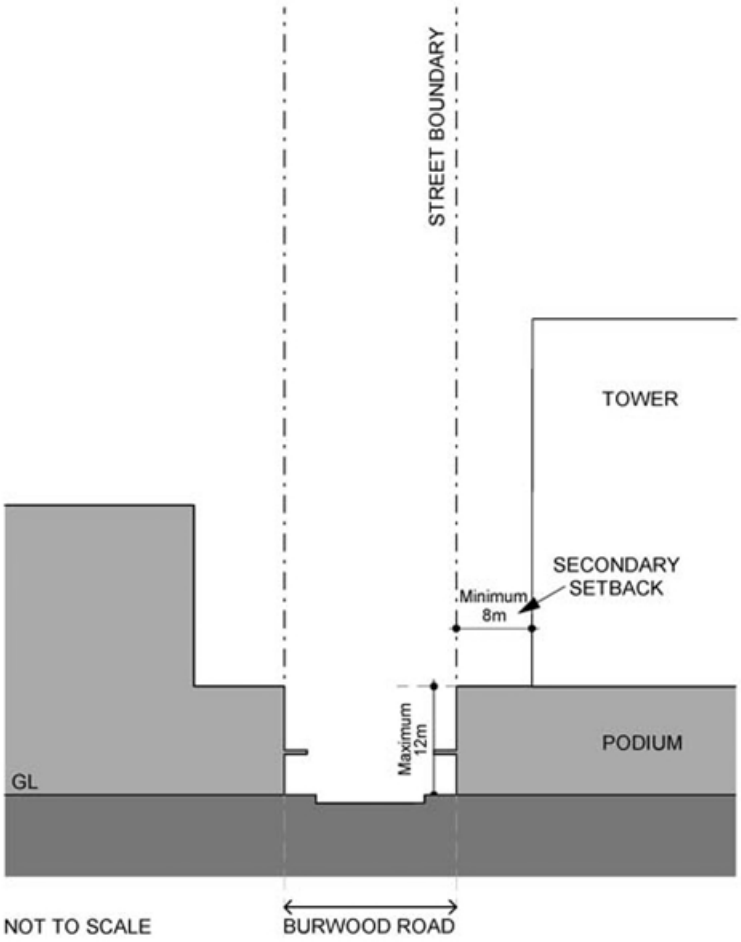


Figure 27. Burwood Road: Burwood Road Secondary Setbacks – Section Diagram



Figure 28. Commercial Core and Middle Ring Areas: Secondary Setbacks

Side and Rear Setbacks

Objectives

01 To define the urban form of development in the Commercial Core and Middle Ring Areas.

Provisions

P1 For residential development refer to the building separation setback provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Flat Development.

P2 Other street front development up to 15 metres in height must be built to the side boundary and may be built to the rear boundary. Refer to **Figure 29**.

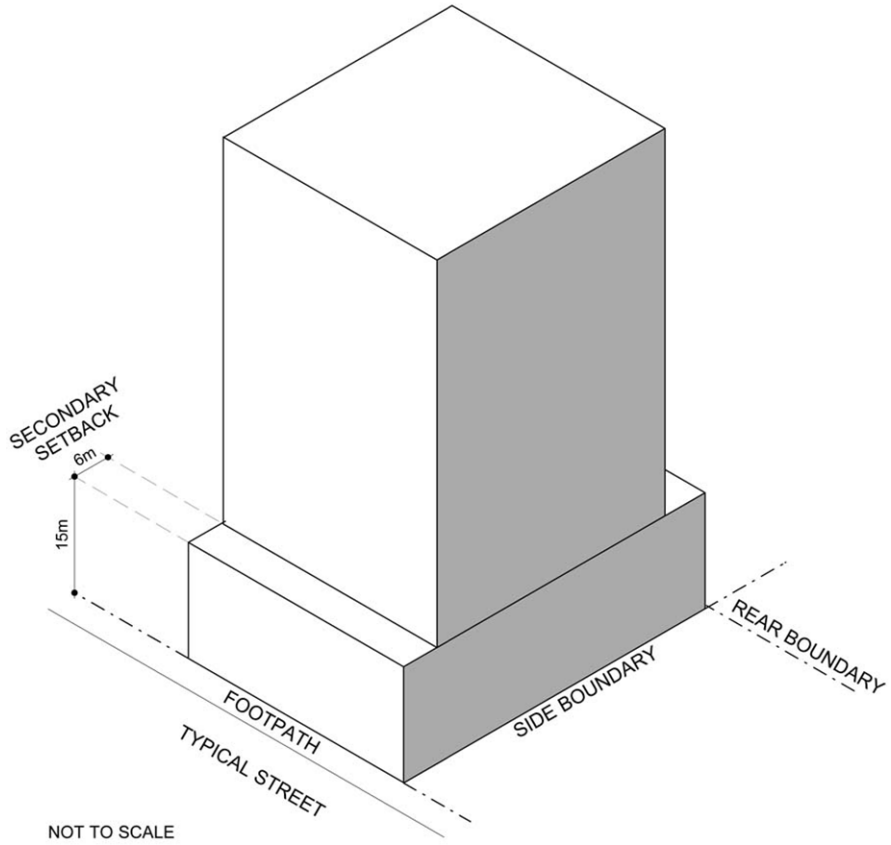


Figure 29. Commercial Core and Middle Ring Area: Typical Midblock Development Setbacks

Building Separation/Frontage Overview

Overview

Building separation provides appropriate levels of amenity for the private and public domain.

Objectives

O1 To ensure that development has appropriate massing and spacing between buildings and frontage to any building.

O2 To assist in achieving acceptable levels of visual and acoustic privacy.

O3 To ensure distant views and vistas are achieved.

Provisions

P1 For all development refer to the building separation provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Flat Development.

Advisory Note:
The same rules apply to residential and non-residential development in terms of building separation.

P2 The building separation requirements established under P1 must be shared equally with adjoining development across a boundary (refer to **Figure 30**. The applicant must demonstrate that daylight access, urban form, open space and visual and acoustic privacy can be satisfactorily achieved.

P3 The maximum length in any direction of any part of a building parallel to the street above 15 metres in height is 45m (refer to **Figure 31**). This portion of the building must be suitably articulated to alleviate building mass and improve building appearance.

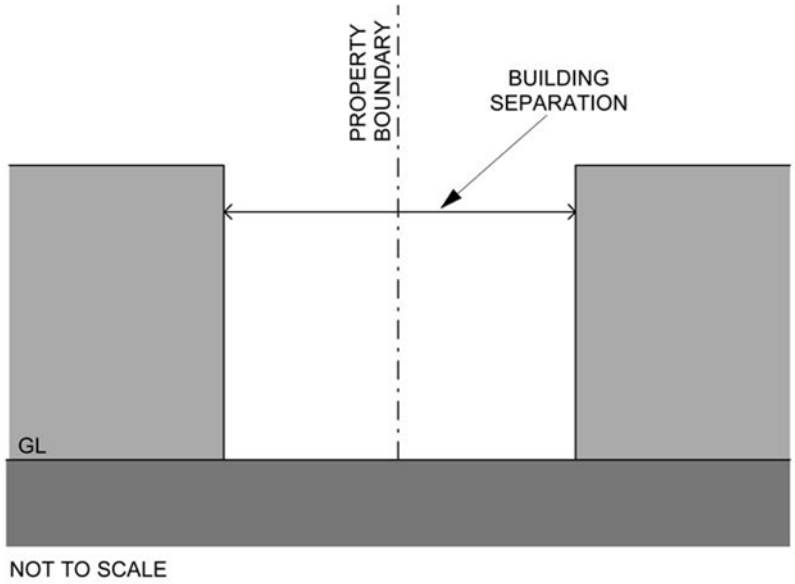


Figure 30. Separation between Buildings across a Property Boundary

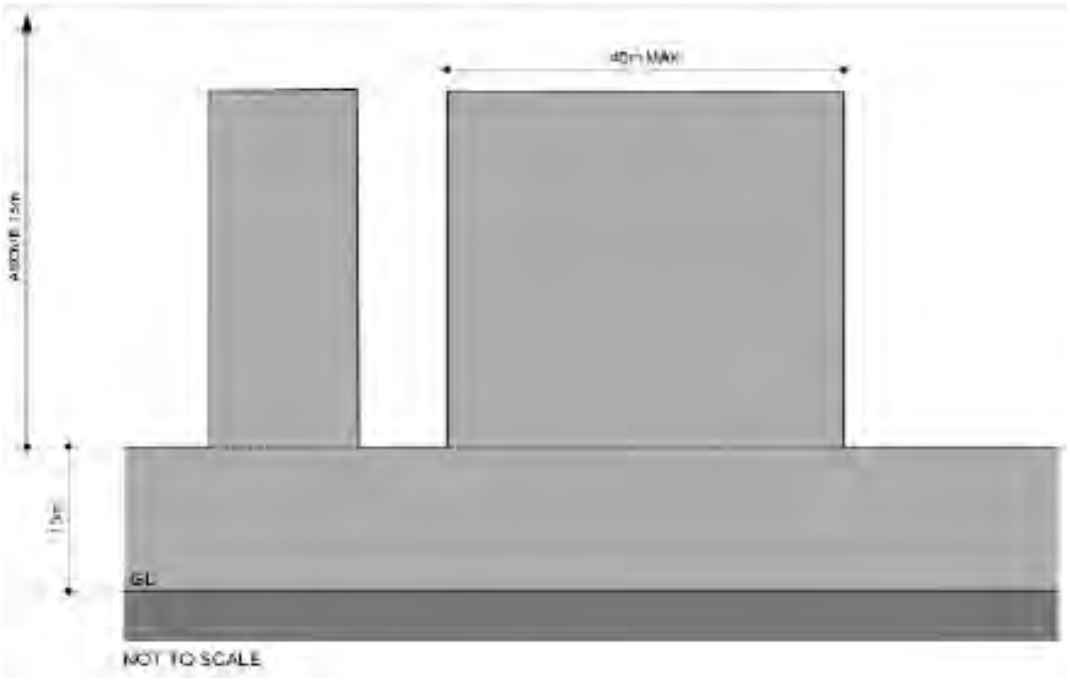


Figure 31. Separation between Buildings on the Same Site – Section Diagram

Communal Open Space

Objectives

O1 To provide communal passive and active recreational opportunities.

O2 To provide communal open space that facilitates soft landscaping.

O3 To ensure that communal open space is consolidated, configured and designed to be usable and attractive.

Provisions

Podium Areas

P1 Podium areas must be made accessible as communal open space.

P2 Landscaping must be provided in communal open space. A minimum 0.6 metre soil depth must be provided over 50% of the area to support planting or soft landscaping.

Roof Tops

P3 Accessible communal open space may be provided on roof tops of development.

P4 The design of roof top communal open space must also have regard to its visual and acoustic impact and effects of wind.

P5 For residential development refer to the communal open space provisions of the ADG which supplements SEPP 65 – Design Quality of Residential Flat Development.

Advisory Note: Any opportunity for rooftop gardens or landscaping is encouraged to add to residential and visual amenity. Designs should encourage "greener" rooftops that incorporate planting, while minimising concrete and expanses of hard surfaces. Section 3.2.3 requires at least 50% of the rooftop area to be vegetated.

Perimeter and Transition Areas

Overview

The Perimeter and Transition Areas are located around the boundary of the BTC. Residential development is expected to predominate in these Areas as it is not restricted.

Street Front Setbacks

Objectives

O1 To improve the quality of the public domain.

O2 To invigorate the street front to provide the opportunity for commercial development at ground level.

O3 To develop appropriate street edge setbacks for development in the Perimeter and Transition Areas, which reflect the established setbacks throughout these Areas as well as have regard for the desired future character for the Areas.

Provisions

P1 Development must be built in accordance with the street front setback requirements shown in **Figure 32**. Building setbacks from the street front are taken from the street boundary after any land acquisition required by BLEP 2012 has been completed.

Burwood Road

P2 Development on Burwood Road must be built to the street front boundary.

P3 All development on Burwood Road that is located on a corner site must be built to the street as set out in **Figure 32**.

P4 Development must have a setback from the street front boundary on the east side of Conder Street extending from Railway Parade to Belmore Street that is consistent with Item 47 in Schedule 5 and the Heritage Map of BLEP 2012, being the former Burwood Council Office building (1887 building only).

P5 Development must have the setback required as shown in **Figure 32** for all other streets.

Building setbacks of 0-6m from the street front are taken from the street front boundary after any land acquisition required by BLEP 2012 has been completed.

P6 Setback areas must be free of any projections or encroachments, except for approved awnings (provided in accordance with Section 3.2.19 of this DCP) and at grade landscaping.



Figure 32. Perimeter and Transition Areas: Street Front Setbacks

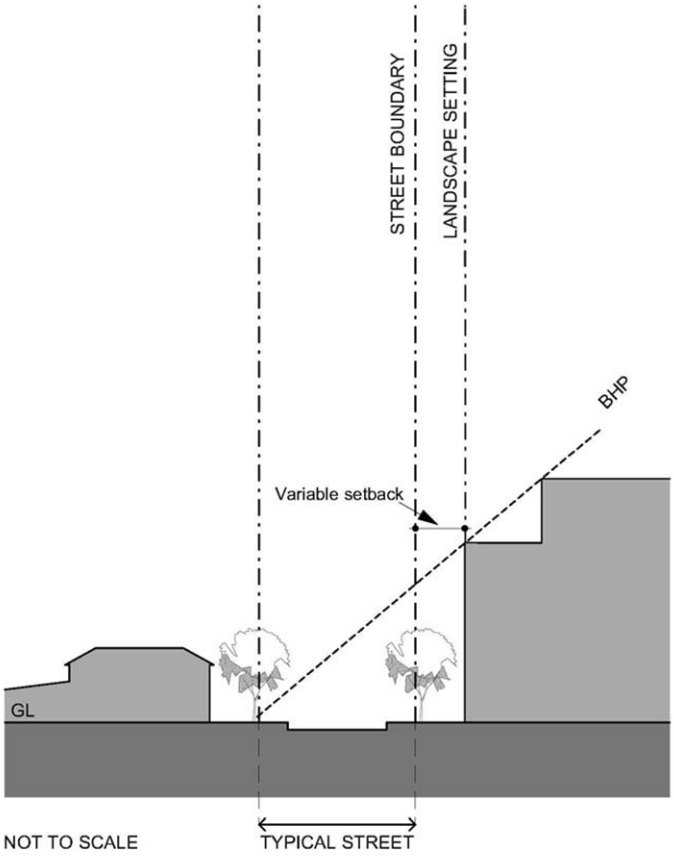


Figure 33. Perimeter and Transition Areas: Typical Street Front Setbacks

Secondary Setbacks

Objectives

O1 To facilitate higher density development while maintaining the existing character of street development fronting Burwood Road.

Provisions

Burwood Road

P1 Development along Burwood Road built to the street front must not be greater than 13 metres in height. Where development exceeds 13 metres in height, the part of the development above 13 metres must be setback a minimum of 8m from the street front boundary in Burwood Road, and a minimum of 6m from the street boundary in side streets (except for Railway Parade). Refer to **Figure 34**.

P2 Street front development along Burwood Road must enhance the existing streetscape and be of a similar scale, form, bulk, placement and character to adjoining and nearby street front development.



Figure 34. Burwood Road: Secondary Setbacks Diagram

Side and Rear Setbacks

Objectives

O1 To minimise the amenity impact of development on adjoining properties.

Provisions

P1 For residential development refer to the side and rear setbacks provisions of the ADG which supplements SEPP 65 – Design Quality of Residential Flat Development.

Building Separation

Objectives

O1 To ensure appropriate amenity of developments.

Provisions

P1 For all development refer to the building separation provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Flat Development.

P2 The setbacks as set out in P1 must be shared equally with the adjoining development. The applicant must demonstrate that daylight access urban form, open space and visual and acoustic privacy can be satisfactorily achieved. Where agreement cannot be reached between the property owners, the separation distance should be distributed equally between the two properties.

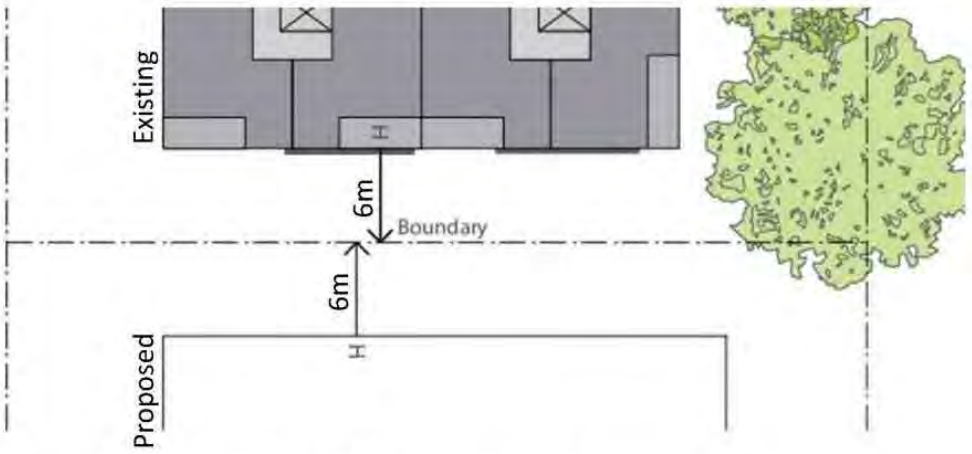


Figure 35. Separation distances

Communal Open Space

Objectives

O1 To provide communal passive and active recreational opportunities.

O2 To provide communal open space to facilitate soft landscaping wherever possible.

O3 To ensure that communal open space is consolidated, configured and designed to be usable and attractive.

O4 To provide a pleasant outlook and contribute to privacy between buildings.

Provisions

P1 The street front setback areas must be provided as communal open space, except for circumstances referred to in Section 3.8.2 Treatment of Street front Setbacks.

P2 Where the ground floor uses are commercial, fencing of the street front setback is prohibited.

P3 Where ground floor uses are residential, the street front setback area may be secured, however the setback is to remain a communal space with only one perimeter fence, and must not to be further divided.

P4 Existing mature trees must be retained wherever possible.

P5 Where existing trees are removed, they must be replaced at a ratio of two new trees for each tree removed.

P6 At least 50% of the street front setback areas must be provided as planting or soft landscaping.

P7 Canopy trees must be provided at the rate of 1 per 30 sq metres of landscaped area provided within the street front setback area.

P8 Development which requires a minimum 6 metre setback from the street front boundary, in a landscaped front setting, are to provide deep soil zones and provide trees planted as selected from Council's Street Tree Management Strategy (STMS).

P9 Development which requires a setback from the street front boundary, in a landscaped front setting, that is less than 6 metres, are to plant trees from the following list:

- Callistemon viminalis 'Hannah Ray'.
- Callistemon 'Kings Park Special'.
- Callistemon citrinus.
- Buckinghamia celsissima.
- Bauhinia variegate.
- Albizia julibrissin.
- Backhousia citriodora.
- Lagerstroemia indica.
- Leptospermum petersonii.
- Gordonia axillaris.
- Melaleuca 'Revolution Green'.
- Tristaniopsis laurina.
- Photinia x fraseri.
- Tibouchina grandulosa 'Alstonville'.

Burwood Road

P10 Podium areas must be made accessible as communal open space.

P11 Accessible communal open space may be provided on roof tops of development

P12 The design of roof top communal open space must also have regard to its visual and acoustic impact and the effects of wind.

Advisory Note: Any opportunity for rooftop gardens or landscaping is encouraged to add to residential and visual amenity. Designs should encourage "greener" rooftops that incorporate planting, while minimising concrete and expanses of hard surfaces. Section 3.2.3 requires at least 50% of the rooftop area to be vegetated.

3.3.3 Area Based Controls - Burwood Road North

Overview

This section applies to the Burwood Road North area shown on the map in **Figure 16**. This area is expected to develop with a mix of land uses including commercial fronting Burwood Road and residential accommodation. It will have a similar character to other areas of the BTC with Burwood Road frontage and where Perimeter Area development standards apply.

Street Front Setbacks

Objectives

O1 To improve the quality of the public domain.

O2 To invigorate the street front to provide the opportunity for commercial development at ground level.

Provisions

P1 All development must be built to the street front boundary of Burwood Road and any side street (**Figure 36**).

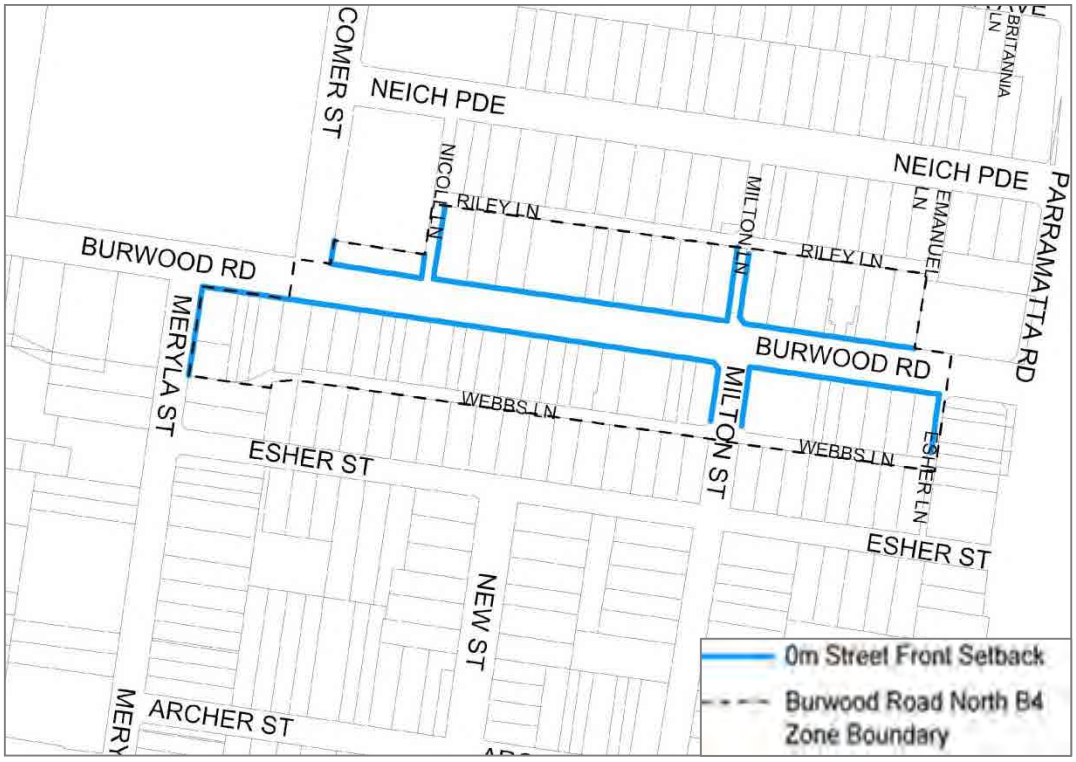


Figure 36. Burwood Road North: Street Front Setback

Secondary Setbacks

Objectives

O1 To facilitate higher density development while maintaining the existing character of street development fronting Burwood Road.

Provisions

Burwood Road

P1 Development along Burwood Road built to the street front must not be greater than 13 metres in height. Where development exceeds 13 metres in height, the part of the development above 13 metres must be setback a minimum of 8m from the street front boundary in Burwood Road, and a minimum of 6m from the street boundary in side streets (**Figure 37**).

P2 Street front development along Burwood Road must enhance the existing streetscape and be of a similar scale, form, bulk, placement and character to street front development in Burwood Road.

P3 Setback areas must be free of any projections or encroachments.

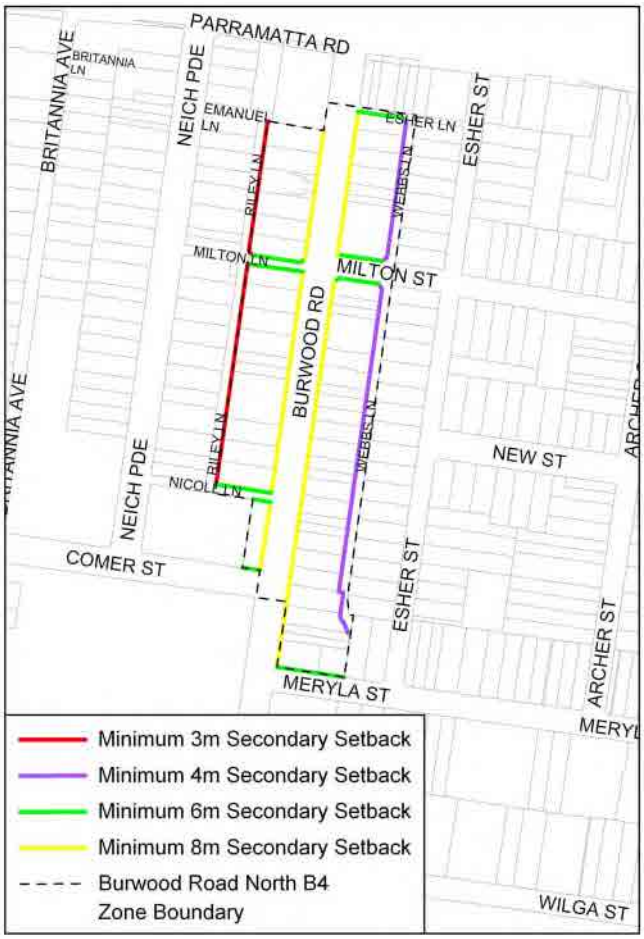


Figure 37. Burwood Road North: Secondary, Side and Rear Setbacks

Side and Rear Setbacks

Objectives

O1 To minimise the amenity impact of development on adjoining properties in residential zones to the east and west.

Provisions

P1 Buildings at the rear of properties fronting Burwood Road may be built to the street front of Riley Lane or Webbs Lane to a maximum height of 13 metres. Any part of a building above 13 metres is to be setback a minimum of 3 metres from Riley Lane and 4 metres from Webbs Lane (**Figure 37**).

P2 All development is required to have regard to the side and rear setbacks provisions of the ADG which supplements SEPP 65 – Design Quality of Residential Apartment Development.

P3 Setback areas must be free of any projections or encroachments, except for at-grade landscaping.

Other Provisions

In the Burwood Road North area the requirements for building separation and communal open space are the same as those applying to the Perimeter and Transition Areas of the BTC.

Special perimeter and transition areas

P1 Secondary setbacks above 15m street wall height to be minimum 6m.

P2 Projections, encroachments or lightweight balconies must not penetrate the secondary setback.

3.4 Area Based Controls – Strathfield Town Centre

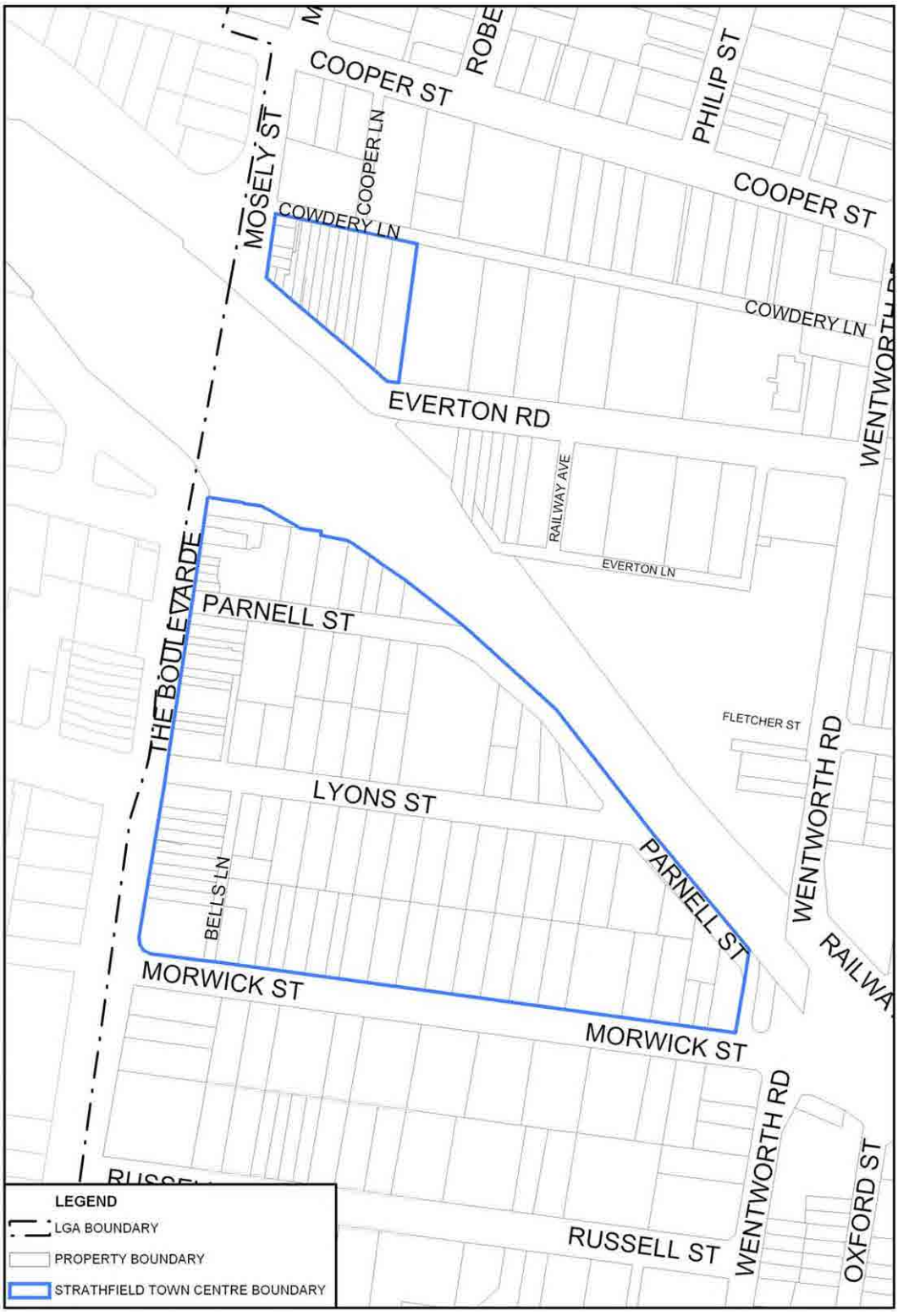


Figure 38. Area of Strathfield Town Centre in Burwood LGA

3.4.1 Overview

Strathfield Town Centre (STC) has developed in close proximity to and mostly to the south of the Strathfield Railway Station. The Centre is divided by the railway line and the north-south boundary of the LGAs of Burwood and Strathfield. The section of the STC within the Burwood LGA is outlined in **Figure 38**. Historically it has served a perimeter role in the whole Centre.

The BLEP 2012 substantially enlarges the STC in the Burwood LGA under a B4 Mixed Use zone. The Strathfield Sports Club is a substantial land use that functions within the enlarged STC area.

3.4.2 Desired Future Character

The aims for the STC are:

To encourage vibrancy and a level of amenity reflecting the area's Town Centre status.

To provide for a built form that supports appropriate urban design outcomes.

To encourage a human-scale and active street level environment.

The B4 Mixed Use zone and the applicable development standards for the STC will facilitate evolution towards a higher density residential precinct that takes advantage of its location close to the rail station and bus hub. On land closer to The Boulevarde and the rail station, the maximum residential floor space ratio control is likely to support substantial growth in commercial floor space for services activities and local employment. Further to the east, land may be developed fully for residential purposes or include some commercial floor space, depending on developers' assessment of market demand. Setback requirements and maximum podium heights will aim to encourage a human-scale environment at street level in the area closer to the rail station, while larger landscaped setbacks are required on land in the eastern part of the Centre.

3.4.3 Specific Controls

Street Front Setbacks

Objectives

O1 To create a strong definition of streets and public spaces.

O2 To ensure that the built form assists in establishing the character of the public urban space.

O3 To improve the quality of the public domain and its consistency with existing street front development.

O4 To invigorate the street front by facilitating commercial development at ground level.

Provisions

P1 Development must comply with the street front setback required as shown in **Figure 39**.

P2 All ground level setbacks are to be finished at-grade with the Council footpath and with materials to match Council's current public domain requirements.

P3 Development at ground level must have an active street frontage (entrances, shop front, glazing) at the same general level as the footpath, and be accessible directly from the street.

P4 The setback area must be free of projections or encroachments, except for approved awnings and at-grade landscaping.

Podium Height

Objectives

O1 To develop a human-scale and active street environment.

O2 To facilitate higher density development while maintaining the existing character of street development.

Provisions

P1 Development with a 0m street front setback as required in Section 3.4.3.1 P1 must not have a podium height greater than 11 metres (refer to **Figure 40**).

P2 Development built to the street front must enhance the existing streetscape and be of a similar scale, form, bulk, placement and character to adjoining and nearby street front development.

P3 Buildings on corner sites are to be articulated to address each street frontage and are to define prominent corners

Secondary Setbacks

Objectives

O1 To establish spatial proportions that enhance the urban qualities of the street.

Provisions

P1 Where development exceeds 11 metres in height, the part of the development above 11 metres must be set back a minimum of 6 metres from the street front boundary (refer to **Figure 40** and **Figure 41**).

P2 Setback areas must be free of any projections or encroachments.

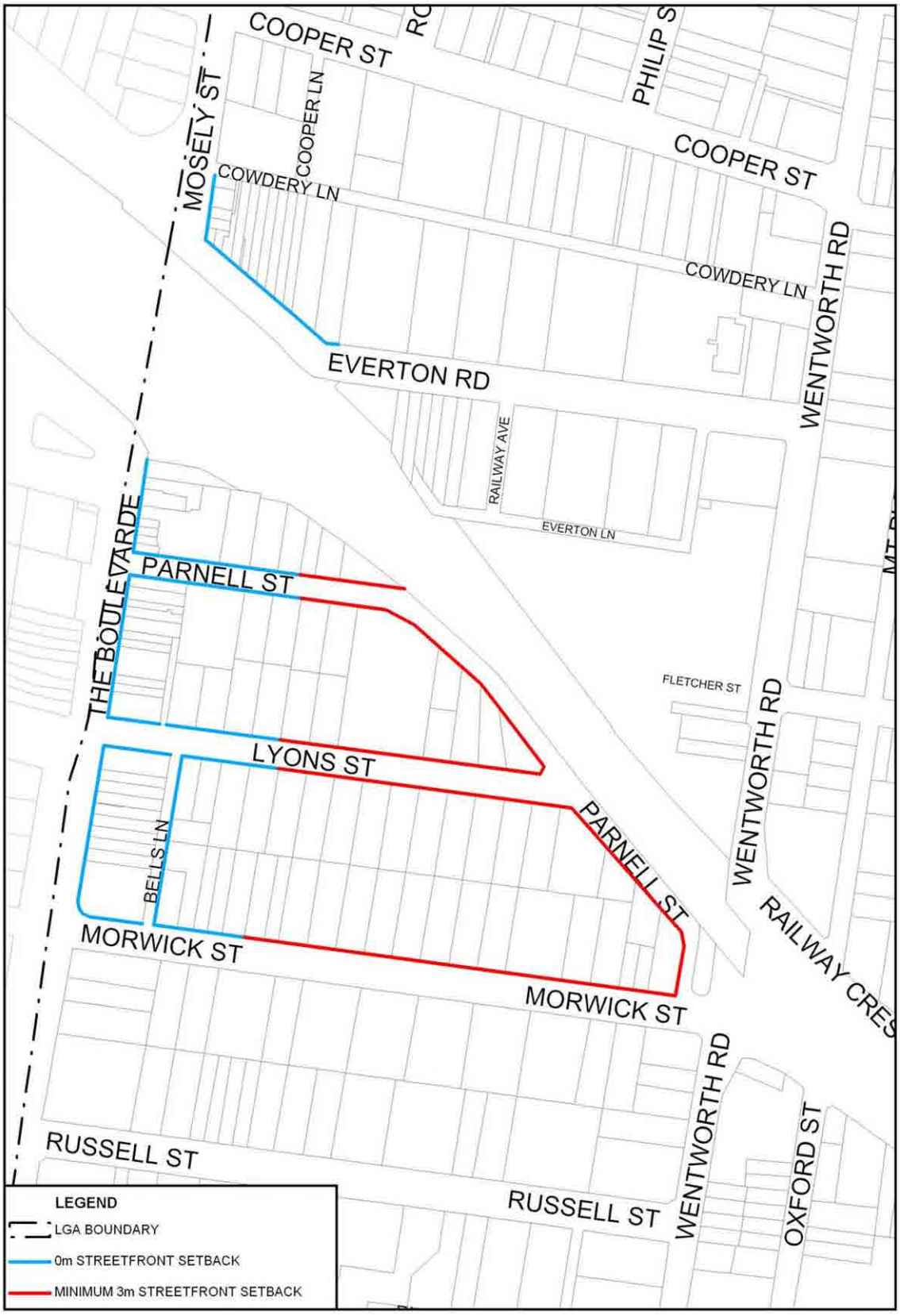


Figure 39. Street Front Setbacks in Strathfield Town Centre

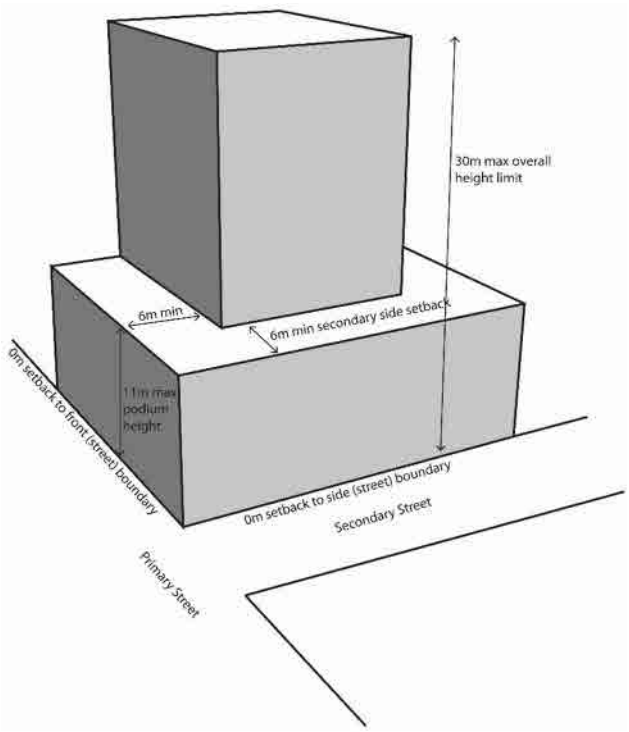


Figure 40. Height Limits and Setback Requirement Where 0m Street Front Setback Applies

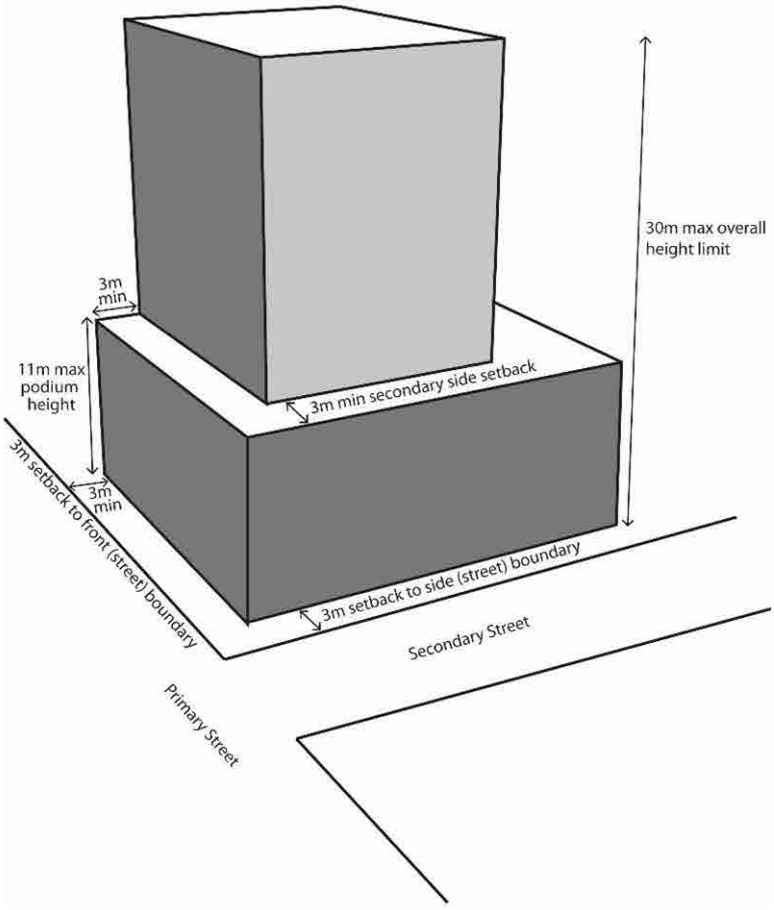


Figure 41. Height Limits and Setback Requirement Where 3m Minimum Street Front Setback Applies

Side and Rear Setbacks

Objectives

01 To define the urban form of development.

O2 To minimise the amenity impact of development on adjoining properties.

O3 To allow deep soil planting.

Provisions

P1 For residential development refer to the building separation setback provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Apartment Development.

P2 Non-residential development up to 11 metres in height must be built to the side boundary and may be built to the rear boundary, whether or not there is a rear laneway.

P3 Setback areas must be free of any projections or encroachments, except for at-grade landscaping.

Building Separation/Frontage

Overview

Building separation aims to improve the levels of amenity for the private and public domain.

Objectives

O1 To ensure that development has appropriate spacing between buildings and that limits are applied to the massing of buildings and the lengths of continuous facades.

O2 To assist in achieving acceptable levels of visual and acoustic privacy.

Provisions

P1 For all development refer to the building separation provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Apartment Development.

Advisory Note:
The same rules apply to residential and non-residential development in terms of building separation and frontage.

P2 The building separation requirements established under P1 must be shared equally with adjoining development across a boundary (Refer to **Figure 30**). The applicant must demonstrate that daylight access, urban form, open space and visual and acoustic privacy can be satisfactorily achieved.

P3 The maximum length in any direction of any part of a building more or less parallel to the street above 11 metres in height is 45m (refer to **Figure 31**). This portion of the building façade must be suitably articulated to alleviate building mass and improve building appearance.

Communal Open Space

Objectives

O1 To provide communal passive and active recreational opportunities.

O2 To provide communal open spaces that facilitate soft landscaping wherever possible.

O3 To ensure that communal open space is consolidated, configured and designed to be usable and attractive, and is integrated into the streetscape where appropriate.

O4 To provide a pleasant outlook and contribute to privacy between buildings.

Provisions

P1 The street front setback areas of developments must be provided as communal open space, except where a 0m street front setback is required (**Figure 39**)

P2 Where a setback is provided and the ground floor uses are commercial, fencing of the street front setback is prohibited, and the setback areas must be integrated within the streetscape.

P3 Where ground floor uses are residential, the street front setback area may be secured with a single perimeter fence. However the setback area is to remain as communal space for the development and must not to be further divided or allocated to a strata unit.

P4 Where a setback is provided, existing mature trees must be retained wherever possible.

P5 Where existing trees are removed, they must be replaced at a ratio of 2 new trees for each tree removed.

P6 At least 50% of the street front setback areas must be provided as planting or soft landscaping.

P7 Canopy trees must be provided at the rate of 1 per 30 sq metres of landscaped area provided within the street front setback area.

P8 Development which requires a setback from the street front boundary, in a landscaped front setting, that is less than 6 metres, are to plant trees from the following list:

- Callistemon viminalis ‘Hannah Ray’
- Callistemon ‘Kings Park Special’
- Callistemon citrinus
- Buckinghamia celsissima
- Bauhinia variegate
- Albizia julibrissin
- Backhousia citriodora
- Lagerstroemia indica
- Leptospermum petersonii
- Gordonia axillaris
- Melaleuca ‘Revolution Green’
- Tristaniopsis laurina
- Photinia x fraseri

- Tibouchina grandulosa 'Alstonville'

P9 Development that provides a front set back area greater than 6 metres from the street front boundary and a rear setback of 4m is to include deep soil zones and provide trees planted as selected from Council's Street Tree Management Strategy (STMS).

Rooftops

P1 Accessible communal open space may be provided on rooftops of development.

P2 The design of rooftop communal open space must have regard to its visual and acoustic impact and effects of wind, with suitable screening being provided

P3 For residential development refer to the communal open space provisions of the ADG which supplements SEPP 65 – Design Quality of Residential Apartment Development.

Advisory Note:
Any opportunity for rooftop gardens or landscaping is encouraged to add to residential and visual amenity. Designs should encourage "greener" rooftops that incorporate planting, while minimising concrete and expanses of hard surfaces. Section 3.2.3 requires at least 50% of the rooftop area to be vegetated.

3.5 Area Based Controls – Local and Neighbourhood Centres

Aims

The aims of this DCP section are:

To support and maintain the important role that local centres play in providing retail and other services to the local community.

To support economic sustainability of the shops and businesses serving the local community, in particular the daily shopping needs of residents.

To provide for residential development in conjunction with shops and permitted commercial uses.

To help maintain and enhance the social character and liveability of the centres.

Local and Neighbourhood Centres

3.5.1 Croydon Park Local Centre

Overview

The Croydon Park Local Centre (**Figure 42**) is characterised by retail and commercial uses within mostly traditional linear premises along Georges River Road between Brighton Street and Beaufort Street (approximately two blocks), divided by the public school that also fronts the main road. The mostly older terrace style premises are unified by the suspended awnings and the repetition of parapets and panel windows. The newer buildings generally are of a consistent scale.

Desired Future Character

The B2 Local Centre zone will continue and reinforce the existing character and role of the area. The applicable development standards will increase the development capacity while the maximum Residential FSR control will limit residential floor space within shop top housing to about 80% of that potentially available.

In this context, redevelopment within the Croydon Park Local Centre is likely to comprise infill floor space or new construction that optimises provision of shop top housing while ground floors of buildings will retain permitted commercial activities serving a local market but with some sub-regional functions.

Physically the ground floor uses and residents above will provide an active street character while the retention of continuous awnings and a maximum podium height of 9m will reinforce the pedestrian scale of the built form. A transition in building height and scale at the rear (north) of sites will minimise overshadowing and amenity issues for the adjoining lower density residential dwellings.

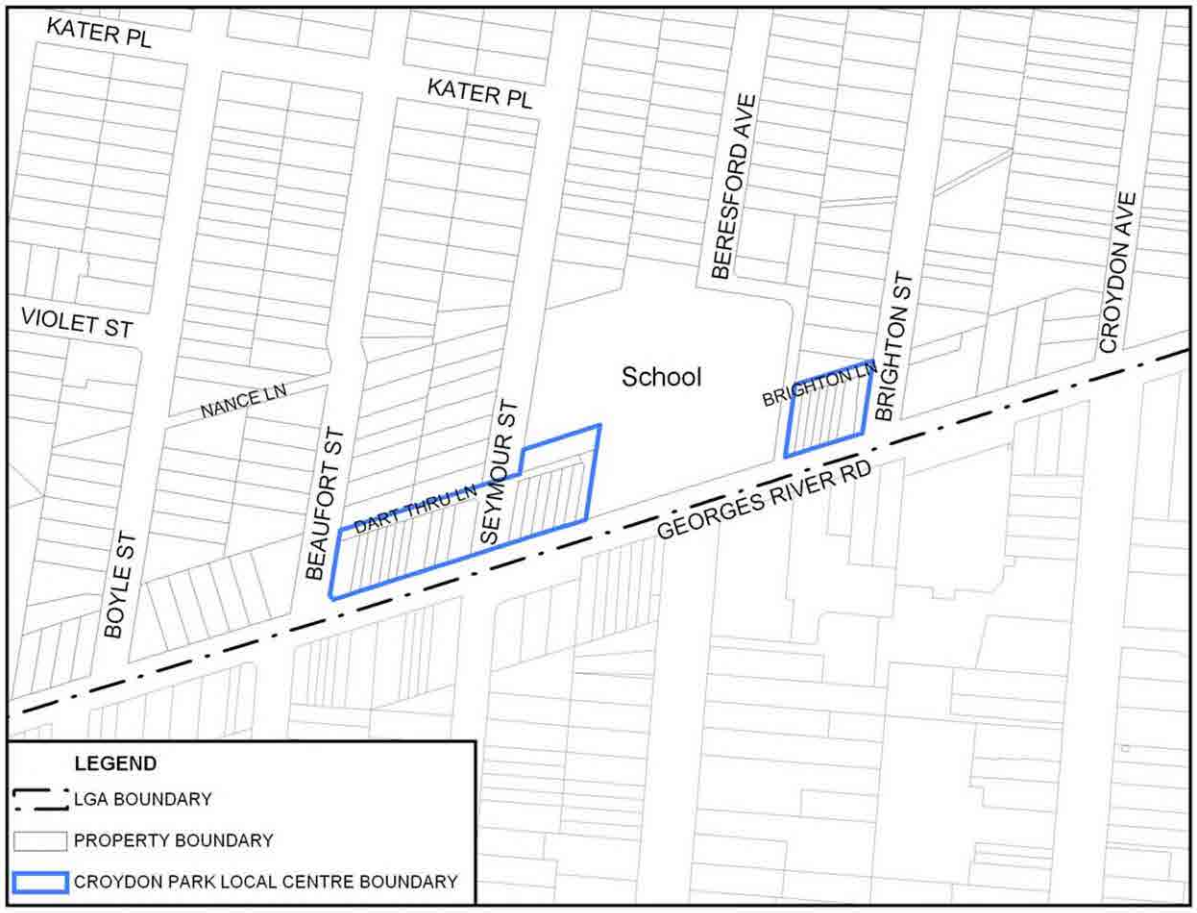


Figure 42. Croydon Park Local Centre

3.5.2 Enfield Local Centre

Overview

Enfield Local Centre (**Figure 43**) comprises the retail and commercial activities located along Liverpool Road from Burwood Road in the east and continuing onto Coronation Parade in the west.

Near the intersection of Liverpool Road and Coronation Parade/The Boulevarde the centre comprises a mixture of traditional linear shops and newer buildings of a similar height and style. Around the intersection of Liverpool Road and Burwood Road the buildings include a mixture of traditional linear shops, older style residential flat buildings and newer commercial buildings as well as the cultural landmarks of the Royal Sheaf Hotel and the heritage listed St Joseph's Church.

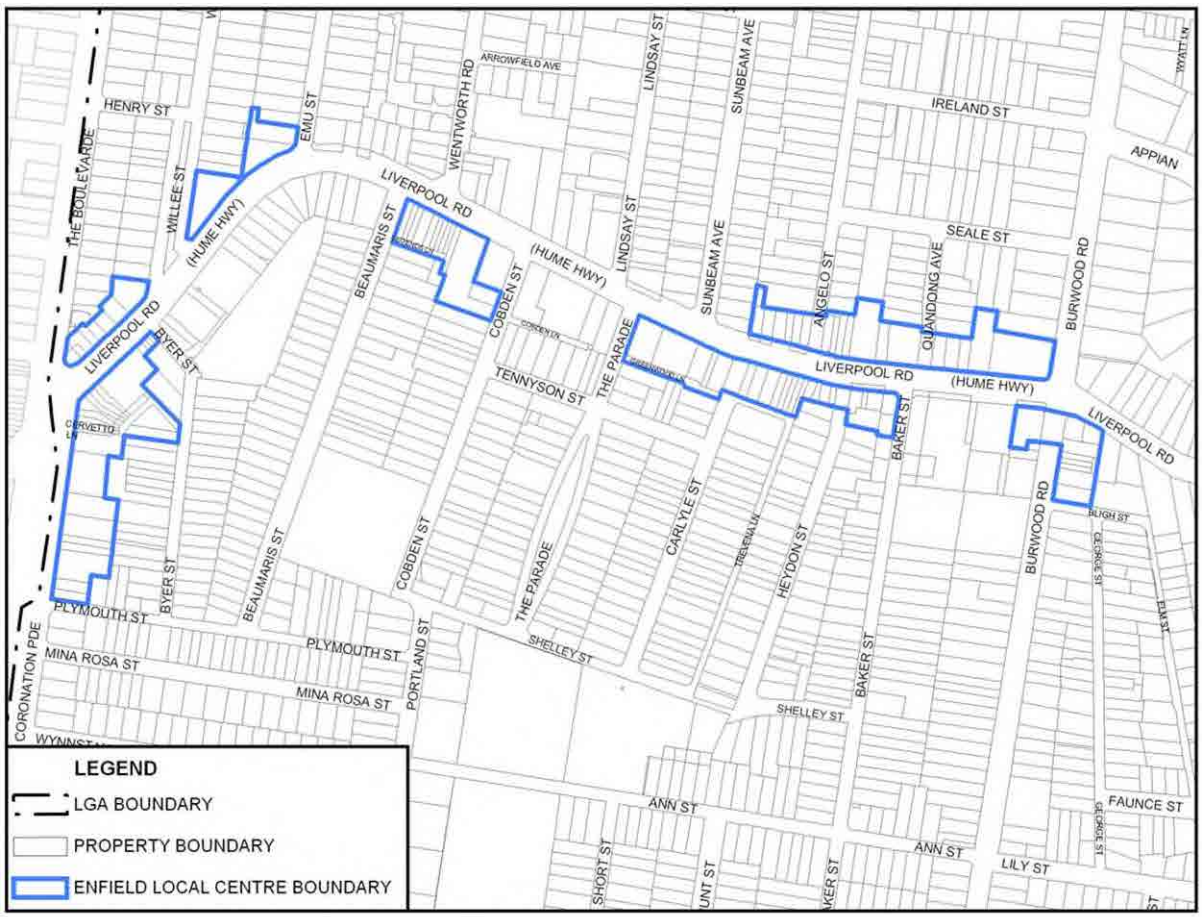


Figure 43. Enfield Local Centre

Desired Future Character

The B2 Local Centre zone and applicable developments standards will increase the floor space capacity overall while the maximum Residential FSR control will limit the residential floor space within shop top housing to about 88% of that potentially available on a development site.

In this context, redevelopment within the three areas that make up the Enfield Local Centre is likely to comprise new infill floor space or new construction that optimises provision of shop top housing where residents can take advantage of good public transport access and local services.

The land on the northern side of Liverpool Road between Burwood Road and Quandong Avenue that includes the Royal Sheaf Hotel site, is subject to lower development standards of 11m maximum building height and 1.5:1 FSR, in recognition of the historical development controls and the acknowledged heritage quality of the Hotel building and the Conservation Areas to the north and east.

Controls for Enfield and Croydon Park Local Centres

Street Front Setbacks

Objectives

O1 To create a strong definition of streets and public spaces.

O2 To ensure that the built form assists in establishing the character of the public urban space.

O3 To improve the quality of the public domain and its consistency with existing street front development.

O4 To invigorate the street front by facilitating commercial development at ground level.

Provisions

P1 Development must be built to the street front boundary.

P2 All development located on a corner site must be built to the street front boundary except the area required for any rear setback.

P3 All ground level setbacks are to be finished at-grade with the Council footpath and finished with footpath materials to match Council's current public domain requirements.

P4 Development at ground level must have an active street frontage (entrances, shop front, glazing) at the same general level as the footpath, and be accessible directly from the street.

P5 The front setback area must be free of projections or encroachments, except for approved awnings and at-grade landscaping.

Podium Height

Objectives

O1 To develop a human-scale and active street environment.

O2 To facilitate higher density development while maintaining the existing character of street

Provisions

P1 Development built to the street along Georges River Road, Coronation Parade, Liverpool Road and Burwood Road must not have a podium height greater than 9m.

P2 Street front development must enhance the existing streetscape and be of a similar scale, form, bulk, placement and character to adjoining and nearby street front development.

P3 Buildings on corner sites are to be articulated to address each street frontage and are to define prominent corners.

Secondary Setbacks

Objectives

O1 To establish the spatial proportions and enhance the urban qualities of the street.

O2 To facilitate higher density development while maintaining the existing character of street development.

Provisions

P1 Where development exceeds 9m in height, the part of the development above 9m must be set back a minimum of 3m from the street front boundary.

P2 Setback areas must be free of any projections or encroachments.

Advisory Note:
Figure 44 shows street front and secondary setbacks and podium heights in the Croydon Park and Enfield Local Centres.

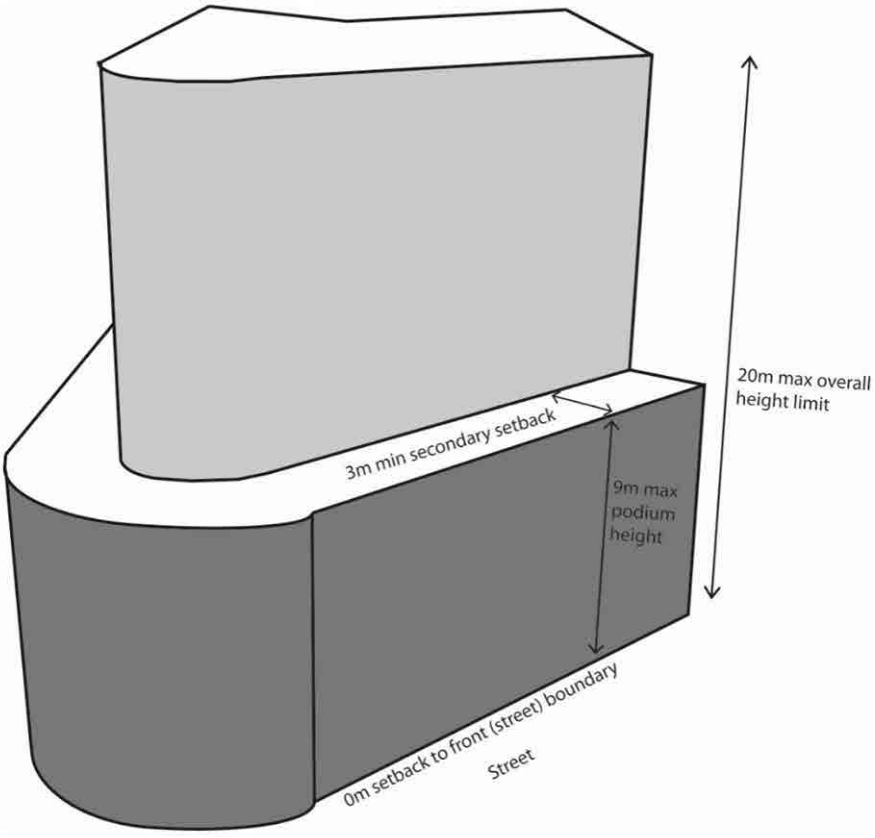


Figure 44. Setbacks and Height Limits in the Enfield and Croydon Park Local Centres

Side and Rear Setbacks

Objectives

O1 To define the urban form of development.

O2 To minimise the amenity impact of development on adjoining properties.

Provisions

P1 For the residential component of development (shop top housing) refer to the building separation setback provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Apartment Development.

P2 Other development up to 9m in height must be built to the side boundary and setback 5m from a laneway or rear boundary with a lot zoned Residential.

P3 In addition, where a lot adjoins a Residential zone containing residential development, buildings are not to exceed a 45 degree height plane projected over the site and commencing 1.8m above the rear or side boundary, or from the boundary of a laneway (where such exists) and an adjoining Residential zone containing residential development.

P4 Where a new laneway is created, it can be used as part of the rear or side setback and for the application of P3.

P5 Side and/or rear setbacks must be free of any projections or encroachments except for at-grade landscaping.

Building Separation/Frontage

Objectives

O1 To ensure that development has appropriate spacing between buildings and frontage to any building.

O2 To assist in achieving acceptable levels of visual and acoustic privacy.

Provisions

P1 For all development refer to the building separation provisions of the ADG which supplements SEPP 65 - Design Quality of Residential Apartment Development.

Advisory Note:
The same rules apply to residential and non-residential developments in terms of frontage and building separation.

P2 The building separation requirements established under P1 must be shared equally with adjoining development across a boundary (refer to **Figure 30**). The applicant must demonstrate that daylight access, urban form, open space and visual and acoustic privacy can be satisfactorily achieved.

P3 The maximum length in any direction of any part of a building parallel to the street above 9m in height is 30m. This portion of the building must be suitably articulated to alleviate building mass and improve building appearance.

Communal Open Space

Objectives

O1 To provide communal passive and active recreational opportunities.

O2 To provide communal open space to facilitate soft landscaping wherever possible.

O3 To ensure that communal open space is consolidated, configured and designed to be usable and attractive.

O4 To provide a pleasant outlook and contribute to privacy between buildings.

Provisions

P1 Accessible communal open space may be provided on rooftops of development

P2 The design of rooftop communal open space must have regard to its visual and acoustic impact and the effects of wind, with suitable screening being provided

P3 For residential development refer to the communal open space provisions of the ADG which supplements SEPP 65 – Design Quality of Residential Apartment Development.

Advisory Note:
Any opportunity for rooftop gardens or landscaping is encouraged to add to residential and visual amenity. Designs should encourage "greener" rooftops that incorporate planting, while minimising concrete and expanses of hard surfaces. Section 3.2.3 requires at least 50% of the rooftop area to be vegetated.

3.5.3 Croydon Neighbourhood Centre

Overview

The Croydon Neighbourhood Centre (**Figure 45**) is characterised by retail and commercial uses within traditional linear shops. In the main street block of The Strand, the wide road reserve with substantial median strip plantings creates a 'boulevard' feel. The high quality buildings in The Strand and surrounding areas including the heritage listed railway station are part of the Malvern Hill Heritage Conservation Area.

Desired Future Character

The BLEP 2012 through the B1 Neighbourhood Centre zone and development standards will continue the land use profile and built form of preceding years. The existing character, function and streetscape of the neighbourhood centre will be maintained through the conservation and enhancement of existing buildings, structures and works. Any further development is likely to be of a small infill nature primarily towards the rear of sites, particularly sites along The Strand that have rear lane access. Building details and finishes will be compatible with similar features and materials used in the existing building.

Notwithstanding the expectation of little change, the DCP includes more detailed provisions to cover the rare circumstances where the facades and street built form are the subject of redevelopment for example due to repair or replacement due to damage.



Figure 45. Croydon Neighbourhood Centre

Controls for Croydon Neighbourhood Centre

Building Form

Objectives

O1 To maintain the character and streetscape of the area through the conservation and enhancement of existing buildings, structures and work.

O2 To facilitate infill development while maintaining the existing character of the street.

Provisions

P1 Development at the rear of sites should not be visible from The Strand and must complement the existing building.

P2 Street front development will only be permitted in certain circumstances (repair, replacement) and must enhance the existing streetscape and be of a similar scale, grain, form, bulk, placement and character to adjoining and nearby street front development.

P3 Continuous awnings that match the building design and are complementary to adjoining development must be provided.

Street Front Setbacks

Objectives

O1 To develop and create a strong definition of streets and public spaces.

O2 To ensure that the built form assists in forming the character of the public urban space.

O3 To improve the quality of the public domain.

O4 To invigorate the street front to provide the opportunity for commercial development at ground level, and where appropriate, above ground level.

Provisions

P1 Development must be built to the street front boundary on all primary streets (The Strand, Thomas Street, Malvern Avenue, Meta Street and Hennessey Street.

P2 All development must be built to the side boundary.

P3 All ground level development must be finished at-grade with the Council footpath and finished with materials to match Council's current public domain requirements.

P4 No vehicle access will be permitted from the primary street frontage of The Strand.

P5 Development at ground level must have an active street frontage (entrances, shop front, glazing) at the same general level as the footpath, and be accessible directly from the street.

Side and Rear Setbacks

Objectives

O1 To define the urban form of development.

O2 To minimise the amenity impact of development on adjoining properties.

Provisions

P1 All development must be built to the side boundary.

P2 For rear setbacks, buildings are not to exceed a 45 degree height plane projected over the site and commencing 1.8m above the rear boundary of the lot where it adjoins a Residential zone containing residential development, or from the boundary of a rear laneway (where such exists) and an adjoining Residential zone containing residential development.

P3 Side and/or rear setbacks must be free of any projections or encroachments except for at-grade landscaping.

3.6 Area Based Controls – Parramatta Road Enterprise Corridor

The Parramatta Road corridor is a linear urban strip from Broadway in Sydney City to Church Street in Parramatta. The State Government's Metropolitan Strategy documents highlight its role as an enterprise corridor and provide a basic framework for planning by the local authorities, including:

Retail activity in the zone to focus on high exposure, affordable locations for activities that do not compete with strategic centres and provide a buffer to adjoining residential areas.

Residential development to be restricted due to the impacts of road noise and air pollution.

The southern side of Parramatta Road between Moseley Street Strathfield in the west and Lang Street Croydon in the east lies within the Burwood LGA. Land uses are characterised by a wide variety of retail, business and light industrial activities. Built forms vary from small scale street front shop buildings and light industries to former factory buildings, small and large scale vehicle sales establishments, bulky goods retailing, service stations and old-style residential flat buildings.

Burwood's section of the Parramatta Road corridor (**Figure 46**) is distinctive in comprising a thin strip of land mostly only one allotment deep. Traffic congestion, noise and air pollution impacts are high as currently Burwood's section lies within the existing arterial road gap, resulting in very high daily traffic flows.

Desired Future Character

The B6 Enterprise Corridor zone should continue the evolution of Burwood's section of the Parramatta Road corridor towards larger scale land uses that take advantage of the main road location while ensuring the impacts of activities are contained within the B6 zoned land. Over time the replacement activities are likely to include but are not limited to higher quality and larger scale vehicle sales premises, bulky goods and large footplate retailing, food and drink premises, some accommodation developments, and other service businesses. Buildings within the corridor will be of low-medium scale and higher design quality, and deal with access and parking on site. They will be encouraged to locate closer to and address the road (vehicle sales businesses will be a special case) while ensuring that direct impacts on adjoining residential property owners are minimised. Design and location, together with the mix of land uses should encourage a more active street frontage in the corridor.

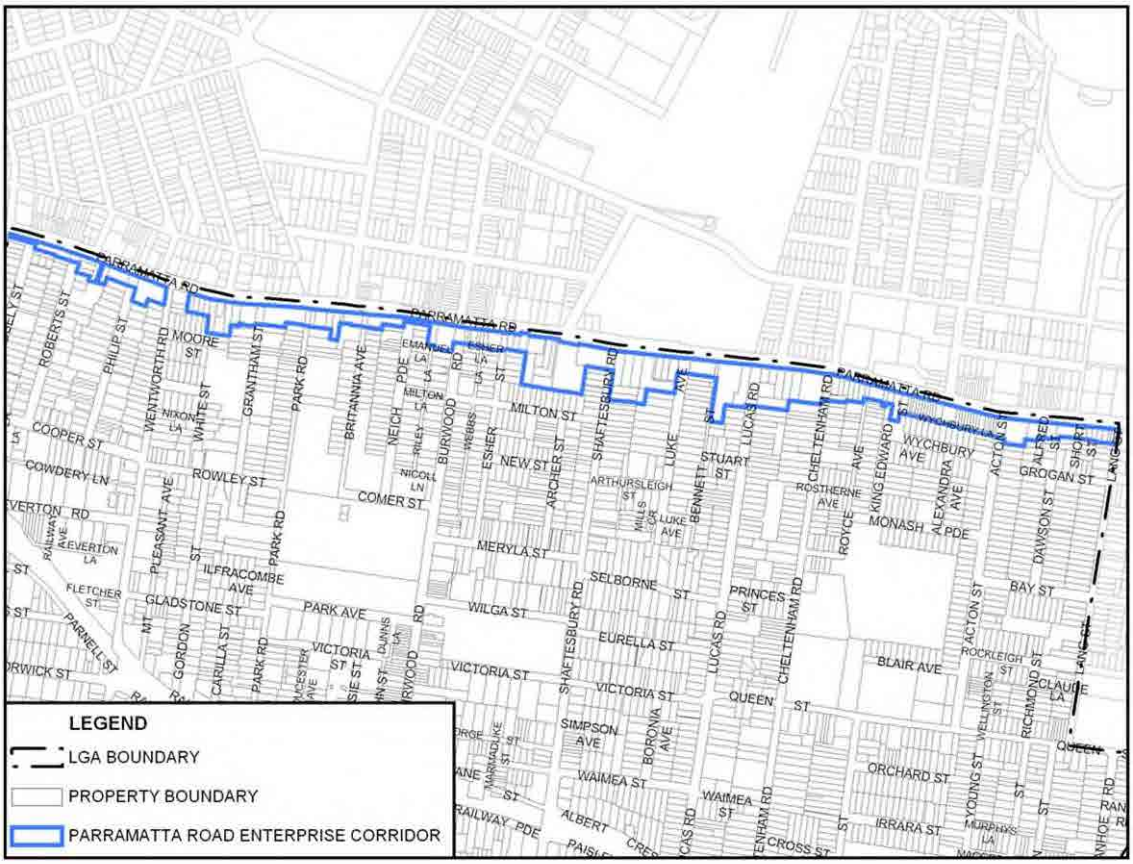


Figure 46. Parramatta Road Enterprise Corridor

Aims

The aims for this DCP section are:

- To support change and improvement in the character and quality of the corridor, its land uses, amenity and local environment.
- To ensure that the impacts of land uses are contained within the corridor with no or minimal overflow to adjoining residential areas.
- To provide appropriate protection through the design and location of buildings in the corridor to the amenity, solar access and privacy of adjoining low density residential land to the south.
- To encourage an active street character through building setbacks, location and design, the inclusion of residential development and the location of parking underground or behind buildings.

Parramatta Road Street Front Setbacks

Objectives

O1 To establish the relationship of buildings to the street.

O2 To encourage an active street character.

O3 To provide space for landscaping and improve local amenity.

Provisions

P1 Location of buildings close to the Parramatta Road boundary at ground level is required. A maximum of 5m setback preferred, and part of the building may be built to the street front boundary for a maximum of 50% of the site width.

P2 Setback areas must be free of any projections or encroachments from any building with the exception of approved awning structures including shade sails that provide weather and sun protection, and at-grade landscaping.

P3 Setback areas must include landscaping that improves the amenity of the site and the street frontage, and paving that facilitates pedestrian access to activities on the site.

P4 Use of setback areas for car parking is discouraged.

P5 In the case of vehicle sale or hire premises only, the street front setback area may be used for the display of vehicles (but not customer car parking) provided high quality fencing, vehicular access and parking, and clear pedestrian access are included in the development.

P6 Buildings on corner sites are to be articulated to address each street frontage and are to define prominent corners.

Parramatta Road Secondary Setbacks

Objectives

O1 To establish the relationship of buildings to the streets.

O2 To enhance the urban quality of the streetscape.

Provisions

P1 Where the building exceeds 9m in height that part of the building above 9m must be setback a minimum of 3m from the street front of Parramatta Road.

P2 Secondary setbacks of buildings must be free of any projections or encroachments from any building.

Side Street Setbacks

These provisions apply to sites that also have a frontage to a side street.

Objectives

O1 To establish the relationship of buildings to the streets.

O2 To enhance the urban quality of the streetscape.

Provisions

P1 There is no minimum or maximum setback to a side street. Part of the building may be built to the street front boundary for a maximum of 50% of the frontage to the side street.

P2 Where a building exceeds 8m in height on a side street frontage, that part of the building above 8m must have a secondary setback of a minimum of 3m from the side street boundary.

P3 Setback areas at ground level must be free of any encroachment or projection from any building with the exception of approved awning structures including shade sails that provide weather and sun protection.

P4 Setback areas must include landscaping that improves the amenity of the site and the street frontage, and paving that facilitates pedestrian access to activities on the site. Primary setback areas cannot be used for the provision of car parking.

P5 In the case of vehicle sale or hire premises only, the side street primary setback area may be used for the display of vehicles provided high quality fencing, vehicular access and parking, and clear pedestrian access are included in the development.

P6 Buildings on corner sites are to be articulated to address each street frontage and are to define prominent corners.

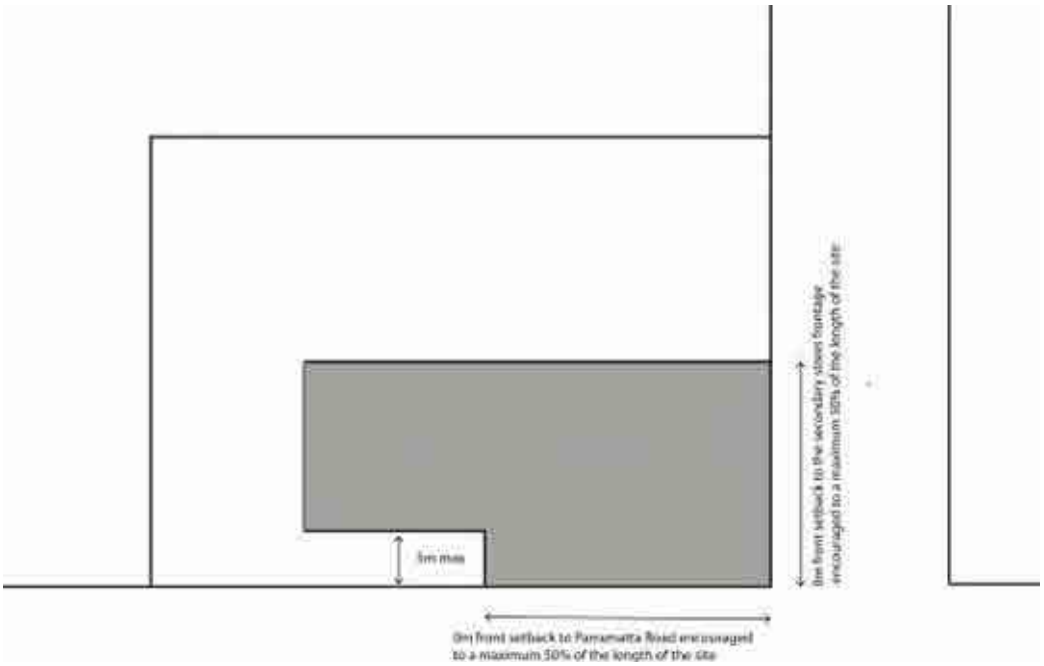


Figure 47. Parramatta Road Street Front and Side Street Setbacks

Side and Rear Boundary Setbacks

These provisions apply to sites with boundaries that immediately adjoin another property or a laneway.

Objectives

O1 To define the urban form of development.

O2 To limit building heights to facilitate adequate solar access to land adjoining the B6 zone.

O3 To mitigate any adverse effects on the amenity of existing and future residents living adjacent to the B6 zone.

Provisions

P1 Buildings may be erected to the side boundary and must be erected to the side or rear boundary of a site that adjoins a residential zone, subject to P2 below.

P2 For side and rear setbacks on boundaries adjoining a Residential zone, buildings are not to exceed a 45 degree height plane projected over the site and commencing 1.8m above the relevant site boundary.

P3 For setbacks on boundaries separated from a Residential Zone by Wychbury Lane, Bennett Street, Esher Lane or Britannia Lane, buildings are not to exceed a 45 degree height plane projected over the site and commencing 1.8m above the relevant site boundary.

Building Separation/Frontage

Objective

O1 To assist in achieving adequate levels of natural light and visual and acoustic privacy for the residential component of development.

Provisions

P1 Any part of a building comprising shop top housing as defined in the BLEP 2012 is to comply with the building separation provisions of the ADG that supplements SEPP 65 – Design Quality of Residential Apartment Development.

P2 The maximum length in any direction of any part of a building parallel to the street above 9m in height is 30m. This portion of the building must be suitably articulated to alleviate building mass and improve building appearance.

Location and Design of Shop Top Housing

Objective

O1 To enhance the amenity of the residential component of development.

Provisions

P1 The location of shop top housing within a development is to maximise views and vistas and reduce the risk of noise and air pollution for residents.

P2 Measures such as double glazing of windows are encouraged to reduce the impact of noise on residents of shop top housing.

3.7 Area Based Controls – Cooper Street Precinct, Strathfield

Introduction

This section applies to development on properties outlined in **Figure 48**.

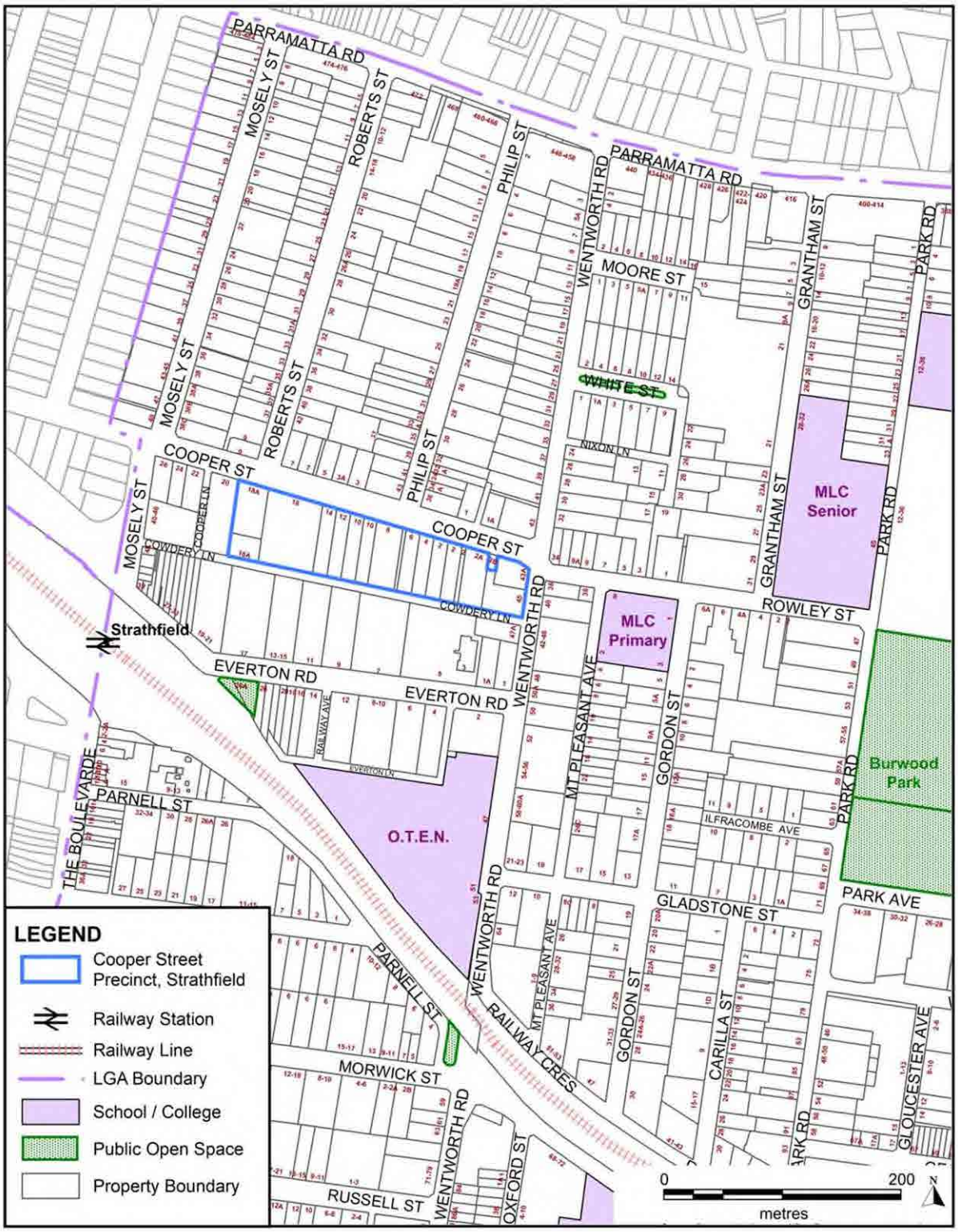


Figure 48. Cooper Street Precinct, Strathfield

Overview

The Cooper Street Precinct, Strathfield is located in close proximity to a variety of local amenities including major metropolitan and intercity public transport nodes (Strathfield Station and various bus linkages) and local shopping and employment opportunities.

The precinct is:

- located 150 metres from Strathfield Railway Station
- less than a 400 metre walk from the Strathfield Town Centre
- close to education, health and recreation facilities
- within 5-minute walking distance of the Parramatta Road Corridor

The precinct was the subject of an applicant led Planning Proposal and the Department of Planning, Industry and Environment considered the site suitable for medium and high density development and approved the rezoning in 2019. The Cooper Street Precinct, Strathfield is situated in a locality with a level topography, which facilitates very walkable distances to a major transport node.

Please refer to parts 4-8 of this DCP for guidelines relating to different forms of development and related design considerations and features. In addition, the following objectives and provisions relate specifically to the Cooper Street Precinct, Strathfield. Where provisions are duplicated in other parts of this DCP, the following provisions take precedence when applied to the subject Precinct.

Site Planning and Response to Character

Objectives

O1 To encourage the efficient use of land.

O2 To establish appropriate development controls that increase housing supply and diversity.

O3 To balance increased density with heritage conservation values as a key consideration.

O4 To promote ‘human scale’ and enhance the pedestrian environment of Cowdery Lane.

Provisions

P1 Any proposed development will need to preserve and enhance and not detract from the heritage and conservation values of the Heritage Conservation Area to the north of Cooper Street.

P2 Proposed massing and overall built form will need to respond to the ‘fine grain’ character of the Heritage Conservation Area (HCA) to the north of Cooper Street.

P3 Proposed massing and overall built form will need to be designed and articulated in a way that ensures a ‘human scale’ when visible from Cowdery Lane.

P4 Development consent shall not be issued unless the applicant has clearly demonstrated that the proposal has considered and responded to:

- the surrounding context of the precinct,
- the area’s contributory elements (physical and environmental).
- the heritage values of the HCA to the north and surrounding heritage items

Height of Building and Floor Space Ratio

P1 The development standards in the BLEP 2012 apply.

Locality Specific Provisions

Site Coverage

Objectives

O1 To provide for adequate landscape and deep soil areas.

O2 To adequately mitigate the effects of bulk, scale and overall massing.

O3 To establish appropriate footprints and areas for basement and parking.

Provisions

P1 The footprint of proposed buildings not to occupy more than 70% of the site.

P2 The footprint of basement levels should stay within the outline of the building/s above ground and not protrude into any setbacks.

Street Wall Heights

Objectives

O1 To ensure that the scale of the built form promotes a 'human scale' facing all frontages visible from the public domain.

O2 To ensure an adequate 'sense of enclosure' and provide a high quality pedestrian experience along Cowdery Lane.

Provisions

P1 The height of the built form behind the primary setback to Cooper Street shall comply with provision (3) (c) under Clause 6.6 of the BLEP 2012.

P2 The height of the built form behind the primary setback to Cowdery Lane shall be no more than 10m inclusive of parapets.

Setbacks

Objectives

O1 To ensure the street setback enhances the setting of the building, and that side and rear setbacks create usable land and maintain amenity between neighbouring sites.

O2 To ensure that the built form improves the landscape character, encourages landscape screening and contributes to the landscape softening of Cooper Street, Cowdery Lane and areas adjacent to common boundaries.

O3 To ensure deep soil areas contribute to the provision of mature planting and water filtration to all setbacks.

O4 To ensure adequate separation distances to protect the curtilage and buildings of heritage items.

Provisions

Primary Setbacks

P1 Primary setback to Cooper Street shall comply with provision with provision (3) (a) under Clause 6.6 of the BLEP 2012.

P2 Ground level setback to Cooper Street should be occupied by a combination of private courtyards and communal space. Private courtyards can occupy up to 3 metres from the building line with the reminding distance to the boundary maintained by the strata management to achieve a consistent treatment and upkeep.

P2 Private court yards to be enclosed by fencing with openable gates. Fencing can have a solid base up 600 mm with picket / railing style fence with a minimum of 1.2 up to 1.5 metres inclusive of the base. If additional privacy is required above 1.5m, this can be achieved with the use of shrubs or hedging. Picket / railing style fencing must have at least 50% transparency.

P3 Primary setback to Cowdery Lane shall comply with provision with provision (3) (b) under Clause 6.6 of the BLEP 2012.

P4 The 3m setback facing Cowdery Lane can be occupied by a private courtyard up to 2m from the building façade and be enclosed by a picket / railing style fence up to 1.2 metre. The reminding distance between the kerb and the fence should be utilised as a deep landscaping planting to be maintained by the strata management.

P5 Fences facing Cowdery Lane are to be permeable with a minimum of 40% with operable gates leading to private courtyards at ground level for activation and convenient rear access.

Secondary Setbacks

P1 Secondary setback to Cooper Street above the street wall height shall comply with provision (3) (c) under Clause 6.6 of the BLEP 2012.

P2 Secondary setback to Cowdery Lane above the street wall height shall be a minimum of 2m.

Side Setbacks and Separation Distances

P1 Side setbacks and separation distances are to comply with the Apartment Design Guide design criteria 1 under Objective 3F-1.

P2 Separation distances are to be shared equally by both properties to either side of the common boundary. Refer to **Figure 49** below.

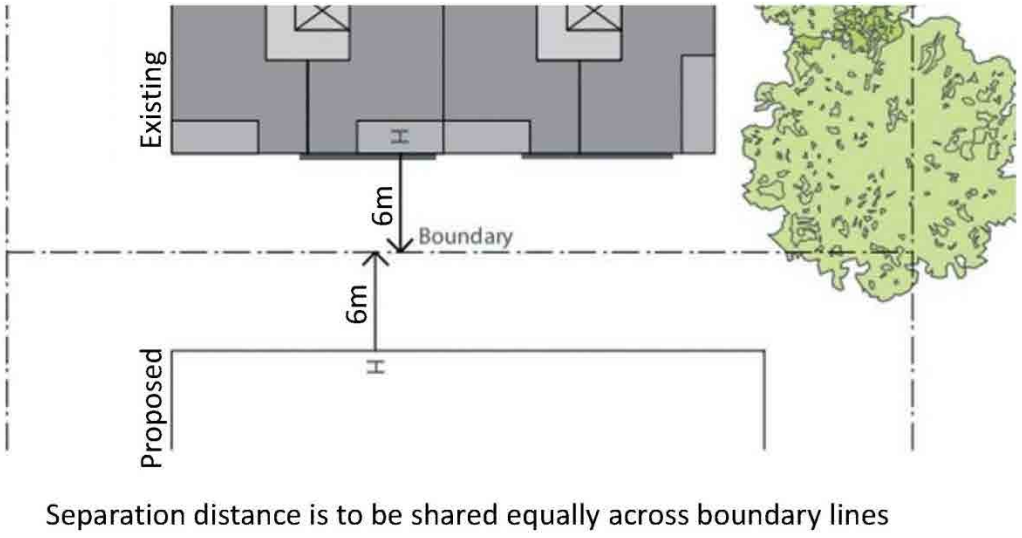


Figure 49. Separation distances

P3 Minimum 2m extra setback from the boundary adjoining a heritage item, in addition to the setback requirements in the Apartment Design Guide (ADG). The additional 2m can be provided at ground level or above the second storey to break the build form. Refer to **Figure 50** below.

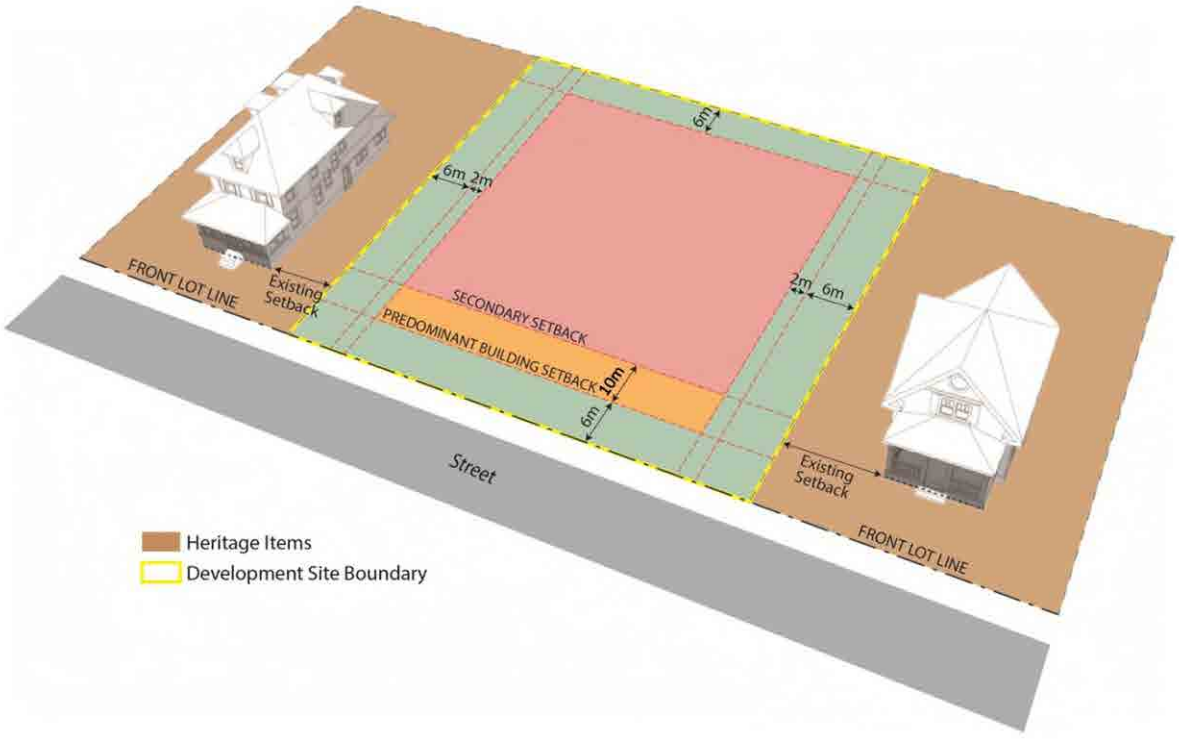


Figure 50. Setbacks for heritage items

P4 The minimum separation distance to all facades of a heritage item within the same site or an amalgamated site is 6m.

Landscaping and Open Space

Objectives

O1 To maximise the use and provision of communal open space at ground level.

O2 To ensure high quality landscaped grounds that contribute to the overall character of the area.

Provisions

P1 Communal open space is preferred at ground level and associated with deep soil areas and provided with shade and amenities i.e. water tap, BBQ and seating.

P2 Areas and dimensions for communal open space and landscaping are to comply with the Apartment Design Guide sections 3D and 3E.

Built Form

Objectives

O1 To ensure that the built form and massing contribute to the creation of character and display design excellence through well-articulated elevations, interesting roof forms and high quality materiality.

Provisions

P1 All elevations should display design excellence and generally comply with provisions P28 and P29 under section 3.2.1 Building Design of the BDCP.

P2 Elevations facing Cooper Street need to display 'fine grain' articulation or recesses running vertically the full height of the applicable street wall. Recesses or built form articulation need to be at no more than 8-10m intervals along the elevation.

P3 Side elevations need to display a combination of recesses, architectural fenestration and habitable windows. Unarticulated blank facades that can be characterised as non-habitable walls are not permitted.

P4 Recesses (min. 2m X 2m) need to be placed on all side elevations at 10-12m intervals depending on the length of the elevation.

Vehicle Entries, Servicing and Waste Management

Objectives

O1 To minimise potential pedestrian-vehicles conflicts along Cooper Street.

O1 To avoid any visual impacts to Cowdery Lane through the orderly provision of waste management and bin collection areas within the site.

Provisions

P1 All access for private and service vehicles is restricted to Cowdery Lane.

P2 All vehicle entry points to be integrated with the overall building design. Any visible areas from the public domain in front or behind or behind the security grille to be treated with high quality materials to integrate with the main façade.

P3 All proposals need to provide a traffic assessment of any potential impacts to Cowdery Lane and evaluate the need for road widening if individual and collective traffic impacts with neighbouring developments cannot be mitigated.

P4 Proposals that cannot adequately meet their servicing, deliveries or waste management requirements need to cater for the road widening of Cowdery Lane up to 6m as part of their site planning and building siting.

P5 Bin enclosure areas must be located within the building envelope, be accessible from the vehicle driveway and be integrated within the architectural design of the building.

P6 Road side collection and bin enclosures visible from the public domain or located within the landscape setbacks are not permitted.

Mailbox and Postal Facilities

P1 Mail box and postal facilities to be included and to comply with provisions P8, P9 and P10 under Section *3.2.4 Street-Front Activities and Building Access.* Refer to **Figure 1** and **Figure 2**.

Fire Safety and Power Supply Utilities

P1 Fire safety and power supply utilities are to comply with provision P12 under Section *3.2.4 Street-Front Activities and Building Access*. Refer to **Figure 3**.

Mechanical and Ventilation Equipment

P1 Mechanical and Ventilation Equipment are to comply with Provisions 15, 16, 17, 18 under *Section 3.2.4 Street-Front Activities and Building Access*.

3.8 Area Based Controls – Livingstone Street and Sym Avenue Precinct, Burwood

Introduction

This section applies to development on properties outlined in the figure below:



Figure 51. Livingstone Street and Sym Avenue Precinct

Overview

The Burwood Livingstone Street and Sym Avenue Precinct is located in close proximity to the Burwood Town Centre and the public transport node of Burwood Railway Station and bus linkages.

The subject Precinct is:

- less than a 400 metre walk from Burwood Railway Station
- adjacent to the southern boundary of the Burwood Town Centre
- close to retail and commercial premises
- close to education, health and recreational facilities

Council prepared a Planning Proposal to rezone the Precinct from R2 Low Density Residential to partly R1 General Residential and partly R3 Medium Density Residential, in order to increase the housing supply. The Department of Planning, Industry and Environment has issued a Gateway Determination for this Planning Proposal.

Please refer to parts 4-8 of this DCP for guidance relating to different forms of development and design considerations. In addition, the following objectives and provisions relate specifically to the Livingstone Street and Sym Avenue Precinct. These provisions take precedence when applied to the subject Precinct, if they differ to other parts of the DCP.

Site Planning and Response to Character

Objectives

O1 To encourage the efficient use of land.

O2 To establish appropriate development controls that increase housing supply and diversity.

O3 To balance increased density with heritage conservation values as a key consideration.

O4 To promote 'human scale' and enhance the pedestrian environment of Livingstone Street, Sym Avenue and Sym Lane.

Provisions

P1 Any proposed development will need to preserve and not detract from the heritage and conservation values of the heritage items within and/or in close proximity to the Precinct.

P2 Proposed massing and overall built form will need to respond to the character of the heritage items within the Precinct.

P3 Proposed massing and overall built form will need to be designed and articulated in a way that ensures a 'human scale' when visible from Livingstone Street, Sym Avenue and Sym Lane.

P4 Development consent shall not be issued unless the applicant has clearly demonstrated that the proposal has considered and responded to:

- the surrounding context of the precinct,
- the area's contributory elements (physical and environmental).
- the heritage values of the heritage items within and surrounding the precinct

Height of Building and Floor Space Ratio

P1 The development standards in the BLEP 2012 apply.

Site Coverage

Objectives

O1 To provide for adequate landscape and deep soil areas.

O2 To adequately mitigate the effects of bulk, scale and overall massing.

O3 To establish appropriate footprints and areas for basement and parking.

Provisions

P1 The footprint of proposed buildings must not to occupy more than 70% of the site.

P2 The footprint of basement levels should stay within the outline of the building/s above ground and not protrude into any setbacks.

Street Frontage

Objectives

O1 To ensure the orderly development of all sites including sites containing or adjacent to heritage items.

O2 To present building frontages within generously landscaped separation distances.

O3 To establish appropriate footprints that can accommodate vehicle entries within the building footprint.

Provisions

P1 The street frontage of any development fronting Livingstone Street and/or Sym Avenue shall comply with **Figure 52** below and the Minimum Site Frontage provisions stipulated in the BLEP 2012.

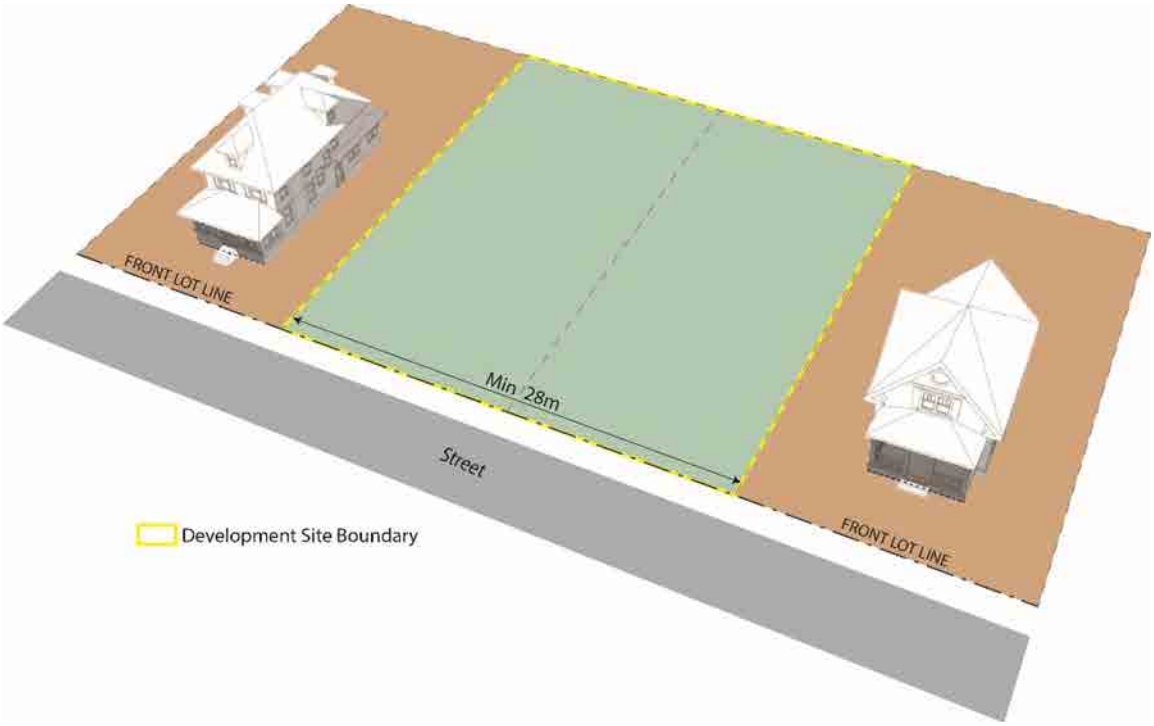


Figure 52. Minimum Street Frontage

Street Wall Heights

Objectives

O1 To ensure that the scale of the built form promotes a 'human scale' facing all frontages visible from the public domain.

O2 To ensure an adequate 'sense of enclosure' and improve pedestrian experience along Sym Lane.

Provisions

P1 The street wall height of any development fronting Livingstone Street and/or Sym Avenue shall comply with **Figure 53** below and the relevant provisions stipulated in the BLEP 2012.

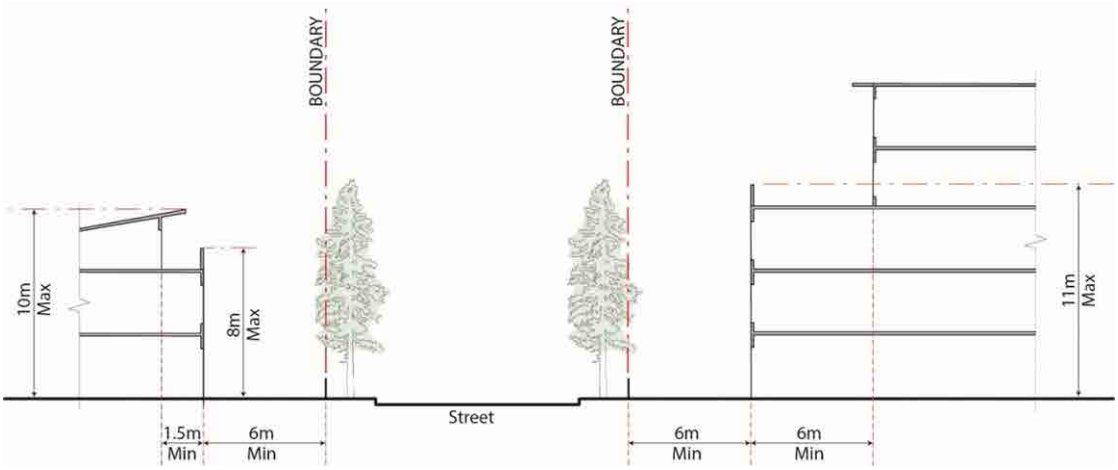


Figure 53. Livingstone Street, Street Wall Height and Primary and Secondary Setbacks

P2 The street wall height of development fronting Sym Lane shall be no more than 13.5m inclusive of parapets.

Setbacks

Objectives

O1 To ensure the street setback enhances the setting of the building, and that side and rear setbacks create usable land and maintain amenity between neighbouring sites.

O2 To ensure that the built form improves the landscape character, encourages landscape screening and contributes to the landscape softening of Livingstone Street, Sym Avenue and areas adjacent to common boundaries.

O3 To ensure deep soil areas contribute to the provision of mature planting and water filtration to all setbacks.

O4 To ensure adequate separation distances to protect the curtilage and buildings of heritage items.

Provisions

Primary Setbacks

P1 Primary setbacks to Livingstone Street and/or Sym Avenue shall comply with the relevant provisions stipulated in the Planning Proposal, which is expected to result in a LEP clause in the BLEP 2012.

P2 Ground level setback to Livingstone Street, Sym Avenue and/or Sym Lane should be occupied by a combination of private courtyards and communal space. Private courtyards can occupy up to 3 metres from the building line with the reminding distance up to the boundary to be maintained by the strata management to achieve a consistent treatment and upkeep.

P3 Private courtyards to be enclosed by fencing with openable gates. Fencing can have a solid base up 600mm with picket / railing style fence with a minimum of 1.2 up to 1.5m including the solid base. If additional privacy is required above 1.5m, this can be achieved with the use of shrubs or hedging. Picket / railing style fencing must have at least 50% transparency.

P4 The setback to Sym Lane can be occupied by a private courtyard up to 3m from the building façade and be enclosed by a picket / railing style fence up to 1.2 m. The reminding distance between the kerb and the fence should be utilised as a deep landscaping planting to be maintained by the strata management.

P5 Fences facing Sym Lane are to be permeable with a minimum 40% with operable gates leading to private courtyards at ground level for activation and convenient rear access.

Secondary Setbacks

P1 Secondary setbacks to Livingstone Street and Sym Avenue above the street wall height shall comply with **Figure 53** and the relevant provisions stipulated in the BLEP 2012.

P2 Secondary setbacks to Sym Lane above the street wall height shall be a minimum of 3m.

Side Setbacks and Separation Distances

P1 Side setbacks and separation distances are to comply with the *Apartment Design Guide* design criteria 1 under Objective 3F-1.

P2 Separation distances are to be shared equally by both properties to either side of the common boundary. Refer to the image below.

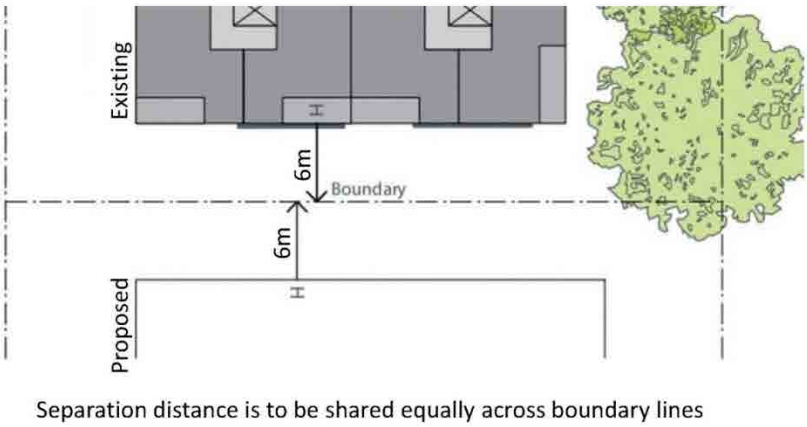


Figure 54. Separation distances

P3 The separation distance to a site containing a heritage item shall comply with **Figure 55** below and the relevant provisions stipulated in the BLEP 2012. The additional 2m can be provided at ground level or above the second storey to break the build form. Refer to the image below.

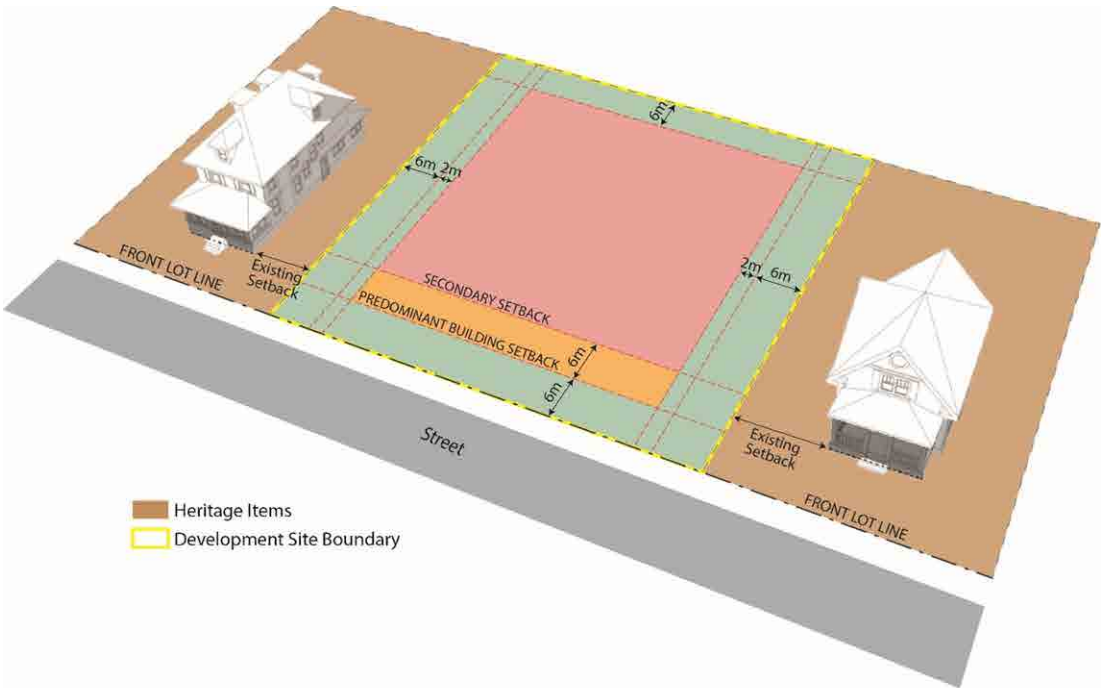


Figure 55. Setbacks for heritage items

P4 The minimum separation distance to all facades of a heritage item within the same site or an amalgamated site is 6m.

18 Conder Street, Burwood

Objectives

O1 To mitigate the impacts of the partial removal of the Building Height Plane (BHP) Line E next to No. 18 Conder Street.

O2 To protect the amenity of residential uses to the south of No. 18 Conder Street.

Provisions

P1 Side setback to southern boundary to be at least 6m at ground level up to 12m and comply with ADG separation distances.

P2 Southern elevation facing common boundary with 23 Livingstone Street, Burwood must be articulated and display habitable windows. Recesses or built form features are required at 10-12m intervals.

P3 Side setback at ground level is for the purpose of greening and mature landscaping to provide landscape buffer to the properties to the south of the common boundary.

Landscaping and Open Space

Objectives

O1 To maximise the use and provision of communal open space at ground level.

O2 To ensure high quality landscaped grounds that contribute to the overall character of the area.

Provisions

P1 The minimum landscaped area shall comply with the relevant provisions stipulated in the BLEP 2012.

P2 Communal open space is preferred at ground level and associated with deep soil areas and provided with shade and amenities i.e. water tap, BBQ and seating.

P3 Areas and dimensions for communal open space and landscaping are to comply with the Apartment Design Guide sections 3D and 3E.

Built Form

Objectives

O1 To ensure that the built form and massing contribute to the creation of character and display design excellence through well-articulated elevations, interesting roof forms and high quality materiality.

Provisions

P1 All elevations should display design excellence and generally comply with provisions P28 and P29 under *Section 3.2.1 Building Design* of the DCP.

P2 Elevations facing Livingstone Street and/or Sym Avenue need to display 'fine grain' articulation or recesses running vertically the full height of the applicable street wall height or parapet.

P3 A maximum length of uninterrupted building frontage of 10m for terrace or townhouse development on the southern side of Livingstone Street in order to achieve substantial articulation in the form of an indent, recess or physical break along the length of the elevation.

P4 Side elevations need to display a combination of indents, architectural fenestration and habitable windows. Unarticulated blank facades that can be characterised as non-habitable walls are not permitted.

P5 Recesses (min. 2m X 2m) need to be placed on side elevations every 10-12m depending on the length of the elevation.

Vehicle Entries, Servicing and Waste Management

Objectives

O1 To minimise potential pedestrian-vehicles conflicts along Livingstone Street and Sym Avenue.

O1 To minimise visual impacts to both sides of Livingstone Street, the western side of Sym Avenue and Sym Lane through the orderly provision of waste management and bin collection areas within the site.

Provisions

P1 All access for private or service vehicles to be integrated with the overall building design. Any visible areas from the public domain in front or behind the security grille to be treated with high quality materials as the main façade.

P2 Bin enclosure areas need to be located within the building envelope, be accessible from the vehicle driveway and be integrated within the architectural design of the building.

P3 Road side collection and bin enclosures visible from the public domain or located within the landscape setbacks are not permitted.

Mailbox and Postal Facilities

P1 Mail box and postal facilities to be included and to comply with provisions P8, P9 and P10 under *Section 3.2.4 Street-Front Activities and Building Access*. Refer to **Figure 1** and **Figure 2**.

Fire Safety and Power Supply Utilities

P1 Fire safety and power supply utilities are to comply with provision P12 under Section *3.2.4 Street-Front Activities and Building Access*. Refer to **Figure 3**.

Mechanical and Ventilation Equipment

P1 Mechanical and Ventilation Equipment are to comply with Provisions 15, 16, 17, 18 under *Section 3.2.4 Street-Front Activities and Building Access*.

3.9 Transport and Parking in Centres and Corridors

3.9.1 Strategic Approach

The BLEP 2012 provides substantial capacity for growth in housing, employment, shopping and services in Burwood's Centres and Corridors zoned B4, B2 and B6. Such growth will increase the demand for travel, and place additional pressure on the transport system and parking supply in the Burwood LGA. At the same time ongoing population and economic growth in the Metropolitan Region is likely to increase travel demand generally and private vehicle use in particular.

Local policy on transport and parking must respond to these challenges. The functions of centres and corridors must be preserved and improved. Their amenity as places for people needs to be protected and enhanced. This will require better management of the local road system and parking supply, and improved utilisation of Burwood's substantial public transport facilities, and of opportunities for mobility by walking and cycling.

Car Share Parking

Residential Flat Buildings and other developments may allocate car share parking spaces on site. These car share parking spaces, if provided, must be in easily accessible locations, with clear signage, for the exclusive use for a car share scheme.

The car share parking spaces must be clearly identified on the plans submitted to Council and are to be retained as common property of the Owners Corporation of the site.

The car share parking spaces will be excluded from the gross floor area calculation of the development.

3.9.2 Burwood Town Centre and Strathfield Town Centre

Overview

The BTC LEP 2010, now incorporated into the BLEP 2012, has established a strong growth trajectory for the BTC. The BLEP 2012 extends controls similar to the BTC along Burwood Road North, and also has increased the development capacity of the STC (in the Burwood LGA) through an expanded area and increased development standards.

Over the next two decades, both Centres will be major focuses of growth in housing, employment, shopping and services. They are well suited to high density activities having close proximity to arterial roads and excellent public transport accessibility by rail and bus.

The challenges for the Town Centres will be to meet the divergent travel needs of users of the Centres while encouraging development, maintain competitiveness locally in the Region, and enhance environmental quality and amenity. Innovative approaches to managing travel demand and parking supply will be necessary.

The objectives for transport, traffic and parking policy in the Town Centres are:

Objectives

O1 Improve traffic management in the Centres to minimise congestion and adverse environmental and amenity impacts.

O2 Maintain the operational viability of public transport services, with particular regard to the needs of buses.

O3 Increase the use of public transport, walking and cycling for trips generated by new development.

O4 Ensure the appropriate provision of parking supply to meet the different needs of users and encourage the regional competiveness of the Town Centres.

O5 Emphasise the availability of short-stay parking for visitors to the Town Centres, being customers of businesses, shops and services and visitors to residents of the Centres.

O6 Facilitate expansion of convenient public off-street parking areas by providing opportunities for voluntary developer contributions in place of on-site parking and establishing a planning framework for provision of additional public parking areas.

O7 Ensure that the community's investment in and use of parking infrastructure is efficient, has regard to site features and the patterns of demand in the centres.

O8 Require a broader assessment of transport, traffic and parking factors in the Development Application process.

O9 Ensure that appropriate criteria for safety and personal security are applied to the location, accessibility and design of parking areas, to loading, unloading and service facilities, to the needs of people with disabilities, and to facilities for cyclists and pedestrians.

Provisions

Advisory Note:
All provisions apply to the Burwood Road North area zoned B4 Mixed Use as well as the BTC and STC.

P1 **Basic parking requirement:** Development in the B4 Mixed Use zone in the Burwood and Strathfield Town Centres must provide parking spaces on site for each proposed land use in accordance with the Table 2.

P2 **Parking for visitors to the Burwood Town Centre and the Strathfield Town Centre:** Notwithstanding P1, in the B4 Mixed Use zone, Council may consider and accept an offer from an applicant of a monetary contribution for Visitors Parking in lieu of the provision on-site of all or part of the parking requirement. Such an offer is voluntary and subject to Council's agreement at its discretion. If approved, it will be administered through a Voluntary Planning Agreement under the Environmental Planning and Assessment Act 1979.

For the purposes of this DCP sub-section **Visitors Parking** means:

- Parking demand generated by persons in vehicles making short-term visits to the residents of buildings comprising residential flat buildings or shop top housing in the B4 Mixed Use zones, as specified in Table 2
- Parking demand generated by the short term needs of persons in vehicles making short-term visits to access commercial premises (comprising office, business and retail premises) and other defined land uses in the BTC, as specified in Table 2 below.

The reasons for adoption of this strategy are:

- Locating some spaces in consolidated public car parks that have extended opening hours, higher turnover and safe and secure access will provide better, more useable parking facilities being available to the general public.

- Locating some spaces in consolidated public parking areas means better use of resources and value for money for developers and the community.

- Locating some spaces in consolidated public parking areas supports greener and cleaner outcomes for the community. Business centres need adequate parking supply to meet the needs of users and to compete with other centres, balanced with encouragement of public transport use, walking and cycling that can help reduce on-street traffic congestion, and improve a centre's amenity and attractiveness to visitors.

The circumstances in which Council may consider and accept an offer for Visitors Parking are:

1. Residential flat buildings and shop top housing

The requirement under P1 for Visitors Parking for residential flat buildings and shop top housing, additional to the requirement for parking for residents, may be subject to an offer of a monetary contribution for all or part of such visitors parking in lieu of on-site provision. Council will consider and may accept the offer at its discretion.

The voluntary monetary contribution offered must be equal to the number of visitors spaces not being provided on site, multiplied by the dollar amount of the cost of providing an on-site parking space (see P4 below). A discount of 20% is then applied because the funds received will be used by Council to increase the parking supply in off-street public parking areas where it can be provided and used more efficiently.

The following formula applies, and calculation is pro-rata, that is, the actual number to 1 decimal point:

(Number of spaces not being provided on site X cost of an on-site parking space) X 0.8 = Visitors Parking contribution in lieu offer. Required spaces to be round-up to the nearest whole number.

Example: (8.2 X [insert current rate from table of fees and charges]) X0.8 = $[X]

2. Retail premises, Registered clubs, and other land uses as specified in the Table as having the same parking provision rates

For the parking spaces required for the development above the 1 space for the first 400 sqm (as specified under P1), Council may consider and accept at its discretion an offer of a monetary contribution for Visitors Parking, which comprises some or all of the required spaces, in lieu of on-site provision.

The voluntary monetary contribution offered must be equal to the number of spaces not being provided on site, multiplied by the dollar amount of the cost of providing an on-site parking space (see P4 below). A discount of 20% is then applied because funds received will be used by Council to increase the parking supply in off-street public parking areas where it can be provided and used more efficiently.

The following formula applies, and calculation is pro-rata, that is, the actual number to 1 decimal point:

(Number of spaces not being provided on site X cost of an on-site parking space) X 0.8 = Visitors Parking contribution in lieu offer. Required spaces to be round-up to the nearest whole number.

Example: (8.2 X [insert current rate from table of fees and charges]) X 0.8 = $[X]

Please note that the allowance for Visitors Parking under this subsection only does not apply to Major Development, which is defined for the purposes of this subsection as comprising a gross floor area of more than 2,000 sqm or as otherwise determined by Council. All parking for Major Development must be provided on site.

3. Business premises and Office premises, and other land uses as specified in the Table as having the same parking provision rates

For the parking spaces required for the development above the 1 space for the first 400 sqm (as specified under P1), Council may consider and accept at its discretion an offer of a monetary contribution for Visitors Parking, which comprises up to 20% of the required spaces, in lieu of on-site provision.

The voluntary monetary contribution offered must be equal to the number of spaces not being provided on site, multiplied by the dollar amount of the cost of providing an on-site parking space (see P4 below). A discount of 20% is then applied because funds received will be used by Council to increase the parking supply in off-street public parking areas where it can be provided and used more efficiently.

The following formula applies, and calculation is pro-rata, that is, the actual number to 1 decimal point:

(Number of spaces not being provided on site X cost of an on-site parking space) X 0.8 = Visitors Parking contribution in lieu offer. Required spaces to be round-up to the nearest whole number.

Example: (8.2 X [insert current rate from table of fees and charges]) X 0.8 = $[X]

P3 **Other parking not provided on site:** In the B4 zone in the Burwood and Strathfield Town Centres, and along Burwood Road North, if an applicant for development is unable to provide the on-site parking spaces as determined under P1 from the Table (other than Visitors Parking spaces agreed in accordance with P2 above) because it is a difficult site, Council may consider an offer of a monetary contribution in lieu of the on-site provision of the parking spaces. Such an offer is voluntary and will be accepted solely at Council's discretion. If approved by Council, it will be administered through a Voluntary Planning Agreement under the Environmental Planning and Assessment Act 1979.

The characteristics that Council will take into account in determining if it is a difficult site include:

- The site is very small, i.e. less than the minimum subdivision lot size for the area in the BLEP 2012,and isolated with no opportunities for amalgamation or
- The site is small, i.e. less than 600 sqm and there are limited options for on-site parking provision, e.g. the site is mostly occupied by existing buildings and involves only a change of use or
- Vehicular access is severely constrained, e.g. the site only has frontage to Classified road.

It is the responsibility of the applicant to demonstrate that one or more of the above features applies and that redevelopment or the change of use is unlikely to be viable economically if parking requirements are applied strictly.

This option does not apply to development of residential accommodation or serviced apartments in the B4 Mixed Use zone. However, Council resolved on 23 July 2013 that this option can be applied to boarding houses.

The voluntary monetary contribution offered must be equal to the number of spaces not being provided on site, multiplied by the dollar amount of the cost of providing an on-site parking space (see P4 below). **There is no discount in these cases.** The following formula applies, and the calculation is pro-rata, that is, the actual number to 1 decimal point:

(Number of spaces not being provided on site X the cost of an on-site parking space) = Parking contribution in lieu offer. Required spaces to be round-up to the nearest whole number.

Example: (4.3 X [insert current rate from table of fees and charges]) = $[X]

P4 **Parking space cost figures for formulas:** Calculations of the offer for a contribution in lieu of on-site parking provision through the formulas in P2 and P3 above are to use the cost figure per space applicable in the year the Development Application is made, as published in the Schedule of Fees and Charges on Council's website. The cost figure per parking space is updated annually in accordance with construction cost movements.

P5 **Parking for people with a disability:** Notwithstanding any voluntary monetary contribution made under P2 or P3 above, parking for people with a disability required under legislation or applicable Australian Standards must be provided on the site of the development where it is practicable to do so. This is the case even where it amounts to an increased total provision of parking for a development.

P6 **Change of use:** Where Table 2 indicates that additional parking is required for a land use that is a change of use of existing floor area the above opportunities for voluntary contributions in lieu of on-site provision of parking spaces may apply at Council's discretion where the applicable criteria are met.

P7 **Use of funds received under Voluntary Planning Agreements (VPAs)**: Refer to Council's adopted policy for expenditure of funds received under P3, which is an addendum to Council's VPA policy.

3.9.3 Local Centres

Overview

Burwood's two Local Centres, zoned B2 in the BLEP 2012, extend along several Classified (main) Roads. The Croydon Park Local Centre fronts Georges River Road. The Enfield Local Centre is in three parts: in the west it extends along Liverpool Road and Coronation Parade in the east it extends along Liverpool Road and Burwood Road, and there is a third area fronting the southern side of Liverpool Road at the mid-point. In all locations some of the B2-zoned land also has side street frontages.

Generally the Local Centres have easier parking availability than the Town Centres and are more readily accessible from surrounding residential areas. They are all located on major bus corridors connected to rail stations, providing good public transport accessibility, although not to the same extent as Burwood's Town Centres.

The Local Centres play an important role in providing smaller scale convenience shopping and business services to the local and subregional population. They are an important location for

restaurants and cafes, and takeaway food and drink premises, and increasingly medium density residential development. The BLEP 2012 will ensure there is adequate capacity for the Local Centres' service functions to continue, while also increasing the opportunities for residential development.

The challenges in the Local Centres are to meet the travel and parking needs of users of the Centres while encouraging development, to minimise adverse impacts on the transport functions of the Classified Roads, and to enhance local environmental quality and amenity. The following objectives for transport, traffic and parking policy in the Local Centres are adopted.

Objectives

O1 Improve traffic management in the Centres to minimise congestion, reduce impacts on Classified Road traffic flows, improve safety and contain adverse environmental and amenity impacts.

O2 Maintain the operational viability of bus public transport services for the Centres.

O3 Enhance opportunities for access by public transport, walking and cycling

O4 Ensure the appropriate provision of on-site parking supply to meet the needs of users, and provide public off-street parking where opportunities arise.

O5 Ensure a broader assessment of transport, traffic and parking factors in the Development Application process.

O6 Ensure that the location, accessibility and design of parking areas, and of loading, unloading and service facilities where necessary, meet appropriate criteria for safety and personal security, the needs of people with disabilities, facilities for cyclists and pedestrians, enhancement of the quality of the streetscape.

Provisions

P1 **Basic parking requirement:** Development in the B2 Local Centres zone must provide parking spaces on site for each proposed land use in accordance with the Table 2.

P2 **Parking for visitors to Centres:** There are no arrangements for Visitors Parking in the Local Centres by way of contributions in lieu of on-site provision.

P3 **Other parking not provided on site:** In the B2 zone, if an applicant for development is unable to provide or chooses not to provide the on-site parking spaces as determined from the Table, because it is a difficult site, Council may consider an offer of a monetary contribution in lieu of the on-site provision of the parking spaces. Such an offer is voluntary and will be accepted solely at Council's discretion. If approved by Council, it will be administered through a Voluntary Planning Agreement under the Environmental Planning and Assessment Act 1979.

The characteristics that Council will take into account in determining if it is a difficult site include:

- The site is very small, i.e. less than the minimum subdivision lot size for the area in the BLEP 2012,and isolated with no opportunities for amalgamation, or
- The site is small, i.e. less than 600 sqm and there are limited options for on-site parking provision, e.g. the site is mostly occupied by existing buildings and involves only a change of use, or

- Vehicular access is severely constrained, e.g. the site only has frontage to Classified road.

It is the responsibility of the applicant to demonstrate that one or more of the above features applies and that redevelopment or the change of use is unlikely to be viable economically if parking requirements are applied strictly.

This option does not apply to development of residential accommodation or serviced apartments in the B2 Local Centre zone.

The voluntary monetary contribution offered must be equal to the number of spaces not being provided on site, multiplied by the dollar amount of the cost of providing an on-site parking space (see P4 below), less a discount of 50% in recognition of the development economics applying in the B2 zone. The following formula applies, and the calculation is and the calculation is pro-rata, that is, the actual number to 1 decimal point:

(Number of spaces not being provided on site X cost of an on-site parking space) X 0.5 = Visitors Parking contribution in lieu offer. Required spaces to be round-up to the nearest whole number.

Example: (2.2 X [insert current rate from table of fees and charges]) = $[X]

P4 **Parking space cost figures for formulas:** Calculations of the offer for a contribution in lieu of on-site parking provision through the formulas in P2 and P3 above are to use the cost figure per space applicable in the year the Development Application is made, as published in the Schedule of Fees and Charges on Council's website. The cost figure per parking space is updated annually in accordance with construction cost movements.

P5 **Parking for people with a disability:** Notwithstanding any voluntary monetary contribution made under P2 or P3 above, parking for people with a disability required under legislation or applicable Australian Standards must be provided on the site of the development where it is practicable to do so. This is the case even where it amounts to an increased total provision of parking for a development.

P6 **Change of use:** Where Table 2 indicates that additional parking is required for a land use that is a change of use of existing floor area, the above opportunity for voluntary contributions in lieu of on-site provision of parking spaces may apply at Council's discretion where the applicable criteria are met.

P7 Use of funds received under Voluntary Planning Agreements (VPAs): Refer to Council's adopted policy for expenditure of funds received under P3, which is an addendum to Council's VPA policy.

3.9.4 Neighbourhood Centres

Overview

Land zoned B1 Neighbourhood Centre in the BLEP 2012 is located in several small pockets in Tangarra Street Enfield and Arthur St Croydon Park. The main area is on both sides of Croydon rail Station, on land fronting The Strand, and Young/Hennessey Streets.

The former meet a very local need. The Croydon Neighbourhood Centre plays a significant role in meeting local needs for convenience shopping and business services, as well as restaurants and cafes, and takeaway food and drink premises.

The BLEP 2012 does not anticipate or facilitate any significant growth in the smaller neighbourhood centres. Given its special character and inclusion in the Malvern Hill Conservation Area, the Croydon Neighbourhood Centre is unlikely to change significantly. There is already a public off-street parking area for the Centre at the corner of Paisley Road and Fitzroy Street.

The management priorities for the Croydon Neighbourhood Centre focus on traffic to minimise congestion and adverse environmental and amenity impacts, and on parking supply to ensure that the Centre remains viable.

Any requirement for increased parking resulting from new development or intensification of use should be met firstly by on site provision, and if Council agrees this is not possible in the context of site limitations or other priorities such as heritage conservation, acceptance of a voluntary contribution in lieu may be appropriate at Council's discretion and will be administered through a Voluntary Planning Agreement under the Environmental Planning and Assessment Act 1979.

Provisions

P1 **Basic parking requirement:** Development in the B1 Neighbourhood Centre zone must provide parking spaces on site for each proposed land use in accordance with the Table 2.

P2 **Parking for visitors to Centres:** There are no arrangements for Visitors Parking in the Neighbourhood Centres by way of contributions in lieu of on-site provision.

P3 **Other parking not provided on site:** In the B1 zone, if an applicant for development is unable to provide or chooses not to provide the on-site parking spaces as determined from the Table, because it is a difficult site, Council may consider an offer of a monetary contribution in lieu of the on-site provision of the parking spaces. Such an offer is voluntary and will be accepted solely at Council's discretion. If approved by Council, it will be administered through a Voluntary Planning Agreement under the Environmental Planning and Assessment Act 1979.

The characteristics that Council will take into account in determining if a site is a difficult site include:

- The site is very small, i.e. less than the minimum subdivision lot size for the area in the BLEP 2012, and isolated with no opportunities for amalgamation, or
- Vehicular access is severely constrained and there are limited options for on-site parking provision, e.g. the site is mostly occupied by existing buildings and involves only a change of use.

It is the responsibility of the applicant to demonstrate that one or more of the above features applies and that redevelopment or the change of use is unlikely to be viable economically if parking requirements are applied strictly.

Please note that this option does not apply to development of residential accommodation in the B1 Neighbourhood Centre zone.

The voluntary monetary contribution offered must be equal to the number of spaces not being provided on site, multiplied by the dollar amount of the cost of providing an on-site parking space (see P4 below), less a discount of 50% in recognition of the development economics applying in the B1 zone. The following formula applies, and the calculation is pro rata, that is, the actual number to 1 decimal point:

(Number of spaces not being provided on site X cost of an on-site parking space) X 0.5 = Visitors Parking contribution in lieu offer. Required spaces to be round-up to the nearest whole number.

Example: (2.2 X $[insert current rate from table of fees and charges]) X 0.5 = $[X]

P4 **Parking space cost figures for formulas:** Calculations of the offer for a contribution in lieu of on-site parking provision through the formulas in P2 and P3 above are to use the cost figure per space applicable in the year the Development Application is made, as published in the Schedule of Fees and Charges on Council's website. The cost figure per parking space is updated annually in accordance with construction cost movements.

P5 **Parking for people with a disability:** Notwithstanding any voluntary monetary contribution made under P3 above, parking for people with a disability required under legislation or applicable Australian Standards must be provided on the site of the development where it is practicable to do so. This is the case even where it amounts to an increased total provision of parking.

P6 **Change of use:** Where Table 2 indicates that additional parking is required for a land use that is a change of use of existing floor area, the above opportunity for voluntary contributions in lieu of on-site provision of parking spaces may apply at Council's discretion where the applicable criteria are met.

P7 **Use of funds received under Voluntary Planning Agreements (VPAs):** Refer to Council's adopted policy for expenditure of funds received under P3, which is an addendum to Council's VPA policy.

3.9.5 The Parramatta Road Enterprise Corridor

Overview

The Enterprise Corridor in the BLEP 2012 extends along the whole of Parramatta Road within Burwood LGA. Many lots have frontage to this Classified Road only although some lots also have side street frontage or rear lane access.

The Corridor has always played an important regional role as a location for light and general industries, car sales, servicing and repairs, service stations and the like. In recent years many of the car-based functions have remained but there has also been some transition towards bulky goods sales and self-storage activities. Limited parking supply and constrained vehicular access are constraints on development.

The BLEP 2012's application of the B6 Enterprise Corridor zone, is expected maintain the car-related functions while reinforcing the transition towards retail activities involving food and drink premises and those needing large lots such as bulky goods, timber, hardware, garden and landscaping. Development capacity of the corridor is increased under the BLEP, except for residential development which is restricted to limited Shop-top housing not exceeding approximately 10% of gross floor area.

The transport priorities for the Corridor are to reduce impacts on Classified Road traffic flows, improve pedestrian and vehicular safety and contain adverse environmental and amenity impacts. Adequate on-site parking provision with safe access is important. The elongated corridor makes it difficult to provide public off-street parking that would benefit a large number of lots.

Provisions

P1 **Basic parking requirement:** Development in the B6 Enterprise Corridor zone must provide parking spaces on site for each proposed land use in accordance with the Table 2. Applications that do not meet this requirement will be refused.

P2 **Voluntary contributions in lieu of on-site parking:** There are no arrangements in the Enterprise Corridor for voluntary contributions in lieu of on-site provision of the parking generated by the development. All parking required for a development must be provided on site.

3.9.6 General Requirements in All Centres and Corridors – B1, B2, B4 & B6 Zones

P1 **Compliance with Australian Standards:** The design and construction of on-site:

- parking areas and parking spaces
- service and loading/unloading areas
- access to, from and within these facilities

is to comply with the applicable Australian Standards. These Standards cover a range of technical requirements including design elements, dimensions, gradients, headroom, curves, delivery and service areas, and special requirements for people with disabilities.

The applicable standards are the most recent versions of:

- AS 2890.1 Part 1: Off-street car parking.
- AS 2890.2 Part 2: Off-street commercial vehicle facilities.
- AS 2890.3 Part 3: Bicycle parking facilities.
- AS 2890.5 Part 5: On-street parking.
- AS 2890.6 Part 6: Off-street parking for people with disabilities.
- AS 1428.1: Design for access and mobility.
- AS 1735.12: Lifts, escalators and moving walks - Facilities for persons with disabilities.

P2 **Other general compliance matters:**

The provision of on-site parking areas, and loading and servicing facilities, must contribute to the retention and enhancement of the quality and integrity of the streetscape and integrate with surrounding development.

A loading dock and servicing facilities for developments must be provided as required by AS 2890.2 Part 2: Off-street commercial vehicle facilities, or in any case for all developments erected on land having an area greater than 1500 sqm.

Where parking is provided for development that includes Retail premises and Business premises, and all of the required parking is provided on-site (i.e. the development has not made a substantial voluntary contribution for parking in lieu of on-site provision), the following additional requirements apply:

- the parking area must be open for public use within the normal trading and operating hours of the site
    - the parking area must be accessible with appropriate directional signage, and must be clearly marked and signposted as public parking

- within the building where the parking is located, there must be clear, signposted and safe access between the parking area and the retail or business premises on the site
- the management of the parking area in terms of signage, access permission, fees charged and time limits of parking, and any changes to such management, is subject to Council's approval as part of the Development Application process
- these requirements apply whether or not a parking area is open to public use on a paid or unpaid basis.

Installation of automated or mechanical car parking systems to meet car parking requirements for developments is not supported. Experience with and observation of these systems indicates significant potential for adverse impacts arising from slow operation causing vehicle queuing, vehicle size constraints that are not appropriate in Australia, and unreliability in cases of mechanical, hydraulic or electrical failure. Provision of free-standing spaces accessed by ramps is preferred. If restricted site size limits provision of traditional on-site parking, consideration should be given to a voluntary contribution in lieu of parking in cases where this is accepted under this DCP, or consolidation of lots to create a larger development site.

Proposals to extend basement parking levels from private development sites into the areas of Council's road reserves will not be supported. This is due to the practical, technical and legal constraints and complexities in implementation of this action by both Council and the private site developer.

P3 Vehicular Access and Footpath Crossings

All vehicles must be able to leave on-site parking and service areas in a forward direction. Vehicular access for development must be provided from lanes and minor or secondary streets where available, rather than major streets or Classified Roads.

In particular, new vehicular access to land in the B4 Mixed Use zone from Burwood Road or The Boulevarde, or to land in the B2 Local centre zone from Liverpool Road will not be approved.

Vehicular access and footpath crossings must be minimised where provided the safety of pedestrians and cyclists must be maintained and there should be no more impacts on bus operations.

Where loading and servicing facilities are provided, there must be sufficient space to enable a nine metre rigid vehicle to queue off the street without impacting on footpath crossings.

Vehicular access must have a nominal width of 2.7 metres over the footpath, and be perpendicular to the kerb alignment. In exceptional circumstances, a double crossing with a nominal width of 5.4 metres may be permitted for safety reasons.

Loading dock and other service functions must not interfere with vehicular access to parking areas.

Openings in buildings that provide vehicular access must have automatic closing doors to conceal the opening from any public place.

Doorways in buildings at vehicular access points must incorporate design details that create visual interest.

Vehicular access points must have high quality finishes to walls and ceilings as well as high standard detailing that is integrated with the building design. Service ducts or pipes must not be visible from the street.

Separated and clearly differentiated pedestrian and vehicular access must be provided, with vehicular access a minimum of 3m from pedestrian access.

P4 Plans and reports on transport, traffic and parking to support Development Applications:

To provide adequate information for the assessment of proposals, Development Applications are to be supported by one of the following reports, depending on the scale and impact of the proposal.

1. Major Development - Transport, Traffic and Parking Impact Report and Management Plans

Major Development, for the purposes of this subsection means any Commercial premises (as defined in the BLEP 2012) with a gross floor area of more than 2,000 sqm, or any residential accommodation (as defined in the BLEP 2012) comprising 30 or more dwellings, or as otherwise determined by Council.

A Development Application for Major Development in any zone is to be accompanied by a Transport, Traffic and Parking Impact Report and Management Plan prepared by a suitably qualified and experienced professional in traffic and transport, addressing the following matters:

- The proposed development and its suitability in terms of transport, traffic and parking impact
- The existing parking and traffic conditions
- The proposed traffic, parking and vehicle access arrangements
- The accessibility of public transport services, and walking and cycling facilities
- The intended measures to encourage public transport use, walking and cycling, and reduce the use of private motor cars
- The impact of the development on the surrounding street network and intended measures to ameliorate or manage that impact
- The impact of the proposed development on the efficient and safe operation of bus services and passenger access
- The design and compliance with applicable Australian Standards
- Pedestrian and cyclist safety, personal security and safe access from parking areas to activities on a site or in the centre
- Signage and visual prominence of parking areas and accessibility during day and night periods
- Provision for loading, unloading and service facilities
- Provision for parking of bicycles and facilities for use of cyclists
- A management plan covering management of traffic impacts and intended measures to encourage public transport use, walking and cycling, and to manage travel demand
- Consistency with general aims and zone objectives of the BLEP 2012
- Consistency with the aims and objectives of this DCP set out in Section 2
- Compliance with the applicable requirements of this DCP Part.

2. Other Development - Transport, Traffic and Parking Impact Report

A Development Application for other development, not being Major Development, and located

- in the B4 Mixed Use and B6 Enterprise Corridor zones, or
- in any other zone as determined by Council on a case-by-case basis,

is to be accompanied by a Transport, Traffic and Parking Impact Report prepared by a suitably qualified and experienced professional in traffic and transport, addressing the following matters:

- The proposed development
- The existing parking and traffic conditions and public transport conditions
- The proposed traffic, parking and access arrangements
- The impact of the development on traffic conditions in the surrounding street network including bus operations and intended measures to ameliorate or manage that impact
- Compliance with the applicable requirements of this DCP
- Consistency with the aims and objectives of this DCP set out in Section 2.

P5 Cycling

Increased use of cycle travel to, from and within Burwood's centres and corridors can help reduce reliance on private cars and improve public health. Burwood Council and the Inner West Sub-region have suitable terrain and the network of local and regional cycle paths is under continuous improvement. The following requirements apply:

- Development of Commercial premises involving the construction of gross floor area in excess of 400 sqm or three dwellings must include facilities for parking of bicycles (racks and lockers) and showers/change rooms for use by bicycle riders.
- Standards for the number of bicycle parking facilities and number of showers/lockers for different land uses are provided in Cycling Aspects of Austroads Guides (Austroads and Standards Australia 1999) and Planning Guidelines for Walking and Cycling (Department of Planning and the Roads and Traffic Authority 2004) developments must demonstrate compliance with the requirements of either of these publications.
- Design of bicycle parking facilities (racks and lockers) must be in accordance with the provisions of Australian Standard 2890.3 – Parking Facilities or Austroads Guide to Engineering Practice Part 14 – Bicycles. Shower and change room facilities to have a combined area of not less than 2 sqm each.
- Bicycle parking devices must meet the following general requirements:
  - Enable wheels and frame to be locked to the device without damaging the vehicle.
  - Be well located and lit for security purposes.
  - Be in a convenient and accessible location outside pedestrian and vehicle movement paths.
  - Be protected from motor vehicle movements and useable without damaging other bicycles.
  - Be protected from the weather.
  - Designed to fit in with the development.

P6 Active Travel Demand Management

Travel demand management initiatives should be employed in new developments in centres and corridors with the aim of reducing car based travel and encouraging greater use of public transport, cycling, walking, and car sharing for commuting and work related journeys. Major developments are encouraged to assess their impacts on travel demand and incorporate measures to encourage more sustainable travel.

- Development that comprises Major Development must include a Travel Demand Management section in the Transport, Traffic and Parking Impact Report and Management Plan to accompany the DA. Major Development is as defined in P4 above.
- Examples of initiatives to be considered in the section include:
  - Distributing brochures to occupants about public transport options available in the BTC
  - Posting up to date public transport information on a prominently located notice board in the main foyer of the development.
  - Providing staff with a limited number of free trips on local public transport, e.g. TravelTen.
  - Providing staff with a substantial discount or subsidy on public transport costs
  - Providing special transport to pick up and drop off occupants to the nearest railway station
  - Providing staff with cycling allowances, loans and insurance together with bicycle storage and showering and changing facilities
  - Adopting car pool scheme for work related journeys
  - Introducing occupant car sharing scheme
  - Using taxis for work related journeys.

Table 2. Car Parking Rates in Centres and Corridors

Applies to zones:

B1 Neighbourhood Centre
B2 Local Centre
B4 Mixed Use
B6 Enterprise Corridor

Land Use	Car Parking Rates Applying Where the Land Use is Permitted in the Zone	Notes and other requirements
General - The stated parking provision rates are the minimum requirement, except where indicated otherwise for a specific land use. - Calculation of the number of parking spaces required for a development is to be determined by rounding up to the nearest whole number where the decimal point is 0.5 and above, or rounded down to the nearest whole number where the decimal point is below 0.5. - All parking is to be provided on the site of the development except where indicated otherwise for a specific land use. - In all cases the square metre areas in the Table refer to gross floor area as defined in the BLEP 2012 (or in a SEPP where applicable). - The BTC is defined on the BLEP 2012 Burwood Town Centre Map. - Parking requirements for uses identified in the section on *Retail Premises Subgroup and Related* are to be fully allocated as visitor parking except for the first parking space, which may be allocated for staff / shopkeeper parking. Visitor and staff / shopkeeper parking should be clearly displayed on plans submitted with any Development Application. Visitor parking spaces must not at any time be allocated, sold or leased to an individual person or company and must be strictly retained as common property by the Owners Corporation for use by building visitors.		
Land Use	**Car Parking Rates Applying Where the Land Use is Permitted in the Zone**	**Notes and other requirements**
Residential Accommodation Category and Related		
Dwelling houses, attached dwellings, semi-detached dwellings, secondary dwellings, dual occupancies	▪ 1 space per dwelling.	
Residential flat buildings Shop top housing Multi dwelling housing	Parking for residents ▪ O.5 spaces per studio or bed-sitter unit. ▪ 1 space per I and 2 bedroom unit. ▪ 1.5 spaces per 3 bedroom unit. Parking for visitors to residents of the development (Visitors Parking) ▪ 1 space per 5 units.	▪ For the purposes of calculating visitors parking, a studio or bedsitter unit is counted as half a unit. ▪ See P2 in Section 3.9.2 in relation to Visitors Parking in the B4 Mixed Use zone.

Boarding house, Co-living housing	▪ Car Parking for residents – refer to the Housing SEPP ▪ Bicycle parking – one space per five rooms or part thereof ▪ Motorcycle parking – one space per five rooms or part thereof	
Seniors housing	▪ Refer to parking requirements specified in State Environmental Planning Policy – Housing for Seniors or People with Disability 2004.	
Group homes	▪ Refer to parking requirements specified in State Environmental Planning Policy (Affordable Rental Housing) 2009.	
Home-based child care	▪ As per requirements for dwelling houses, attached dwellings, semi-detached dwellings, secondary dwellings, dual occupancies, as applicable. ▪ Plus 1 space and access and turning facilities for short-stay set-down and pick-up of children.	
Home industries	▪ As per requirements for dwelling houses, attached dwellings, semi-detached dwellings, secondary dwellings, dual occupancies. ▪ Plus 1 space for employees not resident on site.	
Home occupations	▪ As per requirements for dwelling houses, attached dwellings, semi-detached dwellings, secondary dwellings, dual occupancies.	
Tourist and Visitor Accommodation Category and Related		
Backpackers' accommodation	▪ 1 space per accommodation unit. ▪ 2 spaces for employees involved in the Tourist and visitor accommodation business.	
Bed and breakfast accommodation		
Hotel or motel accommodation		
Serviced apartments		
Other not defined		

Commercial Premises Category and Related		
Office premises Business premises	**On land zoned B4 Mixed Use in the BTC** ▪ Commercial Core and Middle Ring Areas - 1 space for the first 400 sqm or part thereof, plus - 1 space per 120 sqm or part thereof additional to the first 400 sqm. Up to 20% of this can be regarded as parking for visitors to the office or business premises (Visitors Parking). ▪ In Perimeter and Transition Areas - 1 space for the first 400 sqm or part thereof, plus - 1 space per 80 sqm or part thereof additional to the first 400 sqm. Up to 20% of this can be regarded as parking for visitors to the office or business premises (Visitors Parking). **On other land zoned B4 Mixed Use** ▪ As per the requirements for Perimeter and Transition Areas above. **On land zoned B2 Local Centre, B1 Neighbourhood Centre and B6 Enterprise Corridor** ▪ 1 space per 50 sqm.	▪ The BTC is defined on the BLEP 2012 Burwood Town Centre Map. ▪ The BTC Areas are defined on Figure 24 of this DCP. ▪ The provisions of P2 in Section 3.9.2 in relation to Visitors Parking in the B4 Mixed Use zone may apply to these land uses.
Retail Premises Subgroup and Related		
Bulky good premises garden centres hardware and building supplies landscaping material supplies markets plant nurseries roadside stalls Rural supplies timberyards wholesale supplies	▪ 1 space per 33 sqm.	
Pubs registered clubs	▪ 1 space per 5 sqm of bar, lounge, dining, auditorium or entertainment area.	▪ The provisions of P2 in Section 3.9.2 in relation to Visitors Parking in the B4 Mixed Use zone may apply to these land uses.
Restaurants or cafés other food and drink premises not defined	**On land zoned B4 Mixed Use** - 1 space for the first 400 sqm or part thereof, plus - 1 space per 40 sqm or part thereof additional to the first 400 sqm. **In all other business zones** - 1 space per 40 sqm or part thereof.	
Takeaway food and drink premises	▪ 1 space per 3 seats (internal and external to the building). ▪ Adequate provision for queuing of vehicles.	
Kiosks	No parking requirement.	

Service stations	▪ 6 spaces per work bay plus ▪ 1 spaces per 20 sqm or part thereof of shop or food and drink premises included on site.	
Sex services premises	▪ 2 spaces per sex worker and ▪ 1 space per non-sex worker (e.g. manager and security).	
Veterinary hospitals	▪ 4 spaces per veterinary care professional being 1 space for the health care professional, 1 space for an employee and 2 spaces for attendee animal owners.	
Shops amusement centres industrial retail outlets other retail premises not defined	**On land zoned B4 Mixed Use** ▪ 1 space for the first 400 sqm or part thereof, plus ▪ 1 space per 40 sqm or part thereof additional to the first 400 sqm. **In all other business zones:** ▪ 1 space per 40 sqm or part thereof.	▪ The provisions of P2 in Section 3.9.2 in relation to Visitors Parking in the B4 Mixed Use zone may apply to these land uses.
Neighbourhood shops	▪ 1 space per 50 sqm in all zones. ▪ Except in the B6 Enterprise Corridor zone – no parking required.	
Vehicle hire or sales premises	▪ As for Business premises in zone.	
Entertainment facilities function centres	▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, as applicable.	▪ The provisions of P2 in Section 3.9.2 in relation to Visitors Parking in the B4 Mixed Use zone may apply to these land uses.
Industry, Storage and Related		
Light industries (any kind)	▪ 1 space per 100 sqm.	
Vehicle body repair workshops	▪ 1 space per 50 sqm.	
Vehicle repair stations	▪ 6 spaces per work bay.	
Self storage units	▪ 1 space per 10 storage units.	
Warehouse or distribution centres	▪ 1 space per 100 sqm or 1 space per 2 staff, whichever is the greater.	
Transport Category and Related		
Freight transport facilities	▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, as applicable.	▪ Council may obtain a peer review of the Report at the applicant's expense.
Passenger transport facilities		
Transport depots		
Truck depots		
Community Category and Related		

Educational establishments	▪ For primary and secondary schools - 1 space per classroom. ▪ For tertiary establishments in Business zones – as for Business premises in the zone. ▪ For tertiary establishments in other zones - Where the site is within 400m of a rail station, as for Business premises in the Business zone adjacent to the station. - Where the site is more than 400m from a rail station, 1 space per full time equivalent employee and 1 space per 10 students.	
Child care centres	▪ If child care centre is located within 400m of a metropolitan train station: - 1 space per 10 children and 1 space per 2 staff ▪ In all other areas: - 1 space per 4 children	
Industrial training facilities	▪ Where the site is within 400m of a rail station, as for Business premises in the Business zone adjacent to the station. ▪ Where the site is more than 400m from a rail station, 1 space per full time equivalent employee and 1 space per 10 students.	
Community facilities information and education facilities	▪ As determined by Council's Management Plan for the specific facility.	
Places of public worship	▪ 1 space per 10 seats where fixed seating is provided. ▪ 1 space per 18 sqm where fixed seating is not provided.	▪ The provisions of P2 in Section 3.9.2 in relation to Visitors Parking in the B4 Mixed Use zone may apply to this land use.
Public administration buildings	▪ As for Business premises in the zone.	
Respite day care centres	▪ 1 space per 4 persons of maximum capacity. ▪ Access and turning facilities for short-stay set-down and pick-up of attendees.	
Recreation areas and Recreation facilities (indoor)	▪ As determined case-by-case on the basis of a Transport, Traffic and Parking Impact Report and Management Plan prepared by the applicant.	▪ Council may obtain a peer review of the Report at the applicant's expense.
Mortuaries	▪ As for Business premises in the zone	
Health Services Facilities Subgroup		
Health consulting rooms medical centres	▪ 4 spaces per health care professional (doctor, dentist or other) being 1 space for the health care professional, 1 space for an employee and 2 spaces for patients.	

Hospitals	▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, as applicable prepared by the applicant.	▪ Council may obtain a peer review of the Report at the applicant's expense.
Miscellaneous		
Any land use or activity not covered by any of the above	▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, as applicable.	
Mixed uses	▪ As determined from this Table for the requirements of the individual land uses involved.	

3.10 Heritage in Centres and Corridors

Introduction

This section applies to the development of heritage items (including potential or draft heritage items), properties in a Heritage Conservation Area, and development in the vicinity of a heritage item or conservation area, where the developable property or heritage property is located in a Centre or Corridor.

A reference to 'heritage property' herein means a property containing a heritage item, potential or draft heritage item, or a property within a Heritage Conservation Area (HCA). Heritage items and HCAs are listed in Schedule 5 of the BLEP 2012.

Where a development involves residential development, the heritage controls under Part 4 may also be applied.

Advisory Note:
Section 4.7.4.2 contains additional controls applying to The Strand shopping centre, which lies within the Malvern Hill Conservation Area.

Objectives and Provisions

The development of a heritage property or its setting must have regard to the character, appearance and significance of that item or place.

Demolition of heritage properties or removal of important components which contribute to their heritage significance will only be considered when supported by a detailed Heritage Impact Statement (HIS) or Conservation Management Plan (CMP).

Objectives

O1 To support the retention of heritage properties and maintain their heritage significance.

O2 To ensure that alterations or additions to heritage properties are sympathetic to the heritage significance of the property and in keeping with its character.

O3 To ensure that development located in the vicinity of a heritage item is designed and sited in a manner sympathetic to the significance of the heritage property and its setting.

O4 To facilitate adaptive re-use of heritage properties where such a use would contribute to the ongoing maintenance and viability of that item or place.

Provisions

General Provisions

P1 Development Applications that propose works to, or demolition of, a heritage property are required to submit a heritage report, known as a Heritage Impact Statement (HIS), prepared by a qualified and recognised heritage professional as part of the application to Council. This report shall detail the impacts of the proposed development on the heritage significance of the property. Council may, at its discretion, require a Conservation Management Plan (CMP), instead of a HIS.

P2 Where substantial demolition is proposed, the HIS is required to provide justification on heritage grounds and demonstrate that options for retention have been

investigated. An assessment of significance must include a comparative analysis of the building in relation to others of its kind in the local area. Claims concerning physical condition are required to be supported by a Structural Engineer's report. Conclusions should be based upon the heritage significance of the property, not on the development potential of the land it is situated upon.

P3 Council will require the submission of a heritage statement, prepared in accordance with the NSW Heritage Branch guideline *Statements of Heritage Impact*, where development is proposed adjacent to a heritage property.

P4 Major re-development of a heritage property shall have regard to the NSW Heritage Branch's *Design in Context: Guidelines for Infill Development in the Historic Environment*.

Building Design Considerations

P5 Development of a heritage property must:
- Provide a use that is compatible with its heritage significance.
- Be sympathetic in terms of its design, bulk, scale and character.
- Adopt materials/finishes, form, proportions and detailing that responds to the traditional style of the heritage property.
- Provide adequate setbacks around the heritage property to ensure the maintenance of its historic setting and facilitate interpretation.

P6 Development in the vicinity of a heritage property must be designed to have regard to the heritage property's:
- Scale and character.
- Form and proportions.
- Materials, colours and finishes.
- Street alignment and established setbacks in the surrounding area.

P7 Where a heritage property features a freestanding, heritage-significant building (e.g. house, church, terrace row), any development having three storeys or more which is contiguous to that heritage property will generally be expected to observe a 5 metre minimum setback from the heritage property's boundary (and 4 metre minimum setback for any below-ground excavation/basement).

P8 Development or adaptive re-use of a heritage property should seek to retain significant external and internal fabric. In particular, those public and community buildings (e.g. churches, schools, hospitals, community halls), pubs and hotels, or other buildings with high public visitation.

For example, significant external design details may include wall tiles, historic advertising, pressed metal awning soffits, balconies, doors and joinery. Significant internal design details may include staircases, plasterwork, joinery or fittings. The spatial qualities of a building will sometimes also be important.

P9 Development should retain sufficient evidence of the significant internal layout to enable interpretation. Retaining evidence of former room layouts can be achieved by retaining evidence of the cellular pattern through joinery, ceilings, nibs and bulkheads.

Incorporating Heritage Items into New Development

P10 Where a larger development proposes to incorporate a heritage item or significant place, the design must include appropriate measures to:

- Retain an appropriate setting to allow for the continued appreciation and integrity of the heritage item.
- Ensure the heritage item is not visually obscured or adversely altered, particularly regarding sight lines from the public domain.

P11 Where a development involves subdivision, Council will generally require that repair or restorative work to the heritage property is undertaken prior to the subdivision. This approach seeks to ensure that the conservation of the heritage property is integral to the redevelopment.

Sight Lines

P12 Development adjacent to a heritage property must incorporate front and/or side setbacks to achieve sight lines to the significant building in accordance with **Figure 56**. More generous setbacks may be required to achieve views and vistas. Refer to P13 in the following section for further details. The front alignment of a new development must be sympathetic to the heritage property.

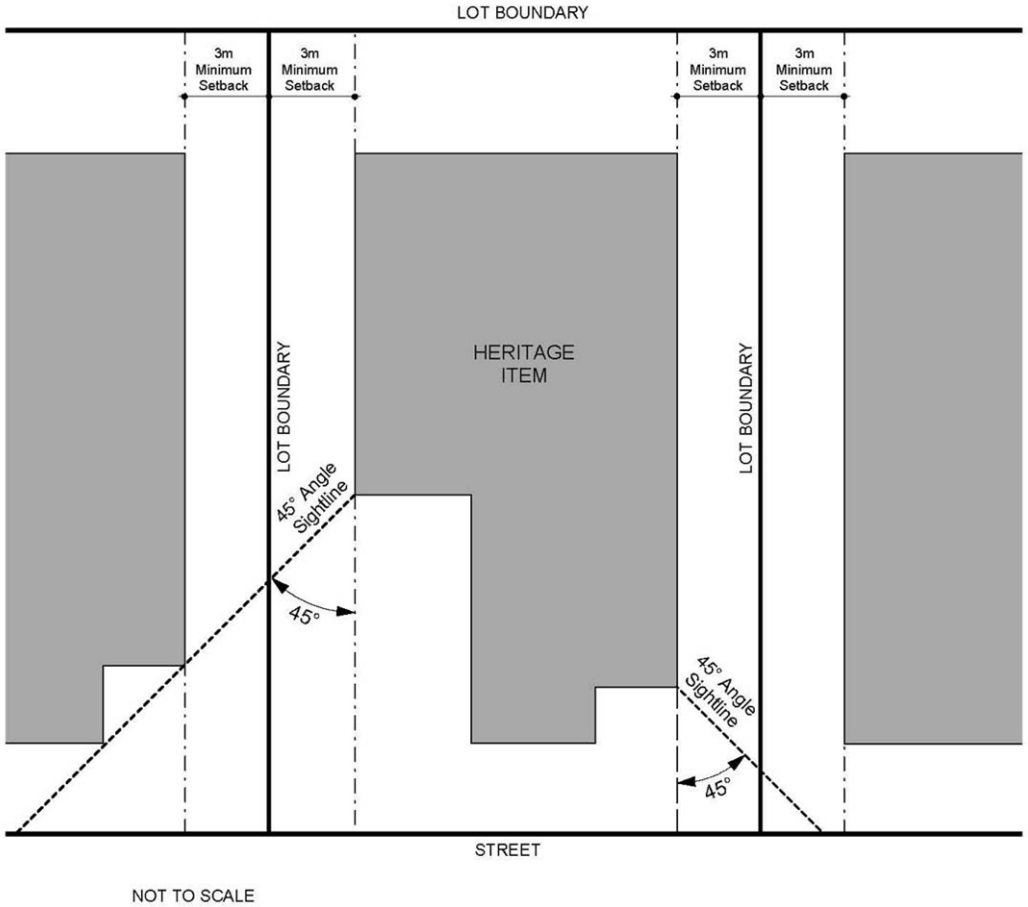


Figure 56. Minimum Setbacks for Development Adjacent to a Heritage Item or Heritage Conservation Area

Views and Vistas

P13 Development of a heritage property, or development in its vicinity, must:

- Provide an adequate area of land around the development to allow interpretation of the significant building or place.
- Not detract from the setting of the heritage property.
- Retain and respect significant views/vistas from the public domain to a heritage property, as well as the views/vistas originating from the heritage property itself.

Terrace Buildings

P14 Development within a terrace group is to be designed with strict regard to the overall group in terms of height, alignment, form, scale, materials and architectural character.

Adaptive Re-Use

P15 The adaptive re-use of heritage properties is generally supported where Council is satisfied that such a use would contribute to the ongoing maintenance and viability of that item or place.

P16 Adaptive re-use shall require that particular attention be given to original interior features of a building and the original layout of rooms, particularly where that building is proposed to be used for a business purpose and there would be some degree of public visitation.

P17 Where a development relies on the conservation incentive provisions under clause 5.10 (10) of the BLEP 2012, consideration will be given to the extent of alteration proposed and operation matters in respect to that use, such as the location of parking. A CMP is required in proposals which rely on the incentive provisions.

Signage, Visual Presentation and Colour Schemes

P18 Signage proposed upon historic facades or exteriors shall not obscure significant architectural elements, nor detract from the character of the heritage property.

P19 Signage shall be restricted upon historic facades. Where applicable, the signs should occupy the areas upon a building traditionally reserved for signage, such as the top hamper or awning fascia. Signage should be addressed as an overall scheme to avoid the accumulation of signs over time.

P20 Projecting signs are not permitted upon heritage properties.

P21 Roller shutters, security bars or similar devices shall not be permitted upon a heritage property as these obscure significant architectural elements and detract from the character of buildings. In general, sympathetic alternatives can be found to address the security of business/office/retail premises, such as anti-theft glass and internal locks.

P22 Redevelopment shall be taken as an opportunity to remove unsympathetic work upon a heritage property, such as air conditioning units above shop awnings, or earlier signage. Redevelopment should also be used to reinstate lost building elements.

P23 Exterior stonework and face brickwork of a heritage property shall not be painted or otherwise obscured. The cement rendering of masonry exteriors is generally not supported on heritage grounds.

P24 Original and early landscaping that includes plantings with direct links or association to the heritage property must be retained.

P25 New colour schemes should reflect the most significant design period of the heritage property. Corporate colours will not be permitted to dominate the architectural elements of a building or obscure building features.

P26 New colour schemes for a building in the vicinity of a heritage property must not detract from the setting of the heritage property.

3.11 Public Domain and Amenity

Overview

In each of Burwood's centres and corridors, Council aims to develop high quality public spaces, improve the public domain and pedestrian linkages between activity areas, and facilitate active streets for shopping, business and recreation.

Aims

- To establish positive public images for the centres and corridors
- To integrate the residential and commercial characters of the Town and Local Centres
- To encourage active streets within the centre's main shopping and business precincts
- To integrate building street front setback areas with the function and character of streets
- To provide safe and pedestrian friendly environments in streets and laneways including for people with a mobility impairment
- To improve pedestrian linkages, and create meeting places and focal points for community activities in the Town Centres
- To enhance the pedestrian and visual amenity of the streetscapes
- To maximise solar access to major public open space.

3.11.1 Public Domain – Burwood Town Centre

The overall public domain strategy for the BTC is illustrated in **Figure 57**. It shows the interrelationships between the various public domain and amenity provisions and the goals that Council is seeking to achieve in the long-term.

Advisory Note:
Areas may be in private ownership but are used by the general public, thereby also considered as public domain.

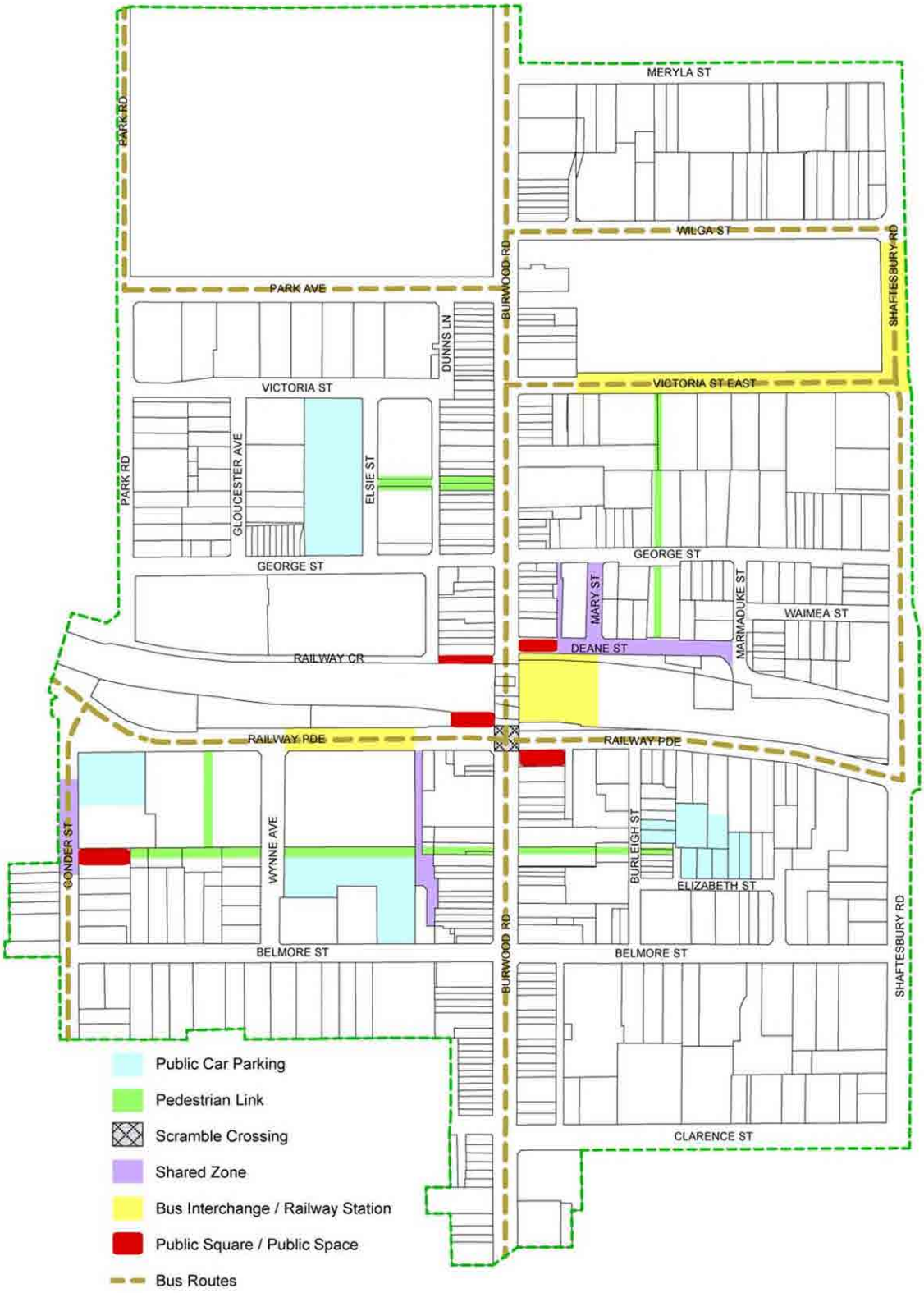


Figure 57. Public Domain Strategy – Burwood Town Centre

3.11.2 Public Squares and Forecourts

Objectives

O1 To provide public squares and forecourts that are safe, accessible, comfortable and active for day and night use.

O2 To separate pedestrian and vehicular movements.

O3 To provide for a variety of passive and active uses.

Provisions

Advisory Note:
Figure 57 indicates the general location of existing and proposed public squares and forecourts within the BTC.

P1 The ground levels of developments that are adjacent to/have frontage to designated public squares and forecourts must provide active uses which address and define the edges of the squares and forecourts, and upper levels must enable casual surveillance.

P2 Developments must provide access to designated public squares and forecourts that is suitable for people with mobility impairment.

P3 The squares and forecourts must be unobstructed by buildings, open to the sky and have direct and physical linkages into and through the squares and forecourts.



Figure 58. Seating and Furniture in a Public Square



Figure 59. Proposed Public Squares and Forecourts

3.11.3 Pedestrian Links

Objectives

O1 To improve the pedestrian network in the BTC by providing well-located, safe and attractive pedestrian links between existing streets.

O2 To increase the permeability of the pedestrian network by providing pedestrian links through private development.

O3 To maintain an open character in the pedestrian link, ensure sufficient building separation and provide adequate solar access.

Provisions

P1 Existing pedestrian links must be retained or replaced.

P2 New pedestrian links are to be provided in the indicative locations illustrated in **Figure 60**. A pedestrian link can be in the form of an arcade or a pathway. The exact location and form of a pedestrian link in each case will be determined as part of detailed development planning.

P3 Existing and new pedestrian links should complement and link with each other to improve the pedestrian network.

P4 Any pedestrian link must:

- Have interactive uses and provide casual visual surveillance.
- Be obvious and direct through-ways for pedestrians.
- Minimise barriers to mobility through the link.
- In the case of an arcade, provide public access from at least 6am to 10pm daily. If it is a pathway, provide and maintain uncontrolled (no gates, doors or the like) public access at all times (24 hours a day, 7 days a week).
- Have a minimum width of 4.5 metres, clear of all obstructions and where possible a width of 6 metres (except for the pedestrian link between Hornsey Street and Clarendon Place).
- Have signage at the street entries indicating public accessibility and the name of the street to which the connection links.



Figure 60. Pedestrian Links in Burwood Town Centre

Pedestrian Link between Hornsey Street and Clarendon Place

P5 This pedestrian link must:

- Have a minimum width of 9 metres
- Be unobstructed by buildings and open to the sky for all of its width except where consent is given to the provision of awnings cantilevered from buildings located on land fronting the pedestrian link, and such awnings must not encroach on the width by more than 30%.

- Be activated by entrances to retail, office and residential uses.
- Minimise barriers to mobility through the link including through compliance with AS 1428.1-2009 – Design for access and mobility - General requirements for access - New building work.
- Have clearly identifiable access points that interact with the active edges of retail and business uses at ground level.
- Be landscaped in accordance with Council's Public Domain Plans as amended, and be of species selected from Council's Street Tree Management Strategy.

P6 Passive surveillance from the upper levels of balconies and living areas must be provided.

P7 Where any outdoor retail activity is proposed, the shopfront must be setback from the pedestrian link, as shown in the **Figure 61**.

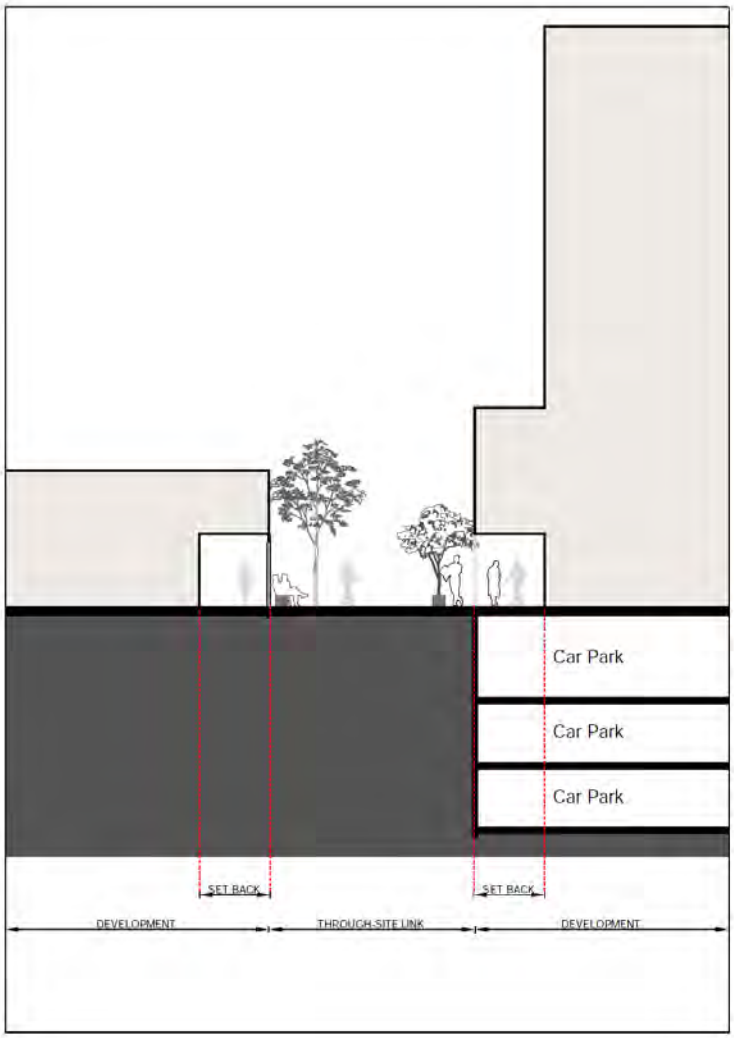


Figure 61. Setbacks for the Hornsey Street – Clarendon Place Pedestrian Link

3.11.4 Lanes

Objectives

O1 To retain and develop lanes as useful and interesting pedestrian connections as well as for service access.

Provisions

P1 Existing lanes in the BTC should be retained (refer to **Figure 62**).

P2 Where development has a frontage to a lane that is also a pedestrian route, the environment of the lane must be improved by providing design details that create visual interest and improve public safety and amenity.



Figure 62. Location of Lanes within the Burwood Town Centre

3.11.5 Treatment of Street Front Setbacks

Objectives

O1 To improve the relationship between the public domain and development on private land.

O2 To facilitate improved pedestrian movement, activities and access in the public domain.

Provisions

P1 In the Commercial Core and Middle Ring Areas, where a street front setback of development is required in **Figure 28**, the setback area is to be treated and upgraded in a manner consistent with the requirements for the public domain immediately in front of the development. A right of pedestrian and vehicle movement by way of an easement in Council's favour in accordance with a Section 88B Instrument under the Conveyancing Act 1919 over the setback area is to be placed on the title of the land.

P2 In the Perimeter and Transition Areas, where a street front setback is required in **Figure 32**:

- Where the development is wholly for residential purposes, the setback area remains part of the common property of the residential development and is to be landscaped and maintained accordingly.

- Where the development is for mixed use or non-residential purposes at street level, and the setback is 3m or more, the setback area is to be treated and upgraded in a manner consistent with the requirements for the public domain immediately in front of the development. A right of pedestrian and vehicle movement by way of an easement in Council's favour in accordance with a Section 88B Instrument under the Conveyancing Act 1919 over the setback area is to be placed on the title of the land.

P3 Where a street front setback is required and the development is for non-residential purposes at ground level, the provision of cantilevered awnings over the setback area is encouraged.

3.11.6 Public Domain Finishes and Elements within Development

Objectives

O1 To ensure that there is a high quality public domain through coordinating designed elements.

O2 To ensure that development provides for high quality public domain elements and finishes.

Provisions

P1 Appropriate lighting must be provided in publicly accessible areas of development that responds to a range of environmental factors such as location, scale and streetscape, to highlight architectural features, incorporate banners and art. These must be cost effective in power usage and maintenance. Solar powered lighting options are encouraged.

P2 Where publicly accessible areas are provided within a development, all elements including paving, street furniture, planting, fences, kerbs and drainage must be provided to a standard not less than would be required in Council's Public Works Elements Manual (Final Draft June 2006).

3.11.7 Solar Access to Burwood Park

Objective

O1 To ensure that there is adequate solar access to Burwood Park

Provision

P1 Development must not cast shadows over Burwood Park between 10.00am and 2.00pm on 21 June.

3.11.8 Acquisition of Land for Traffic Management and Open Space

This section deals with Council's strategy to acquire certain land in the BTC to improve traffic management and public open space provision. Council's acquisition strategy is additional to the inclusion of parcels of land in the Land Reservation Acquisition Map of the BLEP 2012.

Objectives

O1 To ensure the proper management of traffic on roads in the BTC as the Centre grows and develops by acquiring additional land for road widening.

O2 To ensure the provision of additional open space in the BTC to cater for growth in the resident population, workforce and visitors to the Centre

O3 To acquire the land for this purpose through negotiation with the land owner at an opportune time to be agreed between the landowner and Council.

Provisions

P1 The following parcels of land that are indicated by designation on Figure 30 are part of an acquisition strategy by Council for the purpose indicated:

- A, being part of Lot C in DP 411585 (47-47A Burwood Road) - road widening.
- C, being part of Lot 1 in DP 198 (118-120 Burwood Road) - road widening.
- F, being Lot 1 in DP 102952 (currently pedestrian walkway) - road widening.
- G, being Lot 1 in DP 330221 and Lot 1 in DP 71397 (49-51 Burwood Road) - road widening.
- H, being Lot 2 in DP 222750 (168 Burwood Road) - local public open space.

P2 The land parcels will be acquired at an opportune time agreed by both the landowner and Council, such as purchase by Council when a property is placed on the market, or via an agreement for dedication of the land to Council as part of a redevelopment application.

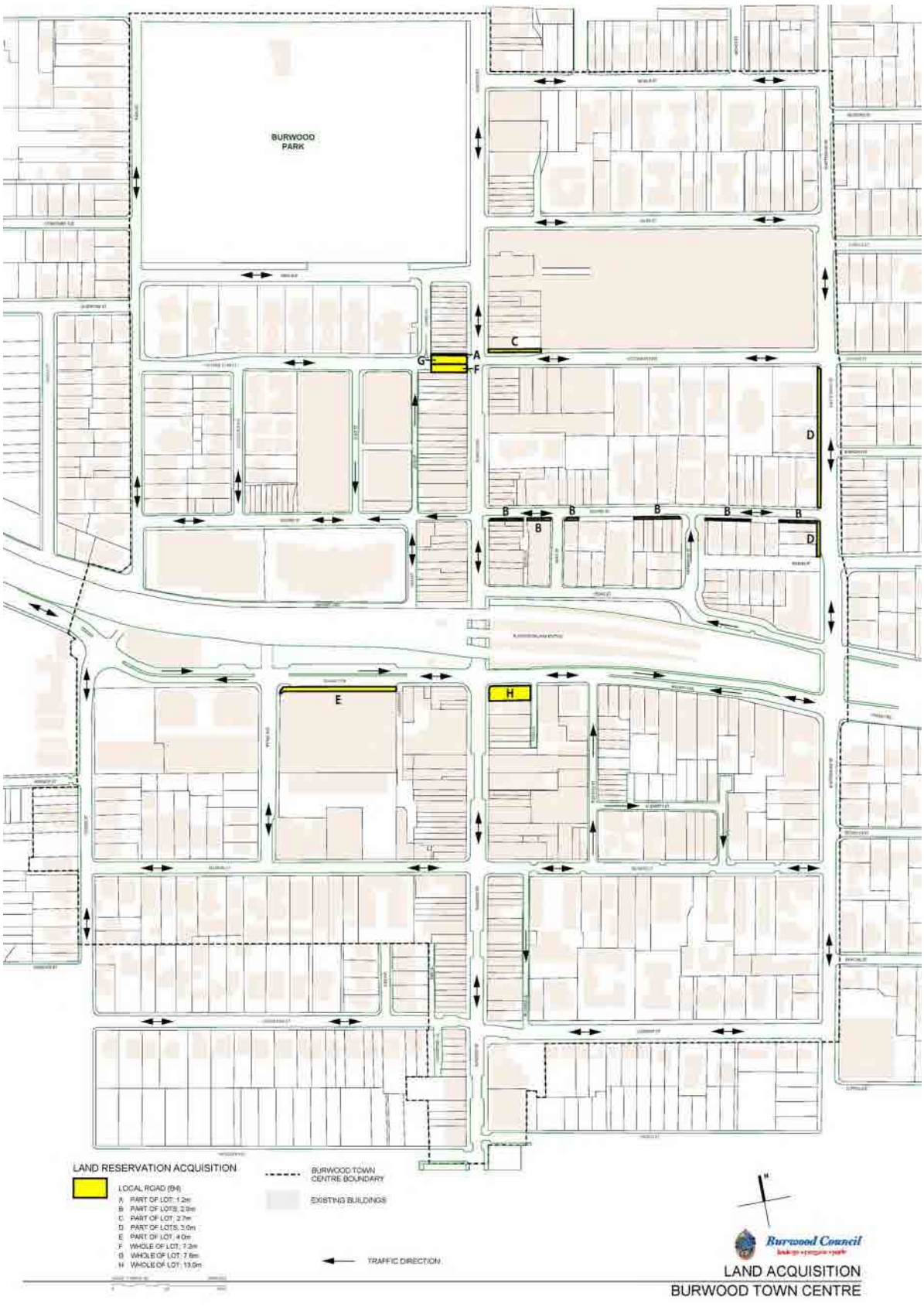


Figure 63. Land Reservations for Acquisition in Burwood Town Centre

3.11.9 Access and Mobility for the Public Domain

Objective

O1 To ensure the public domain is designed and constructed to facilitate access by the community including those with mobility impairment.

Provisions

P1 The public domain surrounding and/or immediately adjacent to any development proposal must be upgraded to Council's current standards at the applicant's cost.

P2 Wherever a pedestrian way meets a roadway which facilitates pedestrians traversing the roadway, laybacks in the kerb must be provided at suitable gradients to allow access for persons with mobility impairment.

P3 Tactile indicators must be provided on the ground immediately adjacent to the approach and departure sides of any changes in floor levels in the public domain which incorporate a step, ramp, stepped ramp or the like in accordance with AS 1428.4.

Further Reference:

Refer to Australian Standards 1428.1,2,3 and 4, Design for access and mobility as relevant for further information on ramps and tactile surface indicators.

Other Centres

Advisory Note:
This subsection does not apply to the Parramatta Road B6 Corridor.

Objectives

O1 To improve the quality and function of the public domain of streets in the Centre.

Provisions

P1 Ensure provision of continuous awnings in streets where the 0m street front setback applies.

Advisory Note:
Awnings are to comply with provisions of Section 3.2.20 - Awnings in Centres and Corridors.

P2 Appropriate lighting must be provided in publicly accessible areas of development that responds to a range of environmental factors such as location, scale and streetscape, to highlight architectural features, incorporate banners and art. These must be cost effective in power usage and maintenance. Solar powered lighting options are encouraged.

P3 Establishment of new "through-site" pedestrian routes where a development comprising commercial floor space at ground level has frontage to parallel streets will be considered by Council as part of the planning and application assessment process for major sites.

P4 Where pedestrian links are provided or where development has frontage to existing public laneways the provisions of Section 3.6 will generally apply and the design of the development must demonstrate adequate compliance with these provisions.

P5 The development of sites with frontage to The Boulevarde that also have frontage to a rear lane or right of way is to provide for all service and parking access from the rear lane or right of way.

P6 Where publicly accessible areas are provided within a commercial development at ground level, all elements including paving, street furniture, planting, fences, kerbs and drainage must be provided to a standard not less than would be required in Council's Public Works Elements Manual (Final Draft June 2006).

P7 Where a street front setback is required and the development is for non-residential purposes at ground level, the provision of cantilevered awnings over the setback area is encouraged. Such awnings must not extend more than 3m from the front facade of the setback building or beyond the street front boundary of the development site.

3.12 Liveability Improvements to Apartment Developments

3.12.1 Activated Rooftop and Podium Communal Open Space

Burwood Council is embracing bold and forward-thinking approaches to enhance liveability in high-density apartment living by encouraging the inclusion of activated communal open spaces, preferably on rooftops and podium levels. These areas may incorporate a range of activities such as music and creative spaces for children, breakout or study areas for students and professionals, exercise and wellness facilities, sports activities such as basketball court or even rooftop swimming pools.

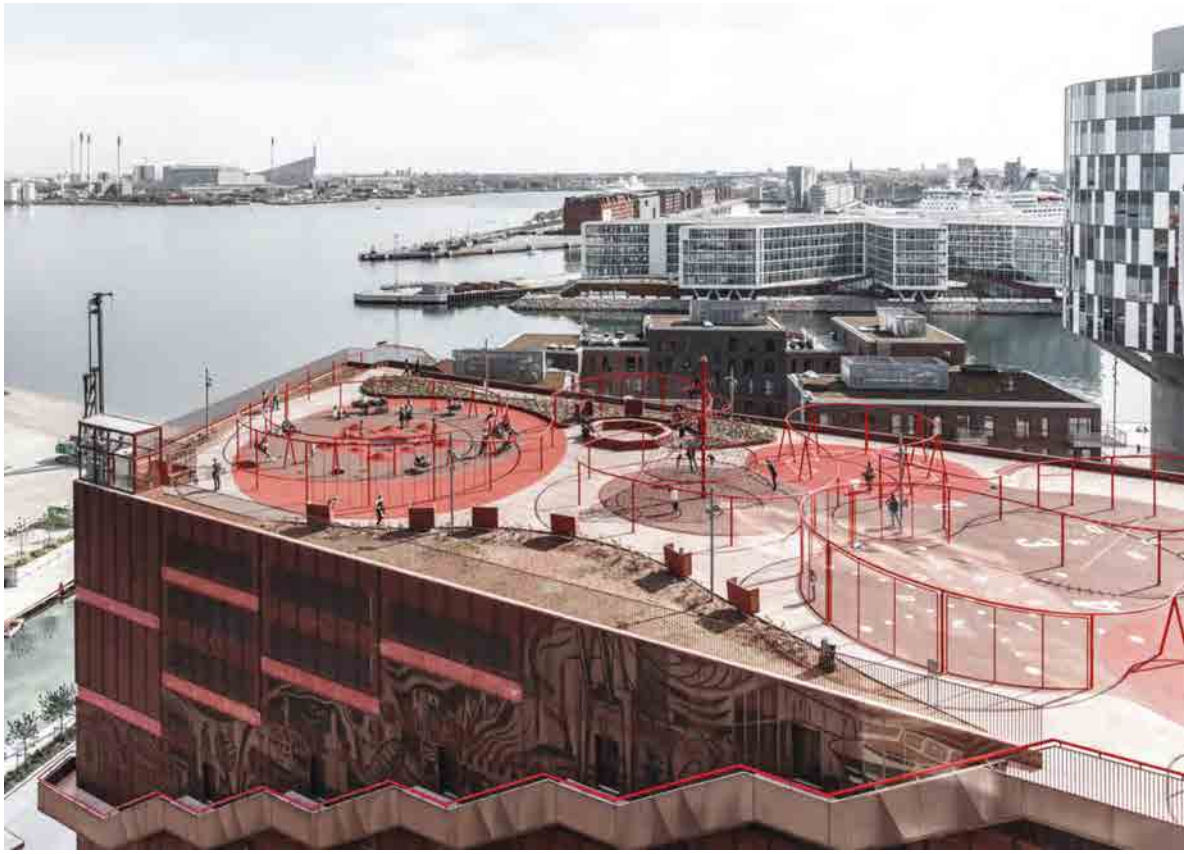


Figure 64: Rooftop activation example - Konditaget Lüders, Copenhagen, Denmark (Source: Google images)



Figure 65: Rooftop activation example – Brisbane, Australia (Source: Google images)

As the demand for apartment living continues to rise across the Burwood LGA, these spaces are essential to support recreation, social connection, and wellbeing where access to ground-level open space is limited.

Developments are encouraged to adopt innovative communal space designs that respond to the unique needs and lifestyles of their residents. Council places particular emphasis on providing music and creative rooms for children, breakout or study areas for students and professionals, and exercise/wellness facilities as part of these activated spaces. Alternative forms of communal activation that align with the intent of enhancing liveability and social interaction will also be considered on their individual merit, having regard to their design quality, functionality, and overall contribution to community life and wellbeing.

The design of activated rooftop and podium communal spaces is expected to demonstrate design excellence consistent with the Burwood LEP Design Excellence Clause 6.5. These spaces should be conceived as integral elements of the overall architectural, landscape and urban design of a development, rather than as ancillary or residual areas. High-quality design outcomes should be achieved through careful consideration of building form, materials, landscape integration, circulation, accessibility, environmental performance and long-term functionality. Well-designed rooftop and podium communal spaces can enhance residential amenity, contribute to urban greening and climate resilience, and reinforce positive relationships between private development and the public and private domain, supporting Council's broader objectives for high-quality, liveable and well-designed apartment development.



Figure 66: Rooftop activation example - Konditaget Lüders, Copenhagen, Denmark (Source: Google images)



Figure 67: Rooftop activation example - Azabu Gardens residential development, Tokyo, Japan (Source: Google images)

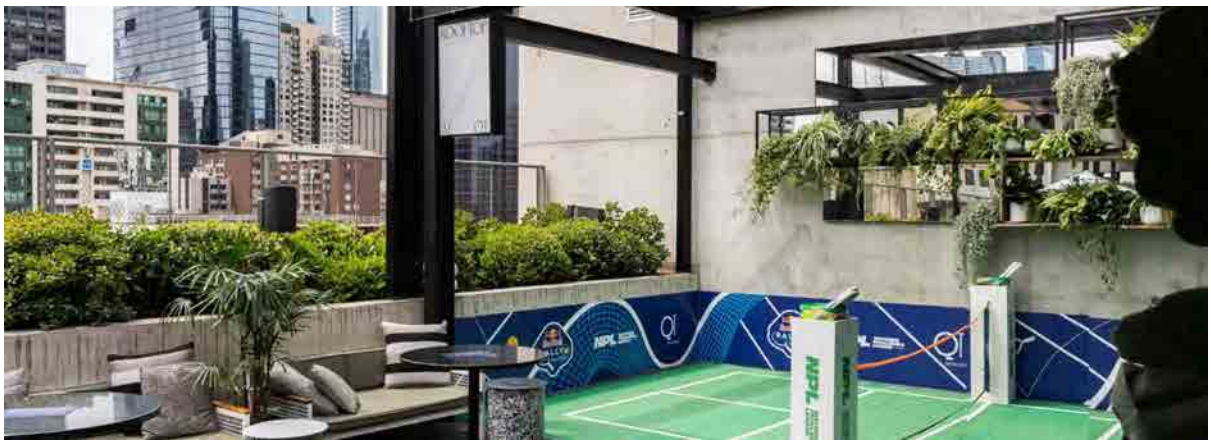


Figure 68: Rooftop activation example – Melbourne, Australia

Objectives

O1 To ensure rooftop and podium communal open spaces or residential accommodation are high-quality, accessible, and actively used recreational and social areas that enhance community interaction and provide meaningful outdoor opportunities in a high-density environment where ground-level open space is limited.

O2 To respond to the growing demand for open space from increasing apartment development by requiring the activation of rooftop and podium communal areas through design that promotes liveability, urban greening, and climate resilience, while fostering a vibrant sense of community and wellbeing for all residents.

O3 To encourage the inclusion of diverse activities within activated rooftop and podium spaces, such as, breakout areas for students/professionals, and exercise or wellness facilities, music or creative studios etc that support social connection, creative expression, and healthy living in high-density residential environments.

O4 To ensure that the design of activated rooftop and podium communal spaces demonstrates design excellence consistent with the requirements of the Burwood LEP Design Excellence Clause 6.5, by achieving a high standard of architectural, landscape and urban design, integrating these spaces with the overall building form and circulation, and ensuring they contribute positively to residential amenity, environmental performance, and the quality of both the public and private domain.



Figure 69: Rooftop activation example – Melbourne, Australia (Source: Google images)

Controls

P1 Building rooftops including podiums that are designated communal open space must be designed to meet the performance requirements of the National Construction Code (Building Code of Australia) NCC.

P2 Any proposed communal open space for residential accommodation located on the building podium and/or rooftop is to:

a) Be consolidated into a useable area with a minimum width of 6m and a minimum area of 36m².

b) Be located so that solar access is provided for users of the communal open space between 10.00 am and 2.00 pm on 21 June.

c) Be designed to a high quality with universal access and allow for landscaping, seating and safety to the users.

d) Be structurally sound and have adequately draining soil base to support healthy plant growth.

e) Have no direct sightlines to the habitable room windows and private open space of the adjoining and on-site residences.

f) Not result in unreasonable noise impacts on the adjoining residences, justified in the Management Plan.

g) Any shading devices, privacy screens and planters should not adversely increase the visual bulk of the building.

h) Any stairway and associated roof should not detract from the architectural character of the building, and be positioned to minimise direct and oblique views from the street.

i) The provision of landscape planting on the roof (green roof) must be designed by a qualified landscape architect or designer with details shown on a landscape plan.

j) An Acoustic Report and Management Plan is required to be submitted with a Development Application to detail planting schedule, maintenance plan and usage hours to address potential noise concerns.

P3 Council encourages activation of roof space via creative uses including but not limited to the following:

a) Social and recreational areas – seating, BBQs, dining, and relaxation zones including rooftop swimming pools;

b) Health and wellbeing spaces – outdoor fitness, yoga, gym and walking loops;

Note: Outdoor fitness facilities provided for the use of building occupants, such as basketball or tennis courts etc, must be appropriately fenced or mesh-enclosed to prevent sports equipment from leaving the designated play area and to ensure safety and amenity for all residents and neighbouring properties as required under NCC provisions.

c) Family-friendly play areas – safe, shaded spaces for children and families.

d) Productive and community gardens – shared planting beds and composting zones;

e) Flexible communal spaces – adaptable areas for co-working, study, or small gatherings.

f) Creative and cultural uses within the areas mapped as the Burwood Town Centre under the BLEP 2012, including spaces with separate access from residential uses, such as for art displays, small performances, community events, and small-scale outdoor cinema or projection walls.

P4 To ensure when provided, music/creative space is designed to minimise noise, maximise amenity, and cater to diverse household needs taking into consideration the following requirements:

a) Development comprising more than 60 dwellings is encouraged to provide at least one dedicated multipurpose communal room suitable for children's music lessons and creative activities.

b) Music practice rooms are to be easily accessible to all residents within the development, preferably at the ground floor level or other common area; and of a size that can support their intended function.



Figure 70 Example of Breakout area (Source: Google images)

P5 Development within Residential Accommodation comprising more than 60 dwellings is encouraged to provide at least one communal co-working or study area, designed to accommodate students and residents working from home.

P6 When provided, breakout areas must ensure they:

- Are accessible to all residents;
- Incorporate natural light and ventilation;
- Provide appropriate furnishings, power outlets, and digital connectivity; and
- Are located to minimise noise conflicts with adjoining dwellings.

P7 Development within Residential Accommodation comprising more than 60 dwellings is encouraged to provide on-site exercise facilities such as gyms, fitness studios, or active recreation spaces.

P8 When provided, exercise facilities must ensure they:

- Are designed with appropriate acoustic treatment to prevent noise transfer;
- Provide adequate ventilation and natural light; and
- Are accessible to all residents

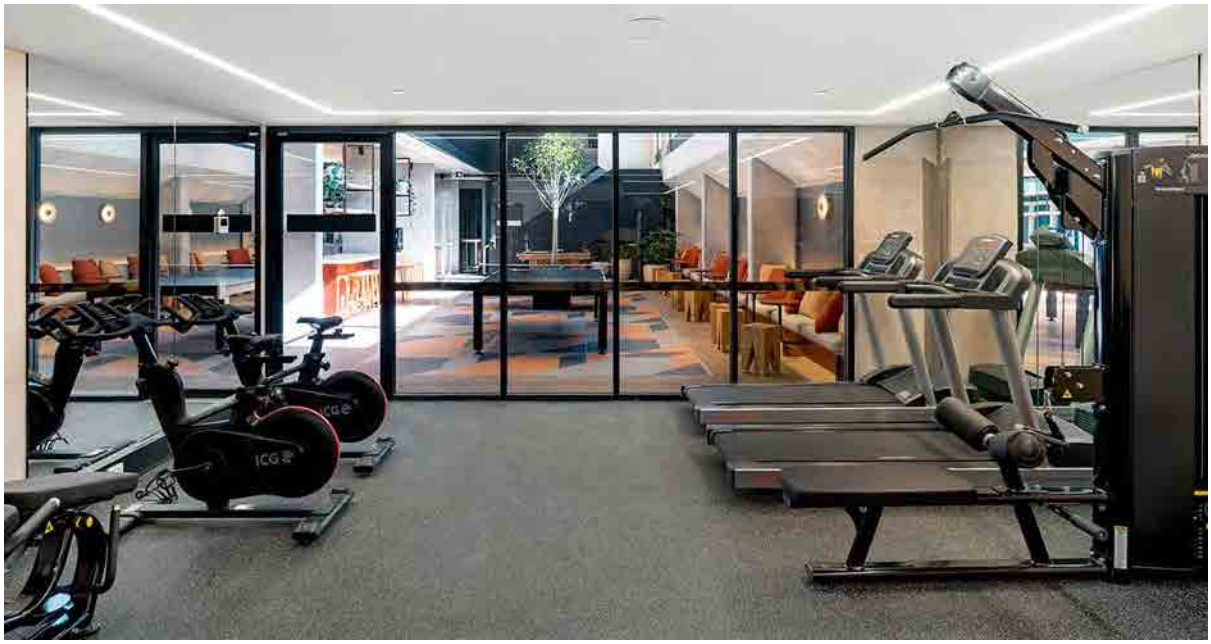


Figure 71: Example of on-site exercise facility (Source: Google images)

3.12.2 End of Trip Amenities

Objectives

O1 To encourage alternatives to private motor vehicle use and support sustainable transport, such as public transport, walking or cycling.

O2 To encourage active and healthy lifestyles, sustainable transport choices, and opportunities for social connection within apartment developments.



Figure 72 End of Trip facilities (Source: Google images)

Controls

P1 Mixed use and Commercial development must provide end-of-trip amenities on site, including:

a) Secure, accessible bicycle parking;

b) Lockers; and

c) Shower and change facilities, must be accessible, secure, unisex and ventilated consistent with the requirements of National Construction Code (NCC).

P2 The end of trip amenities must be safe, well-lit, signposted, weather protected and secure for the users of the development to meet the requirement of NCC.

P3 End-of-trip amenities are to be conveniently located near building entries or communal circulation areas, and not to be located on through-site link land and footpath widening areas.

P4 Bicycle storage must be located with good passive surveillance and direct, level or ramped access to the primary pedestrian entry or street. Basement bike parking should be on the uppermost basement level adjacent to pedestrian exits. Visitor bicycle parking must be provided on grade close to the main entrance. The path from bike parking to the entry must be a minimum clear width of 1.5 m.

3.12.3 Corridors and Internal Circulation

Objectives

O1 To create safe and pleasant spaces for circulation of residents and visitors and their possessions.

O2 To facilitate good apartment layout with optimal environmental performance.

O3 To contribute positively to the built form and façade articulation.



Figure 73 Internal circulation and corridor widths, Source: ADG

Controls

P1 Internal corridors must provide a clear width of 1.5 m. Where bicycle circulation or furniture movement is likely, allow 1.5 m clear width. Internal residential corridors must comply with the BCA and AS 1428 (accessibility) requirements

P2 Corridors must incorporate natural light and ventilation through windows, atriums, or light wells to reduce confinement and improve amenity. Developments must demonstrate the following to improve internal circulation:

a) Provide natural lighting and ventilation.

b) Provide generous corridor widths at lobbies, foyers, lift doors and apartment entry doors.

c) Allow adequate space for the movement of furniture.

d) Minimise corridor lengths to give short, clear sightlines.

e) Articulate long corridors with a series of foyer areas, and/or providing windows along or at the end of the corridor.

f) Avoid tight corners.

P3 Apartment layout has a significant impact on the length of internal corridors. Development must consider the following to maximise opportunities for natural lighting and ventilation and the overall design of internal corridors:

a) maximise the number of pedestrian entries along a street for sites with wide frontages or corner sites.

b) The number of dwelling units accessible off a circulation core must be in accordance with ADG requirements.

c) Articulate the building façade accordingly to minimise corridor lengths and to maximize natural lighting and ventilation.

P4 Finishes, lighting, and colour treatments of internal corridors/lobby should create a welcoming environment that supports wayfinding and amenity.

3.12.4 Hydrant facilities and substations – Integration into facades and/or landscaping

Objectives

O1 To ensure hydrant facilities, substations, and essential service infrastructure are designed and located to meet operational and emergency access requirements.

O2 To integrate essential services into the overall building design in a way that minimises visual and acoustic impacts and maintains streetscape quality and residential amenity.

Controls

P1 Services that require direct street access, including fire hydrant boosters, substations, and similar infrastructure, must be integrated into the overall building design or boundary fence and screened or enclosed.

P2 These facilities must not to detract from the streetscape and must be presented within an architectural treatment, art work, landscaping or screening that complements the building's design, materials, and colours.

P3 Substations must provide safe and adequate ventilation.

P4 Development Applications must show the location, dimensions, and design of hydrant boosters and substations on plans and elevations (minimum 1:50 scale) and perspectives, to demonstrate architectural integration.

P5 Must be designed to meet the requirements of the National Construction Code (Building Code of Australia) NCC and Technical Design Requirements of the relevant infrastructure provider.



Figure 74 Integration of substation, hydrant & boosters with landscaping and building elements (Source: Google images)

3.12.5 EV Readiness and EV Charging

Objectives

O1 To ensure new development is designed and constructed to enable safe, efficient and cost-effective electric vehicle (EV) charging for residents, visitors and building services.

O2 To reduce emissions associated with transport and support Council's sustainability objectives by enabling uptake of electric vehicles.

O3 To future-proof parking infrastructure so on-site charging can be provided with minimal retrofit cost and minimal disruption to occupants.

O4 To ensure EV charging infrastructure is safe, accessible, equitable and integrated with building electrical services and strata management arrangements.



Figure 75: EV readiness and EV charging (Source: Google images)

Controls

P1 EV charging infrastructure (provision of a backbone cable tray and a dedicated space15A circuit with an EV Distribution Board) in private car spaces must be safely integrated into the car parking design and must not obstruct vehicle manoeuvring or pedestrian access, satisfying the NCC requirements.

P2 All car parking spaces in residential accommodation must be 'EV Ready'. A minimum of one EV-ready connection must be provided to each private residential car space consistent with National Construction Code (NCC) requirements.

P3 Where scooter and bicycle charging is provided, it must be located in a dedicated room or enclosure (not within residential areas) satisfying the NCC requirements.

P4 All EV charging areas must provide adequate ventilation, fire detection and suppression appropriate for lithium-ion battery risks

P5 Development Applications must demonstrate how EV charging facilities are to be provided, including:

a) The number and location of EV-ready and EV-installed car spaces (private, visitor and common).

b) The location of distribution boards, conduits and enabling infrastructure.

c) The location of scooter and bicycle charging rooms, showing separation from lifts and evacuation paths.

d) Drawings must clearly identify charging areas and associated infrastructure.

e) An Electrical Services Report prepared by a qualified electrical engineer demonstrating compliance with the NCC and relevant Australian Standards including load capacity, EV-ready infrastructure and control systems.

f) A Fire Safety Statement prepared by a fire safety engineer or suitably qualified consultant (where required), addressing fire separation, detection, suppression and ventilation, particularly for scooter and bicycle charging rooms.

g) A summary of EV charging facilities and compliance with the NCC must be provided in the Statement of Environmental Effects (SEE).

P6 A development application is to be accompanied by a Load Management Plan. Any new substation required on the site must have the electrical/local capacity to facilitate an appropriate volume of EV chargers.

P7 Must be designed to meet the requirements of the National Construction Code (Building Code of Australia) NCC and Technical Design Requirements of the relevant infrastructure provider.

3.12.6 External Neon, LED Neon and Facade Illumination within the CBD

Objectives

O1 To support the 24-hour economy by encouraging creative, safe, and well-designed building illumination.

O2 To enhance the night-time identity, character, and legibility of the CBD through high-quality external lighting.

O3 To ensure lighting design is integrated with building architecture and public domain improvements.

O4 To minimise glare, light spill, energy waste, and adverse amenity impacts on adjoining properties.

O5 To ensure lighting respects the heritage significance and character of existing buildings and streetscapes.



Figure 76: Integrated illumination using LED/Neon lighting (Source: Google images)



Figure 77: Façade illumination in heritage settings (Source: Google images)



Figure 78: Façade illumination in CBD setting (Source: Google images)



Figure 79: Neon façade illumination in CBD setting (Source: Google images)

Controls

P1 External neon, LED Neon and Illumination for buildings must be designed as part of the building façade and coordinated with materials, fenestration, and structural lines. Surface-mounted conduits or visible cabling are not permitted. Illumination Must be limited to the main front street elevation.

P2 Energy-efficient systems such as LED neon or programmable LED lighting are preferred. Traditional gas neon may only be used for heritage restoration or artistic installations.

P3 Lighting should highlight architectural features or public art, not overwhelm or obscure them. Overly dominant or visually cluttered installations are discouraged.

P4 Colour-changing or dynamic lighting may be permitted within entertainment precincts if effects are subtle, rhythmic, and do not cause discomfort or confusion with traffic signals. Flashing or strobe effects are prohibited.

P5 Lighting must be appropriately scaled to the building and street context. Roofline or parapet illumination are supported where forming part of a coordinated architectural or skyline feature.

P6 Illumination must comply with AS 4282: Control of the Obtrusive Effects of Outdoor Lighting. Glare, light trespass, and sky glow must be minimised through shielding, direction, and dimming controls. Illumination shall be designed to be contained within site to which the lighting is installed and shall not to cause a nuisance to other residences in the area, to motorists on nearby roads or aircraft.

P7 On heritage items or within heritage conservation areas:

a) Lighting must be non-invasive, reversible, and compatible with architectural detailing.

b) Warm, low-intensity lighting (≤3000K) is preferred.

c) Significant original neon signage (if present) should be retained and conserved where safe and feasible.

P8 Lighting facing public streets, laneways, or open spaces must contribute positively to pedestrian safety and visual interest without causing distraction or discomfort.

P9 All installations must demonstrate energy efficiency, use of smart controls (timers, dimmers, or sensors), and minimal maintenance requirements.

P10 Council may approve short-term or event-based lighting activations for up to 12 months, provided they meet safety, amenity, and design standards.

P11 Where multiple illuminated features occur within a single block or precinct, proposals must demonstrate a coordinated approach that avoids excessive brightness or visual competition.

P12 The following Operating Hours will apply:

a) Lighting may operate until 2:00am in designated special entertainment precincts.
b) Lighting must be dimmed or switched off by 12:00am/midnight in all other commercial areas.
c) Lighting may remain at reduced brightness (≤30%) overnight for safety or wayfinding purposes.

P13 The following are not permitted:
a) Flashing, pulsating, or rapidly changing lights (except for approved events);

b) Laser projections or sky beams;

c) Lighting that mimics traffic or emergency signals.

P14 Development applications must include a Lighting Strategy and Luminance Report prepared by a suitably qualified lighting designer, detailing the following:
a) Lighting objectives, design intent, and technology;

b) Night-time visualisations or photomontages showing proposed illumination in context;

c) Luminance levels, maximum brightness (cd/m^2), light colour (Kelvin rating), and light spill analysis;

d) Compliance with AS 4282 and relevant DCP provisions.

P15 For heritage sites, a Heritage Impact Statement addressing reversibility and visual compatibility.

P16 Council may consider variations to these provisions where proposals demonstrate:
a) Exceptional design merit or public benefit;

b) Contribution to the night-time character and safety of the precinct; and

c) Effective mitigation of environmental and amenity impacts.

3.12.7 Sustainability and Urban Heat Loss

Objectives

O1 To ensure the efficient use of resources in building design, construction and operation and reduce over-all environmental impact.

O2 To ensure that development is resilient against the effects of climate change.

O3 To reduce urban heat load and increase canopy coverage and ground absorption of water.

O4 To minimise the impact of new development on the existing stormwater system.

O5 To minimise discharge of stormwater from site.

Controls

P1 Development is to use hard-wearing materials that can withstand climatic extremes, including, wind, rain and temperature extremes (each of which may cause warping, bending, blistering, fading or melting) through:
(a) Minimising applied finishes where possible.
(b) Specifying durable materials, to ensure longevity and withstand the extremes of weather and climate.
(c) Specify materials and finishes which patina, weather or age favourably overtime, rather than deteriorate.
(d) Selection of materials with longer design life.
(e) Selection of materials with better performance in hot temperatures.

P2 Minimise western glazing, use roof overhangs (eaves) and incorporate additional shading to balconies/verandas, where possible.

P3 Green roofs are encouraged, wherever practical incorporating a range of low maintenance vegetation and native plants including a variety of plant sizes, layers of planting inclusive of fruit and vegetable gardens.

P4 Stormwater from roofs, streets, pavements and lawns are to be captured and re-used, wherever possible.

P5 The roof materials of new buildings shall incorporate light colours to prevent the urban heat island effect.

P6 Stormwater drainage and on-site detention is to be designed in accordance with Council's Stormwater Management Code

P7 Drainage systems must be sized to consider increases in rainfall intensity, frequency and duration under future climate change.



Figure 80: Green roofs and window overhangs (Source: Google images)

3.12.8 Water Sensitive Urban Design (WSUD)

It is proposed that specific controls relating to Water Sensitive Urban Design (WSUD) be applied to new residential accommodation buildings. This provision will protect and improve the quality of stormwater runoff from the development and will integrate sustainable water management practices into the building and landscape design.

Objectives

O1 Implement effective Water Sensitive Urban Design (WSUD) and stormwater quality improvements for both private developments and public areas to manages stormwater where practicable .

O2 Manage the overall discharge of stormwater across the site to mitigate potential negative effects existing downstream waterways, such as erosion, pollution, sedimentation and local area flooding.

O3 Ensure that on-site stormwater management measures can be operated and maintained according to design specifications

Controls

P1 All developments must implement a rainwater retention and WSUD approach. Specific calculation guidelines for the extent of Rainwater Collection and WSUD provision are to be in accordance with Council's Stormwater Management Plan and in proportion to the scale of development.

P2 Unless otherwise advised by Council, WSUD systems must generally be designed to treat storm events up to the 1-1.5 year flooding event. Low flows of this frequency must be separated from higher flows, which will be diverted into on-site detention (OSD) and other stormwater quantitative management systems.

P3 Developments must maximise the capture and reuse of rainwater from roofs where possible.

P4 Where practicable, WSUD treatments must be used in as many instances as possible and mechanical treatment technology should only be used if necessary.

P5 WSUD principles must be integrated into the development through the design of stormwater drainage, on-site detention, and landscaping, as well as in the orientation of the development and should avoid reliance on 'end of pipe' treatment devices prior to discharge.

P6 Impervious surfaces are to be avoided where practicable

P7 Rainwater storage and tanks are encouraged for all developments, with a provision for greater capacity than the minimum BASIX requirement for residential developments.

P8 Developments should be sited and built to minimise disturbances on natural drainage systems

P9 Adequate provisions must be made for the control and discharge of stormwater runoff from the site to ensure that it does not adversely impact Council's stormwater drainage systems, waterways, the development itself, or adjoining properties.

P10 The construction of stormwater drainage lines through public reserves or land that may be dedicated to Council is not permitted

P11 Stormwater drainage is to be designed in accordance with Council's Stormwater Management Code.

P12 Stormwater runoff must not adversely impact surrounding properties or Council infrastructure and assets through the diversion and concentration of flows.

P13 For developments connecting to the existing site stormwater drainage system, a plan indicating the layout and details of the existing system, along with a certificate from a qualified and practicing plumber certifying the functionality and condition of the system, must be submitted with the Development Application.

P14 All developments involving site disturbance must include details of Erosion and Sedimentation Control measures designed in accordance with the Soil and Water Management for Urban Development – NSW Department of Housing and Stormwater Management Code.

P15 Connection of any stormwater or drainage systems to Council's systems must be undertaken in accordance with Council's Stormwater Management Code.

P16 Charged drainage is permitted within the development. However, the final discharge of stormwater to Council infrastructure must be by gravity.

P17 Private drainage easements must be designed and located on the lower side of a property, be free of building encroachments and must comply with Council's Stormwater Management Code.



Figure 81: Integrated Water Sensitive Urban Design on the ground plane (Source: Google images)

3.12.9 Car Share Parking Space

Objectives

To facilitate sustainable transport choices by providing well-located and accessible car share parking spaces within new developments and public areas, thereby reducing private car ownership, supporting active and public transport use, and optimising the efficiency of limited parking and road space.

Controls

P1 In any form of residential accommodation which exceeds ten or more self-contained dwellings, one car parking space within the development is to be allocated as Car Share Parking Space, with clear signage for the exclusive use of a car share scheme.



P2 The car share parking space must be accessible and clearly identified on the plan and is to be retained as common property of the Owners Corporate of the site.